



Y U T R E E



Media and Entertainment by Yutree

Policy Wording

March 2024

General introduction section

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Welcome to AXA

Your policy is arranged by Yutree Underwriting and underwritten by **us**, AXA Insurance UK plc.

Yutree Underwriting is a trading name of Yutree Insurance Ltd who is authorised and regulated by the Financial Conduct Authority. Their company registration number is 07718776 and their registered office is at 15 Kings Court, Newmarket, Suffolk, CB8 7SG. Please read carefully all documents that **we** have provided and keep them in a safe place.

If **you** have any questions, need anything explaining or believe this contract does not meet **your** needs, please contact **us** or **your** insurance adviser.

Your policy

Your policy is divided into a number of sections. The sections of cover that apply in addition to the General introduction section are shown under **your** cover summary which is in the schedule. **Your** cover summary contains a list of sections available, but only those shown as 'insured' apply. Where a section does not apply **your** cover summary will state that it is 'not insured' and this section will not be included within **your policy**.

Your policy is a contract of insurance between **you** and **us** and **you** have a duty to make a fair presentation of the risk to **us** in accordance with the law.

Your policy describes the cover for which **we** have accepted **your** premium. The **policy** wording, schedule and any endorsements must be read together.

Your policy is renewable provided **we** agree to accept **your** premium for any subsequent **period of insurance**. A new schedule will be issued for each **period of insurance** showing any changes to **your** cover.

Throughout **your policy**, **we** use defined terms. Defined terms are used to explain what a word means and are highlighted in bold blue print.

Headings have been used for **your** guidance to help **you** understand the cover provided. The headings do not form part of the contract.

Under the heading 'What is covered' **we** give information on the insurance provided. This must be read with 'What is not covered', the Policy conditions and any conditions of cover that are applied to each section.

Under the heading 'What is not covered' **we** draw **your** attention to what is excluded from **your policy**.

Important phone numbers



AXA claims telephone helpline

For liability claims

0345 900 4185

For professional indemnity claims

01204 877556

For all other claims

0370 900 0867



Glass replacement service*

0300 303 2944

A quick and efficient service available 365 days a year.



Legal and tax advice**

0330 024 5346

Our confidential legal and tax advice line is there to advise **you** on general UK law and taxation. Please quote Media and Entertainment by Yutree when **you** call.



Emergency helpline**

0330 024 5346

Our 24-hour emergency helpline service is there to assist **you** in the event of an emergency occurring at **your business** premises, for which a tradesperson is required. Please quote Media and Entertainment by Yutree when **you** call.

The emergency assistance helpline will provide details of reputable contractors who will be able to help **you**. **You** will be responsible for the payment of any call-out charges, parts and cost of labour that are quoted by the contractor. This helpline is provided as an ancillary service to assist **you** in the event of an emergency only. Calling the emergency assistance helpline service does not constitute notification of an insurance claim under **your policy**.



Lifestyle counselling helpline and Online support services**

0344 770 1036

This service can help with a range of problems from practical everyday matters to sensitive or emotional issues.

Our specialists will help **you** deal with personal relationship problems, problems with colleagues in the workplace and other issues affecting **your** general wellbeing.

The helpline is complemented by a comprehensive online information and support service, through which **you** can access information and advice on a range of issues and problems which often impact on everyday life. Topics are diverse and include relationships, childcare issues, consumer issues, stress, health and fitness.

Information is updated regularly by a team of experienced counsellors and information specialists.

You can access the Lifestyle Counselling Helpline on **0344 770 1036** or **you** can access the Online Support Service by visiting www.arclegal.co.uk/carefirst

* The Glass replacement service is provided by an AXA approved glazing and locks provider.

IMPORTANT INFORMATION: The Glass replacement service is available for all Media and Entertainment by Yutree policyholders and if **your** policy includes Glass cover, **you** may be able to claim for the replacement costs.

** The legal and tax advice helpline, and the emergency assistance helpline are provided by Arc Legal Assistance Ltd and may be serviced by a third party under their management. Arc Legal Assistance Ltd make no additional charge for providing these services.

Telephone calls may be monitored and recorded.

Making a claim

If **you** need to make a claim please first check **your policy** to make sure **you** are covered. **You** must then follow the **Claims notification condition** and **Claims procedures condition** on pages 6 and 7 of this section, headed Policy conditions.

Please contact **your** insurance adviser who will help **us** deal with **your** claim.

Making a complaint

If **you** are not happy with the way a claim or any other matter has been dealt with, please read 'Making a complaint' on page 10 of this section.

Data protection notice

AXA Insurance UK plc is part of the AXA Group of companies which takes **your** privacy very seriously. For details of how **we** use the personal information **we** collect from **you** and **your** rights please view **our** privacy policy at www.axa.co.uk/privacy-policy. If **you** do not have access to the internet, please contact **us** and **we** will send **you** a printed copy.

Yutree Underwriting is a trading name of Yutree Insurance Ltd and they are committed to protecting the confidentiality and security of the information provided by **you**. For details of how they use the personal information collected from **you** and **your** rights, please view their privacy policy at <https://yutree.com/privacy-policy/>. If **you** do not have access to the internet, please contact Yutree Underwriting and they will send **you** a printed copy.

Meanings of defined terms

These meanings apply throughout **your policy**. If a word or phrase has a defined meaning it will be highlighted in bold blue print and will have the same meaning wherever it is used unless otherwise defined under any section. There may be additional defined meanings in each section.

Business

Business shown in **your** schedule.

Period of insurance

Period from the start date to the expiry date of **your** cover shown in **your** schedule.

Policy

Policy, schedule and any endorsements attached or issued.

Policy territories

Great Britain, Northern Ireland, the Channel Islands and the Isle of Man.

Professional business

For the Professional indemnity section – Media

Professional services or professional advice undertaken by **you** or on **your** behalf arising directly from conduct of the professional business shown on **your** schedule.

For the Professional indemnity section – Events and installations

Performance by **you** or on **your** behalf of the following, provided such activities are undertaken by or under the supervision of a **qualified professional**

- 1 Professional services or professional advice undertaken by **you** or on **your** behalf arising directly from the activities **you** have told **us** about and that appear on **your** schedule.
- 2 The design, specification, installation, supply erection, or dismantling of temporary physical structures including but not limited to stands, stages, displays together with associated equipment carried out as per the services noted on **your** schedule.

We/us/our

AXA Insurance UK plc.

You/your/yours/yourself

Person(s), firm, company or organisation shown in your schedule as the insured.

Policy conditions

You must comply with the following conditions to have the full protection of **your policy**. If **you** do not comply then **we** may at **our** option take one or more of the following actions

- 1 Cancel **your policy**
- 2 Declare **your policy** void (treating **your policy** as if it had never existed)
- 3 Change the terms of **your policy**
- 4 Refuse to deal with all or part of any claim or reduce the amount of any claim payments.

Applicable law condition

You and **we** can choose the law which applies to this **policy**. **We** propose that the Law of England and Wales will apply. Unless **we** and **you** agree otherwise, the Law of England and Wales will apply to this **policy**.

Cancellation condition

- 1 **You** may cancel **your policy** within 14 days of receiving **your policy** at inception and within 14 days of renewal, if for any reason **you** are dissatisfied or the **policy** does not meet **your** requirements.
- 2 **You** may cancel **your policy** at any time if the **business** is sold by **you** or **you** cease trading or **you** sell all the property insured shown in **your** schedule.
- 3 **We** can cancel **your policy**
 - a at any time by giving 30 days written notice to **your** last known address
 - b immediately, without giving **you** notice if the premium has not been paid to **us**.

Where **your policy** is cancelled in accordance with any of the above provisions, **we** will refund part of the premium paid, proportionate to the unexpired **period of insurance** following cancellation, provided

that no claim has been paid or is outstanding in the current **period of insurance**.

Cancellation of **your policy** will not affect any claims or rights **you** or **we** may have before the date of cancellation.

We do not have to offer renewal of **your policy** and cover will cease on the expiry date.

Change in risk condition

You must tell **us** as soon as possible during the **period of insurance** of any change

- 1 to the **business** or **professional business**
- 2 in the person, firm, company or organisation shown in **your** schedule as The insured
- 3 to the information **you** provided to **us** previously or any new information that increases the risk of loss as insured under any section of **your policy**.

Your policy will come to an end from the date of the change unless **we** agree in writing to accept an alteration.

We do not have to accept any request to vary **your policy**. If **you** wish to make any alteration to **your policy** **you** must disclose any change to the information **you** previously provided or any new information that could affect this insurance. If **we** accept any variation to **your policy**, an increase in the premium or different terms or conditions of cover may be required by **us**.

Claims notification condition

This condition applies throughout **your policy** with the exception of the Professional indemnity section – Media or the Professional indemnity section – Events and installations. Please refer to the **Claims notification condition** in the applicable section for full details.

You must

- 1 as soon as practical
 - a give **us** notice of any circumstances which might lead to a claim under **your policy**
 - b give **us** all the information **we** request
- 2 immediately
 - a on receipt send **us** every letter, court order, summons or other legal document served upon **you**

- b** tell **us** about any prosecution, inquest or fatal accident inquiry or dispute for referral to adjudication or court proceedings in connection with any potential claim under **your policy**
- c** notify the police of any loss or damage that has been caused by malicious persons, thieves, rioters, strikers or vandals.

We will not pay **your** claim where **you** have not complied with this condition.

Claims procedures condition

This condition applies throughout **your policy** with the exception of the Professional indemnity section – Media or the Professional indemnity section – Events and installations. Please refer to the **Claims circumstance condition** in the applicable section for full details.

- 1** **You** must take or allow others to take practical steps to prevent further injury, loss or damage, recover property lost and otherwise minimise the claim.
- 2** At **your** expense **you** must provide **us** with
 - a** full details in writing of any injury, loss or damage and any further information or declaration **we** may reasonably require
 - b** any assistance to enable **us** to settle or defend a claim
 - c** details of any other relevant insurances.
- 3** **You** may not accept, negotiate, pay, settle, admit or repudiate any claim without **our** written consent.
- 4** Following a claim **you** must allow **us** or anyone authorised by **us**
 - a** access to premises
 - b** to take possession of, or request delivery to **us** of any property insured.
- 5** **You** may not abandon any property to **us**.
- 6** **We** will be allowed complete control of any proceedings and settlement of the claim.

We will not pay **your** claim where **you** have not complied with this condition.

Fair presentation of risk condition

You have a duty to make a fair presentation of the risk which **you** wish to insure. This applies prior to the start of **your policy**, if any variation is required during the **period of insurance** and prior to each renewal. If **you** do not comply with this condition then

- 1** if the failure to make a fair presentation of the risk is deliberate or reckless **we** can elect to make **your policy** void and keep the premium. This means treating the **policy** as if it had not existed and that **we** will not return **your** premiums, or
- 2** if the failure to make a fair presentation of the risk is not deliberate or reckless and **we** would not have provided cover had **you** made a fair presentation, then **we** can elect to make **your policy** void and return **your** premium or
- 3** if the failure to make a fair presentation of the risk is not deliberate or reckless and **we** would have issued cover on different terms had **you** made a fair presentation of the risk then **we** can
 - a** reduce proportionately any amount paid or payable in respect of a claim under **your policy** using the following formula. **We** will divide the premium actually charged by the premium which **we** would have charged had **you** made a fair presentation and calculate this as a percentage. The same percentage figure will be applied to the full amount of the claim to arrive at the proportion of the claim to be paid or payable; and/or
 - b** treat **your policy** as if it had included the different terms (other than payment of the premium) that **we** would have imposed had **you** made a fair presentation.
- 4** Where **we** elect to apply one of the above then
 - a** if **we** elect to make **your policy** void, this will be from the start of the **policy**, or the date of variation or from the date of renewal
 - b** **we** will apply the formula calculated by reference to the premium that would have been charged to claims from the start of the **policy**, or the date of variation or from the date of renewal

- c **we** will treat the **policy** as having different terms imposed from the start of the **policy**, or the date of variation or from the date of renewal

depending on when the failure to make a fair presentation occurs.

Fraud condition

You and anyone acting for **you** must not act in a fraudulent way.

If **you** or anyone acting for **you**

- 1 knowingly makes a fraudulent or exaggerated claim under **your policy**
- 2 knowingly makes a false statement in support of a claim (whether or not the claim itself is genuine), or
- 3 knowingly submit a false or forged document in support of a claim (whether or not the claim itself is genuine)

we will

- a refuse to pay the claim
- b declare the **policy** void from the date of the fraudulent act without any refund of premiums.

We may also inform the police and fraud prevention agencies of the circumstances.

Instalments condition

If **you** fail to pay a premium instalment to **us** on the date due, this will result in **your policy** being cancelled from the date the missed instalment was due. **You** will not be entitled to any return of premium where this happens.

If a claim has been made or there has been any incident likely to lead to a claim during the current **period of insurance** the annual premium remains due in full.

Other insurance condition

If a claim is made under **your policy** and there is other insurance cover for which **you** are, or would be but for this **policy**, entitled to have a claim paid under the other insurance, **we** will at **our** option, either pay

- 1 a proportionate share of the claim
- or

- 2 an amount beyond that which is or would be payable under the other insurance.

Reasonable care condition

You must take reasonable steps to

- 1 prevent or protect against injury, loss or damage
- 2 keep **your** premises, machinery, plant and equipment and all other property insured in good condition and in full working order
- 3 remedy any defect or any danger that becomes apparent, as soon as possible.

If required by **us**, **you** must allow access to **your** premises and/or activities of **your business** to carry out inspection or survey. **You** must complete any risk improvements that **we** ask for, within a reasonable period of time advised by **us** and ensure that all such improvements remain in place throughout the duration of this **policy**.

We will not pay **your** claim where **you** have not complied with this condition.

Renewal term agreement condition

If **your** schedule shows that a renewal term agreement is operative, certain terms and conditions have been agreed by **you** and **us** that regulate the annual premium at which **we** will offer renewal. The agreement is included as part of the insurance contract and if **we** offer renewal in accordance with the agreement **you** agree that **your policy** will be renewed each year up to the expiry date of the agreement shown in **your** schedule.

Sanctions condition

This contract of insurance is subject to sanction, prohibition or restriction under United Nations resolutions. It is a condition of **your policy** that **we** will not provide cover, or pay any claim or provide any benefit under **your policy** to the extent that the provision of such cover, payment of such claim or provision of such benefit would expose **us**, or **our** parent, subsidiary or any AXA group member company, to any trade or economic sanctions, or violate any laws or regulations of the United Kingdom, the

European Union, the United States of America or any other territory.

Subrogation (our rights) condition

This condition applies throughout **your policy** with the exception of the Professional indemnity section – Media or the Professional indemnity section – Events and installations. Please refer to the **Subrogation (our rights) condition** in the applicable section of this policy wording for full details.

We will be entitled to undertake in **your** name or on **your** behalf

- 1** the defence or settlement of any claim
- 2** steps to enforce rights against any other party before or after payment is made by **us**.

Third party rights condition

This contract is between **you** and **us**. The rights under this contract will not be enforceable by any other party because of the Contract (Rights of Third Parties) Act 1999.

Making a complaint

AXA Insurance aims to provide the highest standard of service to every customer.

If **our** service does not meet **your** expectations **we** want to hear about it so **we** can try to put things right.

All complaints **we** receive are taken seriously. Following the steps below will help **us** understand **your** concerns and give **you** a fair response.

How to make your complaint

The majority of complaints can be resolved quickly and satisfactorily by the department **you** are dealing with. If **your** complaint relates to a claim on **your policy**, please contact the department dealing with **your** claim. If **your** complaint relates to anything else, please contact **your** insurance adviser. Telephone contact is often the most effective way to resolve complaints quickly.

Alternatively, **you** can write to **us** at

AXA Insurance complaints:



AXA Insurance
Commercial complaints
AXA House
4 Parklands
Lostock
Bolton
BL6 4SD

All claims complaints:



Tel: **01204 815359**



Email: **commercial.complaints@
axa-insurance.co.uk**

When **you** make contact please tell **us** the following information:

- Name, address and postcode, telephone number and e-mail address (if **you** have one)
- **Your** policy and/or claim number, and the type of policy **you** hold
- The name of **your** insurance adviser (if applicable)
- The reason for **your** complaint.

Any written correspondence should be headed 'COMPLAINT' and **you** may include copies of supporting material.

Beyond AXA

If **we** haven't resolved **your** complaint within eight weeks, or **you** are unhappy with **our** final response, **you** may be eligible to refer **your** case to the Financial Ombudsman Service (FOS).

The FOS is an independent body that arbitrates on complaints about general insurance products.

You have six months from the date of **our** final response to refer **your** complaint to the FOS. This does not affect **your** right to take legal action.

The Financial Ombudsman Service



Financial Ombudsman Service
Exchange Tower
Harbour Exchange Square
London
E14 9SR



Telephone: **0800 023 4567*** or
0300 123 9123**

Fax: **020 7964 1001**



Email: **complaint.info@
financial-ombudsman.org.uk**

Website: **www.financial-
ombudsman.org.uk**

* free for people phoning from a 'fixed line' (for example, a landline at home)

** free for mobile phone users who pay a monthly charge for calls to numbers starting 01 or 02

Our promise to you

We will

- Acknowledge written complaints promptly.
- Investigate **your** complaint quickly and thoroughly.
- Keep **you** informed of progress of **your** complaint.
- Do everything possible to resolve **your** complaint.
- Learn from **our** mistakes.
- Use the information from complaints to continuously improve **our** service.

Telephone calls may be monitored or recorded.

Financial Services Compensation Scheme (FSCS)

AXA Insurance UK plc are covered by the Financial Services Compensation Scheme (FSCS). **You** may be entitled to compensation in the unlikely event **we** cannot meet **our** obligations to **you**. This depends on the type of insurance, size of the business and the circumstances of the claim. Further information about the compensation scheme arrangements is available from the FSCS (www.fscs.org.uk).

Legal and tax advice or emergency or lifestyle counselling helplines or Legal expenses services complaints

If **you** have a complaint about the Legal and tax advice or emergency or lifestyle counselling helplines or Legal expenses services **you** should contact Arc Legal Assistance Ltd:

Arc Legal Assistance Ltd



Arc Legal Assistance Ltd
The Gatehouse, Lodge Park
Lodge Lane
Colchester
Essex
CO4 5NE



Telephone: **01206 615000**

You can also refer to the Financial Ombudsman Service (FOS) if **you** cannot settle **your** complaint with Arc or before they have investigated the complaint if both parties agree.

Arc are also covered by the Financial Services Compensation Scheme (FSCS).

Property damage section – All risks

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Your schedule will show if this section is covered.

Meanings of defined terms

These meanings apply within **your** Property damage section. If a word or phrase has a defined meaning it will be highlighted in bold blue print and will have the same meaning wherever it is used in this section. The meaning of defined terms that apply throughout **your policy**, and not just this section, can be found in the General introduction section of **your policy**.

Alarmed buildings

The building(s) or those portions of the building(s) used by **you** at the **premises** protected by the **intruder alarm system**.

Building(s)

The buildings, outbuildings, extensions, and garages together with landlords fixtures and fittings in or on them, foundations or footings, canopies, annexes, gangways, conveniences, chimneys, fire escapes, walls, gates and fences, yards, car parks, roads and pavements, piping, ducting, cables, wires and associated control gear, CCTV systems, entry and exit systems signage, accessories and electric vehicle chargepoints fixed to **your** building(s) including their tethered cables and connectors on the **premises** and extending to the public mains, but only to the extent of **your** responsibility.

Business interruption

Loss, cost or expense resulting from interruption of or interference with the **business** carried on by **you** at the **premises** as a result of any loss, destruction or damage to property used by **you** at the **premises** for the purposes of the **business**.

Contents

Contents in and at **your premises** or held in trust by **you** for which **you** are responsible (including wines, spirits, cigarettes and tobacco held for entertainment purposes, promotional materials, leaflets and the like but not more than £5,000 in total value). Contents does not include computer equipment, portable computer equipment,

props, sets, wardrobe, technical equipment, landlords fixtures and fittings, **stock** and vehicles licensed for road use (including accessories on them).

In addition, and as long as they are not insured elsewhere, contents will include

- 1 **money** not exceeding £500
- 2 documents, manuscripts and accounting records, but only for the cost of the materials and clerical labour used in recompiling the records. This does not include any expense involved in the recreation of the information recorded
- 3 patterns, models, moulds, plans and designs for an amount not exceeding the cost of the labour and materials used in their reinstatement
- 4 contents of outbuildings
- 5 contents of open yards
- 6 tenants improvements, alterations and decorations
- 7 directors, partners, customers, visitors and employees' personal effects (other than motor vehicles and **money**) not exceeding £1,500 for any one person.

Contract works

The permanent and temporary works undertaken by **you** or on **your** behalf for the purpose of alteration or improvement to the **building(s)**. This includes all unfixed materials and goods for which **you** are responsible, and whether supplied free of charge or not, delivered to or placed on or adjacent to the permanent and temporary works and intended for incorporation in them, in performance of the contract at the **premises** specified in **your** schedule. This does not include any tools, contractor's plant and equipment, site huts and other temporary accommodation and their contents belonging to **you** or hired by **you** under a hiring agreement, hire purchase, lease agreement or on a free loan.

Communicable disease

Any disease which can be transmitted by means of any substance or agent from any organism to another organism where:

- 1 the substance or agent includes, but is not limited to, a virus, bacterium, parasite or other organism or any variation thereof, whether deemed living or not, and
- 2 the method of transmission, whether direct or indirect, includes but is not limited to, airborne transmission, bodily fluid transmission, transmission from or to any surface or object, solid, liquid or gas or between organisms, and
- 3 the disease, substance or agent can cause or threaten damage to human health or human welfare or can cause or threaten damage to, deterioration of, loss of value of, marketability of or loss of use of property.

Computer systems

Computer or other equipment or component or system or item which processes, stores, transmits or receives **data**.

Cyber act

An unauthorised, malicious or criminal act or series of related unauthorised, malicious and criminal acts, regardless of time and place, or the threat or hoax thereof involving access to, processing of, use of or operation of any **computer systems**.

Cyber incident

- 1 any error or omission or series of related errors or omissions involving access to, processing of, use of or operation of any **computer systems**; or
- 2 any partial or total unavailability or failure or series of related partial or total unavailability or failures to access, process, use or operate any **computer systems**.

Damage

Physical loss or destruction or damage.

Data

Any data of any sort whatever, including without limitation tangible or intangible data, and any programs or software, bandwidth, cryptographic keys, databases, documents,

domain names or network addresses or anything similar, files, interfaces, metadata, platforms, processing capability, storage media, transaction gateways, user credentials, websites, or any information whatever.

Declared value

Your assessment in accordance with the Basis of claims settlement paragraphs **1, 2 and 4** under ‘What is covered’ of this section, for the cost of reinstatement of the **building(s)** and cost of replacement of the **contents or other items** applying at the start of the **period of insurance**. Ignoring any increase in cost which may apply during the **period of insurance** but including an allowance for any additional costs to comply with public authority requirements, professional fees and debris removal.

Defined peril

Fire, lightning, explosion, aircraft or other aerial devices or articles dropped from them, riot, civil commotion, strikers, locked-out workers, persons taking part in labour disturbances, malicious persons other than thieves, earthquake, **storm**, **flood**, escape of water from any tank, apparatus or pipe or impact by any road vehicle or animal.

Denial of service attack

Any actions or instructions constructed or generated with the ability to damage, interfere with or otherwise affect the availability or performance of networks, network services, network connectivity or **computer systems**. Denial of service attacks include, but are not limited to, the generation of excess traffic into network addresses, the exploitation of system or network weaknesses, the generation of excess or non-genuine traffic between and amongst networks and the procurement of such actions or instructions by other **computer systems**.

Excess

First amount of any claim or claims for which **you** are responsible.

Flood

Damage caused by

- 1 the escape of water from the normal confines of any natural or artificial water course, lake, reservoir, canal, drain or dam
- 2 inundation from the sea
- 3 inundation by rainwater or rainwater-induced run off other than where the inundation is solely caused by or solely results from ingress of rainwater through or via the roof of the building

whether resulting from storm or not.

Hacking

Unauthorised access to any **computer systems**, whether **your** property or not.

Hot work

Any temporary operation or work undertaken outside a designated and risk assessed workshop involving the use of naked flame, production of heat or sparks such as but not limited to

- 1 oxyacetylene, electric arc or similar welding, cutting, grinding (including abrasive disks) or similar spark emitting equipment
- 2 blow lamp, blow torch, thermal lance, hot air gun or hot air stripper
- 3 asphalt, bitumen, tar or pitch heater
- 4 braising or soldering
- 5 a process which may produce frictional heat, spark or flame
- 6 any other heat source.

Intruder alarm system

The component parts including the means of communication used to transmit signals to the alarm-receiving centre.

Key holder

You or any person or key holding company authorised by **you**, who is available at all times to accept notification of faults to or alarm signals from the **intruder alarm system** and to attend and allow access to the **premises**.

Money

Bills of exchange, uncrossed promissory notes, cash, bank and currency notes, uncrossed

cheques, giro cheques including pre-authenticated giro cheques, uncrossed postal orders, uncrossed money orders, uncrossed warrants, current postage stamps, unused units in franking machines, National Savings stamps and certificates, National Insurance stamps, trading stamps, gift tokens, gaming machine tokens, lottery tickets (excluding scratch cards held in stock for resale), customer redemption vouchers, authenticated travel tickets, phone cards (excluding phone cards held in stock for resale), holiday with pay stamps, luncheon vouchers, securities for money, travel warrants, crossed warrants, credit company sales vouchers, debit card sales vouchers, crossed cheques, crossed giro drafts, crossed postal orders, crossed money orders, crossed national giro bank orders, crossed promissory notes, crossed bankers drafts, premium bond certificates, VAT purchase receipts, credit card counterfoils, premium bonds, savings bonds, stamped National Insurance cards and National savings certificates.

Other items

The items at **your premises** shown under the heading of 'Other items' or 'Miscellaneous' in **your** schedule.

Phishing

Any access or attempted access to **data** made by means of misrepresentation or deception.

Premises

The premises shown in **your** schedule.

Stock

Stock and materials in trade, including work in progress, finished goods and customers goods in and at **your building(s)** or held in trust by **you** for which **you** are responsible.

Storm

Storm excluding damage by **flood**.

Terrorism

In England, Scotland and Wales: Acts of persons acting on behalf of, or in connection with, any

organisation which carries out activities directed towards the overthrowing or influencing, by force or violence, of His Majesty's Government in the United Kingdom or any other government de jure or de facto.

In Northern Ireland: An act including but not limited to the use of force or violence and/or threat thereof of any person or group(s) of persons, whether acting alone or on behalf of or in connection with any organisation(s) or government(s) committed for political, religious, ideological or similar purposes, including the intention to influence any government and/or put the public or any section of the public in fear.

In the Channel Islands and the Isle of Man: An act of any person(s) acting on behalf of or in connection with any organisation which carries out activities directed towards the overthrowing or influencing by force or violence of any government de jure or de facto.

Time element loss

Business interruption, contingent business interruption or any other consequential losses.

Unoccupied

Any building(s) or any portions of the building(s) which are wholly empty, mainly empty or not in use by **you** or any of **your** tenants for more than 30 consecutive days.

Virus or similar mechanism

Program code, programming instruction or any set of instructions constructed with the purpose and ability or purposely used to damage, interfere with, adversely affect, infiltrate or monitor computer programs, **computer systems**, **data** or operations, whether involving self-replication or not. The meaning of virus or similar mechanism includes but is not limited to trojan horses, worms and logic bombs and the exploitation of bugs or vulnerabilities in a computer program to damage, interfere with, adversely affect, infiltrate or monitor as above.

✓ What is covered

Property damage cover

We will cover **you** for **damage** occurring during the **period of insurance** to any of the property insured detailed in **your** schedule. **We** will pay **you** for the value of the property at the time of its **damage** or for the amount of the **damage** or at **our** option reinstate or replace the property or any part of it in accordance with the following Basis of claims settlement.

Basis of claims settlement

- 1 Claims for the total loss or destruction of **contents** or **other items** will be settled on the basis of replacement of property similar to but no better or more extensive than the **contents** or **other items** when new.
- 2 Claims for partial **damage** to **contents** or **other items** will be settled on the basis of restoration to a condition no better or more extensive than the condition of the **contents** or **other items** when new.
- 3 Claims for **damage** to the **building(s)** and tenants' improvements insured as a specific item will be settled on the basis of rebuilding or replacement of the destroyed property or the repair or restoration of the damaged portion of the property in each case to a condition equal to but no better or more extensive than its condition when new.
- 4 Claims for **stock** will be settled on the basis of its value at the time of loss or destruction with an adjustment for wear and tear.

For all claims for the **building(s)**, **contents** or **other items**, no payment will be made beyond the amount which would have been payable under this section if this provision had not been incorporated, until the cost of reinstatement has actually been incurred.

All claims for the **building(s)**, **contents** or **other items** will be settled without deduction for any increases in the **declared value** between the start date of the **period of insurance** and the date of the **damage**.

Provided that

- 1 the **declared value** at the start of the **period of insurance** is not less than the cost of

reinstatement at the start of the **period of insurance**

- 2 a revised **declared value** is provided to **us** annually at renewal

otherwise **our** liability for any claim is limited to the proportion of the claim that the **declared value** at the start of the **period of insurance** has to the cost of reinstatement at the start of the **period of insurance**.

The maximum **we** will pay under this section will not exceed

- 1 in the whole, the total sum insured or for any one item its sum insured or any other limit of liability shown in **your** schedule at the date of **damage**
- 2 the sum insured or limit remaining after deduction for any other **damage** occurring during the same **period of insurance** unless **we** have agreed to reinstate any of the sums insured or limits

adjusted in accordance with the **Inflation protection cover**.

Architects, surveyors, legal and consulting engineers fees cover

The cover provided for the **building(s)** and **contents** includes an amount for architects, surveyors, legal and consulting engineers fees necessarily incurred, with **our** written consent, in the reinstatement or repair of the property insured, as a result of its **damage**, but **we** will not cover any costs or expenses for preparing any claim.

We will not pay for any item more than the item sum insured shown in **your** schedule.

Capital additions cover

We will cover **you** for

- 1 any newly acquired and/or newly erected building(s) or building(s) under construction or machinery and plant which is not insured elsewhere for which **you** are responsible
- 2 alterations, additions and improvements to the **building(s)**, or machinery and plant but not for any appreciation in value

anywhere within the **policy territories**.

Provided that

- a the most **we** will pay for any one claim for **buildings** and **contents** is the lesser of £250,000 or 10% of the sum insured for any one **premises**
- b **you** give **us** details in writing of the additions as soon as possible but in any event within 30 days and **you** will ensure specific insurance is arranged with **us** from the date **you** become responsible
- c the provisions of this cover will be fully maintained in addition to any specific insurance effected under **b** above.

Contract price cover

If a sale contract is cancelled entirely due to **damage** to the **stock** sold by **you**, that is not delivered and still **your** responsibility, **our** liability will be based on the contract price. For this section, the value of all **stock** where the sale contract is cancelled in the event of **damage** will also be settled on this basis.

Contract works cover

The cover for each **building(s)** item covered by this section extends to include **contract works** undertaken in the performance of any contract where **you** are responsible for arranging insurance cover under the terms of the contract.

Provided that

- 1 this cover will only apply as long as the **contract works** are not insured elsewhere
- 2 **we** will not be liable for the **excess** shown in **your** schedule for each and every loss.

Our liability will not exceed the lesser of 10% of the **buildings** sums insured or £100,000 for all losses arising out of one claim.

Debris removal cover

We will cover **you** for the costs and expenses necessarily incurred by **you** with **our** consent in

- 1 removing debris from
- 2 dismantling and/or demolishing
- 3 shoring up or propping

the portion or portions of the property insured as a result of **damage** covered by this section.

We will not cover any costs or expenses

- 1 incurred in removing debris except from the site of the property destroyed or damaged and the area immediately adjacent to the site
- 2 arising from pollution or contamination of property not covered by this section.

Our liability for any item under this cover will not exceed the sum insured for the item shown in **your** schedule.

Drains clearance cover

We will cover **you** for the costs and expenses necessarily and reasonably incurred by **you** in clearing, cleaning and/or repairing drains, gutters and/or sewers to **your building(s)** or for which **you** are responsible following **damage** up to £5,000 for any one claim.

Environmental protection cover

We will pay the additional rebuilding costs following **damage** covered by this section, if **you** elect, with **our** written consent, to rebuild the damaged **building(s)** in a manner that aims to reduce potential harm to the environment or improve energy efficiency.

Provided that

- 1 **we** will not pay the additional costs of work **you** had already planned to be carried out prior to the **damage**
- 2 if **our** liability is reduced by the application of any terms or conditions of this **policy**, **our** liability will be reduced proportionately
- 3 **we** will not pay any additional costs for replacing undamaged property
- 4 if **you** elect not to rebuild the damaged **building(s)** then this cover will not apply
- 5 **we** will not pay the additional costs of complying with any Act of Parliament or bye-laws of any public authority.

Our liability for any one claim will not exceed 10% of the **building** sum insured.

Exhibition cover

We will cover **you** for any **stock, contents** and **other items** described in **your** schedule whilst at any exhibition within the **policy territories**.

Our liability will not exceed £15,000 for all losses arising out of one claim.

Explosives cover

We will cover **you** for **damage** to any property insured shown in **your** schedule, directly or indirectly caused by or as a result of the use of explosives for any theft or any attempted theft at the **premises**. **We** will only cover **you** if the risk of explosion is not insured under any other policy by **you** or on **your** behalf for the same property.

Our total liability for all claims during any one **period of insurance** will not exceed the sum insured shown in **your** schedule.

Fire brigade charges cover

We will cover **you** for the costs and expenses incurred by **you** charged by the Local Authority for extinguishing fire or fire fighting, provided that these costs and expenses are necessary and reasonable.

Fire extinguishment expenses cover

We will cover **you** for the cost of replacing or refilling, recharging and/or replenishing extinguishment materials when **you, your** employees or the fire brigade attempt to extinguish or minimise **damage**.

Provided that these costs and expenses are not recoverable from the responsible public authority.

Our liability for any one claim will not exceed £50,000.

Freezer contents cover

We will cover **you** for damage to frozen or chilled goods in any cold chamber due to a change in temperature resulting from any cause, except loss, destruction or damage

- 1 following the deliberate act of any public electricity authority in termination, disconnection, restriction or withholding the supply of electricity

- 2 caused by neglect or misuse.

Provided that

- 1 the cold chamber must be maintained under an annual maintenance contract
- 2 where the cold chamber is over 10 years old, **you** will be responsible for 20% of any claim up to the sum insured.

Our liability for any one claim will not exceed £5,000.

Further investigation expenses cover

Where a building has suffered **damage** and, in the opinion of a competent construction professional, there is a reasonable possibility of other **damage** to portions of the same building which is not immediately apparent, **we** will pay the reasonable costs and expenses incurred by **you** with **our** written consent in establishing whether or not such **damage** has occurred.

We will also pay the reasonable costs incurred by **you** with **our** written consent in establishing whether or not other surrounding buildings have suffered **damage** in the same incident but only if those buildings are subsequently found to have suffered **damage** for which **we** are responsible.

Our liability for any one claim will not exceed the lesser of 10% of **buildings** sum insured or £100,000.

General interest cover

We will automatically note the interest of other parties that may become interested in this insurance throughout the duration of this section. **You** must declare these interests to **us** in writing in the event of any **damage**.

Glass breakage cover

We will cover **you** and at **our** option pay for or make good any breakage or malicious scratching of all internal or external fixed glass, belonging to **you** or for which **you** are responsible at the **premises** during the **period of insurance** and which is in good condition and free from **damage** at the start date of the **period of insurance**.

We will also pay for the cost of

- 1 breakage of fixed sanitary ware
- 2 boarding up and repair to associated framework reasonably incurred as a result of an insured breakage. **You** may instruct builders or glaziers to board up where necessary without **our** prior consent
- 3 repair or replacement of lettering, alarm foil or other ornamentation work on glass up to £5,000 in total for all claims during any one **period of insurance**
- 4 repair or replacement of fixed mirrors
- 5 removal or replacement of fixtures and fittings which may be necessary in connection with the replacement of the glass.

We will not pay for

- 1 breakage when the **building(s)** are **unoccupied** unless **we** have agreed otherwise
- 2 any property more specifically insured by **you** or on **your** behalf.

Our liability for any one claim will not exceed the sum insured shown in **your** schedule.

Inadvertent omissions cover

Provided that **you** have notified **us** of **your** intention to cover all property in which **you** have an interest and that **you** believe all the property is covered, **we** will cover **you** for **damage** to property that has been inadvertently omitted or the subject of typographical error. **We** will provide cover within the terms of this section, subject to payment of the premium for all such property from the start of this section or from the date of **your** interest in such property if it is erected or purchased after the start of this section.

Provided that

- 1 the value of the property insured which has been inadvertently omitted shall be added to the **declared value**
- 2 this extension of cover does not apply to property situated outside of the **policy territories** or to **stock** or **other items**.

Our liability for any one claim will not exceed the lesser of £250,000 or the property sum insured for any one **premises**.

Inflation protection cover

We will adjust the sum insured for the **building(s)**, **contents** or **other items** at each renewal in line with suitable indices and the renewal premium for this section will be based on the adjusted sums insured.

Landscaped gardens cover

We will cover **you** for the cost of restoring any **damage** caused by the emergency services to landscaped gardens, for which **you** are responsible, when the emergency services are attending the **premises** as a result of a **defined peril**.

Our total liability for all claims in any one **period of insurance** will not exceed £25,000.

Locks and keys cover

We will cover **you** for the cost of replacing locks and keys needed to keep **your building(s)** secure if the keys are stolen using force and/or violence.

Our liability for any one claim will not exceed £5,000.

Loss reduction expenses cover

We will cover **you** for the costs and expenses necessarily and reasonably incurred by **you** with **our** consent in

- 1 preventing or reducing imminent **damage** which would have been covered by this section
- 2 reducing, mitigating or otherwise alleviating **damage** covered by this section during and after the occurrence of such **damage**.

Provided that

- 1 the impending **damage** was not reasonably foreseeable earlier and would be the natural outcome if the costs and expenses were not incurred
- 2 the impending **damage** did not arise from any defect in the property insured
- 3 **we** are satisfied that **damage** which would have been covered by this section has been avoided or reduced as a result of the measures taken.

Our total liability for all claims will not exceed £2,500 during any one **period of insurance**.

Metered water or gas cover

We will cover **you** for the additional metered water and/or gas charges incurred by **you** as a result of **damage** to the **building(s)** shown in **your** schedule, but **we** will not pay for the charges incurred for any **building(s)** which is **unoccupied**.

Provided that repairs are completed within 30 days of the **damage** being discovered.

The most **we** will pay is based on the amount of the water or gas charges for the period when the **damage** occurs, less the charge paid by **you** for the corresponding period in the preceding year. This will then be adjusted for changes in the suppliers' charges and for variations affecting **your** water or gas consumption during the intervening period.

Our total liability for all claims during any one **period of insurance** will not exceed £25,000.

Motor vehicles (stationary risk) cover

We will cover stationary motor vehicles licensed for road use, belonging to or leased by **you** whilst situated at **your premises**, but only if they are not insured elsewhere.

Our liability for any one claim will not exceed £15,000.

Munitions of war cover

The **War risks exclusion** will not apply to **damage** to property insured under this section from or occasioned by the detonation of World War II munitions of war only or parts thereof in or within five miles of the **premises** situated in the **policy territories**.

Outworkers cover

We will cover **you** for **damage** to the property shown in **your** schedule whilst at any of the premises of any of **your** outworkers situated anywhere in the **policy territories**.

Our total liability for any one outworker and for all claims during any one **period of insurance** will not exceed £100,000.

Pairs and sets cover

The insurance in respect of the personal property of **your** principals, directors, employees, customers or visitors, where that property consists of articles in a pair or set, is limited to the value of the individual parts which suffer **damage**, irrespective of any special value which that property may have as a pair or set.

Patterns cover

We will cover **you** for **damage** to patterns, jigs, models, templates, moulds, tools, dies, drawings or designs belonging to **you** or for which **you** are responsible whilst at the premises of any machine makers, engineers, foundries or other metal workers (excluding any premises occupied by **you**) within the **policy territories**.

Our liability for any one claim will not exceed £25,000.

Public authorities (including undamaged property) cover

The cover for the **building(s)** and **contents** also includes the additional cost of reinstatement that may be incurred solely due to the necessity to comply with the stipulations of building or other regulations under or framed in pursuance of any Act of Parliament or by-laws of any public authority

referred to as the stipulations for

- a** the **damage** to the property insured
- b** undamaged portions of the property insured but excluding
- 1** the cost incurred in complying with the stipulations
 - a** for **damage** occurring before the start date of this cover
 - b** for **damage** not insured by this section
 - c** where notice has been served on **you** prior to the **damage** happening
 - d** where there is an existing requirement which has to be implemented within a given period
 - e** for property covered by this section entirely undamaged by any event covered by this section

- 2 the additional cost that would have been required to make good the property lost, destroyed or damaged to a condition the same as when new, had the need to comply with the stipulations not arisen
- 3 the amount of any charge or assessment arising out of capital appreciation which may be payable for the property or by the owner to comply with the stipulations.

Special conditions applicable to Public authorities (including undamaged property) cover

- 1 Reinstatement work must be started and carried out without unreasonable delay and must be completed within 12 months of the date of the **damage** or any further time that **we** agree (during those 12 months).
- 2 The reinstatement work may be carried out on another site (if the stipulations require) subject to **our** liability under this cover not being increased.
- 3 If **our** liability is reduced by the application of any of the terms or conditions of this **policy**, then **our** liability will be reduced proportionately.
- 4 The total amount recoverable under any item of this section, for this cover will not exceed
 - a for the lost, destroyed or damaged property
 - i 15% of its sum insured
 - ii where the sum insured by the item applies to property at more than one location, 15% of the total amount which **we** would have been liable for had the property insured by the item been totally destroyed
 - b for undamaged portions of property (other than foundations), 15% of the total amount which **we** would have been liable for had the property insured by the item at the **premises** suffered **damage**.

Our liability for **building(s)** and **contents** will not exceed the sum insured shown in **your** schedule.

Public relations expenses cover

We will cover **you** for the costs and expenses necessarily and reasonably incurred by **you** with **our** written consent to employ suitable public relations personnel to deal with press and public announcements and other necessary activities following **damage** covered by this section.

Our total liability for all claims during any one **period of insurance** will not exceed £25,000.

Seasonal increase cover

The **stock** sum insured shown in **your** schedule will be increased by 25% during the months of November, December and the first 14 days of the month of January and for 30 days before Easter Day in each **period of insurance**.

Seventy two hour cover

We will cover **you** for **damage** within 72 consecutive hours of and caused by the **defined perils** of **storm** or **flood** as one claim, provided the perils are covered by this section.

You can decide when the 72-hour period starts as covered by this section, provided that **damage** occurred before the end of the **period of insurance**.

Sprinkler upgrade costs cover

We will cover **you** for the additional costs incurred, following **damage** to the property shown in **your** schedule, to upgrade an automatic sprinkler installation within **your building(s)** in order to meet current Loss Prevention Council (LPC) rules.

Provided that at the date of the **damage** the installation conforms to the LPC rules current at the date of installation and that the system has a complete service record up to the date of the **damage**.

Our liability for any one claim will not exceed 10% of the **building** sum insured.

Temporary removal cover

We will cover **contents** or **other items** whilst temporarily removed to any premises not owned or occupied by **you**

- 1 for cleaning, renovation, repair or similar purposes
- and

2 in transit to and from such premises anywhere in the **policy territories**.

Provided that **we** will not cover property that is specifically insured elsewhere.

Our liability under each item of this section for any **damage** occurring other than at **your premises** will not exceed 10% of the item sum insured.

Temporary removal of documents cover

We will cover **you** for up to 10% of the value of deeds and other documents (including stamps on them), manuscripts, plans and writings of every description and books (written and printed) whilst temporarily removed

- 1** to any premises not owned or occupied by **you** and
- 2** in transit to and from such premises within the **policy territories**.

This cover does not apply to property that is insured elsewhere.

Theft damage to buildings cover

Where there is no **building(s)** insurance in force under this section, **we** will cover **you** for **damage** to the **building(s)** at the **premises** shown in **your** schedule resulting directly from theft or attempted theft covered by this section, provided that **you** are the owner of the **premises** or are legally responsible for the **damage**.

We will not pay for **damage** to any building(s) which are **unoccupied**.

Theft of building fabric cover

We will cover **you** for

- 1** **damage** to the external fabric of any **building(s)** insured by this section as a result of theft or attempted theft
- 2** **damage** following entry of rainwater as a result of theft or attempted theft of the external fabric of the **building(s)**.

This cover excludes

- 1** any buildings which are **unoccupied**
- 2** the **excess** shown in **your** schedule for each and every claim in respect of each separate **premises** shown in **your** schedule.

Our liability for any one claim will not exceed £2,500.

Trace and access cover

We will cover **you** for the reasonable costs necessarily incurred by **you**, and subsequent making good of **damage**, in locating the source of the leak resulting from

- 1** the escape of water from any tank, apparatus or pipe
- 2** **damage** to cables, underground pipes and drains serving the **premises**.

Our liability for any one claim will not exceed £25,000.

Unauthorised use of electricity, gas, oil and water cover

We will cover **you** for the charges which **you** are responsible for if gas, electricity, oil or water is discharged from a metered system, arising from unauthorised use by persons taking possession, keeping possession or occupying the **building(s)** without **your** authority.

Provided that **you** take all practical steps to terminate the unauthorised use as soon as it is discovered.

Our liability for any one claim will not exceed £5,000.

Undamaged stock cover

In the event of **damage** covered by this section, **we** will cover **you** for any additional costs and expenses **you** incur less the value of any salvage

- 1** in the event of undamaged **stock** deteriorating and/or being condemned or otherwise becoming unusable
- 2** for items that will form **stock** which **you** are obliged under contract to accept from any other party, but are unable to use.

Our liability for any one claim will not exceed £5,000.

Undamaged tenants improvements cover

In the event of **damage** covered by this section to the **building(s)** or **contents** specified in **your** schedule and as a result **your** lease is

terminated by the lessor under a valid condition of **your** lease, **we** will cover **you** for the value of undamaged tenants fixtures, fittings, alterations, installations or additions, made at **your** expense and for which **you** are responsible and which cannot be legally removed from **building(s)** occupied but not owned by **you**.

Provided that **we** will not be liable for retaining walls, foundations or supports below the surface of the lowest floor or basement or for outdoor trees, shrubs, plants or lawns.

Our liability for any one claim will not exceed £5,000.

Underground pipes and services cover

We will cover **you** for the costs incurred following **damage** which **you** are responsible for to fuel or oil pipes, cables including overhead electricity and telephone cables, septic tanks and associated pipes, underground pipes and drains including inspection covers at the **premises** or connecting the **premises** to the public mains.

Provided that **we** will not cover damage caused by gradual deterioration or wear and tear.

Our liability for any one claim will not exceed £5,000.

Unspecified storage sites cover

We will cover **stock** belonging to **you** whilst at any unspecified location within the **policy territories** used by **you** for storage.

Provided that cover only applies where the **stock** is not insured elsewhere.

Our liability for any one claim will not exceed £5,000.

Value Added Tax cover

We will cover **you** for Value Added Tax (VAT) paid by **you** which is not subsequently recoverable.

Provided that

- 1 a **your** responsibility for such VAT arises solely as a result of the reinstatement or repair of the property covered following **damage**
- b **we** have paid or have agreed to pay for the **damage**

- c if any payment made by **us** in respect of the reinstatement or repair of the **damage** is less than the actual cost of the reinstatement or repair of the **damage**, any payment under this cover resulting from that **damage** will be proportionally reduced

- 2 **your** responsibility for VAT does not arise from the replacement property covered being better or more extensive than the property which has been destroyed
- 3 where an option to reinstate the **building(s)** on another site is exercised, **our** responsibility under this cover will not exceed the amount of VAT that would have been payable had the **building(s)** been rebuilt on its original site
- 4 **our** responsibility under this cover will not include amounts payable by **you** as penalties or interest for non-payment or late payment of VAT
- 5 **you** have taken all reasonable precautions to insure adequately for VAT responsibility at the start date of the **policy** and at each subsequent renewal date.

x What is not covered

Aircraft or aerial devices exclusion

We will not cover **you** for any loss, damage, cost or expense caused by or occasioned by pressure waves caused by aircraft or other aerial devices travelling at sonic or supersonic speeds but **we** will cover subsequent **damage** which itself results from a cause covered by this section.

Brittle articles exclusion

We will not cover **you** for any loss, damage, cost or expense to glass (other than fixed glass), china, earthenware, marble or other fragile or brittle objects other than **damage** caused by a **defined peril** which is covered by this section.

Business interruption exclusion

We will not cover **you** for any loss, damage, cost or expense of any kind which occurs as a result of **business interruption** under this section, except loss of rent payable where this is shown as covered in **your** schedule.

Collapse exclusion

We will not cover **you** for any loss, destruction or damage to the **building(s)** or structure caused by its own collapse or cracking other than for **damage** caused by a **defined peril** which is covered by this section.

Collusion exclusion

We will not cover **you** for any loss, damage, cost or expense resulting from theft or attempted theft caused by or in conjunction with **you** or any of **your** partners, directors or employees or any member of **your** family or any other person lawfully at the **premises**.

Cyber exclusion

We will not cover **you** for any loss, damage, cost or expense directly or indirectly caused by, contributed to by, arising from occasioned by or resulting from

- 1 any **cyber act** including but not limited to **hacking, phishing, denial of service attack** or the transmission of any **virus or similar mechanism**
- 2 any **cyber incident**.

This exclusion shall not apply to claims for **damage** resulting from fire, lightning, explosion, aircraft or other aerial devices or articles dropped from them covered by this section.

Date recognition exclusion

We will not cover **you** for any loss, damage, cost or expense directly or indirectly caused by, contributed to or arising from the failure of equipment (including any **computer systems**) to correctly recognise any given date or to process data or to operate properly due to failure to recognise any given date.

This exclusion shall not apply to claims for **damage** resulting from a **defined peril** covered by this section.

Deliberate loss or damage exclusion

We will not cover **you** for any loss, damage, cost or expense caused, or allowed to be caused, deliberately, wilfully, maliciously, illegally or unlawfully by **you**.

Disease exclusion

- 1 Notwithstanding any provision to the contrary within this section, this section excludes any loss, damage, liability, claim, cost or expense of whatsoever nature, directly or indirectly caused by, contributed to by, resulting from, arising out of, or in connection with a **communicable disease** or the fear or threat (whether actual or perceived) of a **communicable disease** regardless of any other cause or event contributing concurrently or in any other sequence thereto.
- 2 Subject to the other terms, conditions and exclusions contained in this section, this section will cover physical damage to property insured and any **time element loss** directly resulting therefrom where such physical damage or **time element loss** is covered by this section and is directly caused by or arising from any of the following perils: fire, lightning, explosion, aircraft or other aerial devices or articles dropped from them, or impact by any road vehicle or animal, **storm**, earthquake, **flood**, subsidence, landslip, landslide, riot, riot attending a strike, civil commotion, vandalism and malicious persons, theft, escape of water from any tank, apparatus or pipe, leakage of oil from any fixed heating installation.

Electrical plant or apparatus exclusion

We will not cover **you** for any loss, destruction or damage to any electrical plant or apparatus caused by its own overrunning, short-circuiting, excessive pressure or self-heating.

If the **damage** extends to other property insured, that **damage** is covered by this section.

Excess exclusion

We will not cover **you** for the **excess** shown in **your** schedule for each and every loss in respect of each separate **premises**.

Faulty or defective workmanship exclusion

We will not cover **you** for any loss, damage, cost or expense caused by or consisting of faulty or defective workmanship, operational error, operator error, or omission by **you**, any of **your**

employees or anyone on **your** behalf, other than for **damage** caused by a **defined peril** which is covered by this section.

Fraud and dishonesty exclusion

We will not cover **you** for any loss, damage, cost or expense resulting from acts of fraud or dishonesty by **you**, **your** employees or any partner, director or member of **your** family, but **we** will cover subsequent **damage** which results from a **defined peril** covered by this section.

Miscellaneous damage exclusion

We will not cover **you** for any loss, damage, cost or expense caused by or consisting of

- 1 corrosion, rust, wet or dry rot, shrinkage, evaporation, loss of weight, dampness, dryness, marring, scratching, vermin or insects
- 2 change in temperature, colour, flavour, texture or finish
- 3 joint leakage, failure of welds, cracking, fracturing, collapse or overheating of boilers, economisers, superheaters, pressure vessels or any range of steam and feed piping connected to them
- 4 mechanical or electrical breakdown or derangement for the particular machine, apparatus or equipment where the breakdown or derangement originates

other than for **damage** caused by a **defined peril** which is covered by this section.

Money exclusion

We will not cover **you** for **money** (other than as detailed in the meaning of **contents**) unless caused by a **defined peril** covered by this section.

More specific insurance exclusion

We will not cover **you** for any property more specifically insured by **you** or on **your** behalf.

Motor vehicle and other property exclusion

We will not cover **you** for any loss or damage to, cost or expense arising from

- 1 vehicles licensed for road use (including accessories on them), caravans, trailers,

railway locomotives, rolling stock, watercraft or aircraft

- 2 property or structures in course of construction or erection and materials or supplies in connection with all such property
- 3 land, piers, jetties, bridges, culverts and excavations
- 4 livestock, growing crops or trees
- 5 pitch fibre pipes
- 6 electronic cryptographic or virtual currency or currencies of any kind

unless specifically covered by this section.

Pollution or contamination exclusion

We will not cover **you** for any loss, damage, cost or expense caused by pollution or contamination unless the **damage** is caused by

- 1 pollution or contamination which itself results from a **defined peril** provided that peril is covered by this section
- 2 any **defined peril** provided that peril is covered by this section, which itself results from pollution or contamination.

Process exclusion

We will not cover **you** for any loss, damage, cost or expense

- 1 to the property insured shown in **your** schedule caused by fire resulting from its undergoing any heating process or any process involving the application of heat
- 2 (other than by fire or explosion) to the property insured shown in **your** schedule resulting from its undergoing any process of production, packing, treatment, testing, commissioning, servicing or repair

Property in the open exclusion

We will not cover **you** for any loss, destruction or damage to fences, gates and moveable property in the open caused by wind, rain, hail, sleet, snow, **flood**, dust or theft.

Radioactive contamination exclusion

We will not cover damage, or any other loss or expense resulting or arising from damage to any property, or any consequential loss, directly or indirectly caused by or contributed to by or arising from

- 1 ionising radiations or contamination by radioactivity from any nuclear fuel, nuclear waste from the combustion of nuclear fuel, radioisotopes, or any other nuclear or radioactive material
- 2 buildings, plant or equipment for the generation of nuclear power, or production, use or storage of nuclear fuel, nuclear waste from the combustion of nuclear fuel, radioisotopes, or any other nuclear or radioactive material
- 3 transportation of nuclear fuel, nuclear waste from the combustion of nuclear fuel, radioisotopes, or any other nuclear or radioactive material
- 4 the radioactive, toxic, explosive or other hazardous properties of any explosive nuclear assembly or nuclear component of that assembly
- 5 any weapon or device employing atomic or nuclear fission and/or fusion or other like reaction or radioactive force or matter.

Steam pressure exclusion

We will not cover **you** for any loss, damage, cost or expense caused by or consisting of the bursting by steam pressure of a boiler (not being a boiler used for domestic purposes only) economiser or other vessel, machine or apparatus where internal pressure is due to steam only belonging to **you** or under **your** control.

But **we** will cover subsequent **damage** which results from a cause covered by this section.

Subsidence exclusion

We will not cover **you** for any loss, damage, cost or expense caused by or resulting from

- 1 subsidence, ground heave or landslip unless resulting from fire, explosion, earthquake or the escape of water from any tank, apparatus or pipe

- 2 coastal or river erosion

- 3 normal settlement or bedding down of new structures.

Exclusion 1 does not apply if subsidence cover is shown as being covered in **your** schedule.

Terrorism and Northern Ireland exclusion

We will not cover **you** for loss, damage, cost or expense of any nature directly or indirectly caused by, resulting from or in connection with

- 1 In England, Scotland, Wales, the Channel Islands and the Isle of Man
 - a any act of **terrorism**, regardless of any other cause or event contributing concurrently or in any other sequence to the loss
 - b any action taken in controlling, preventing, suppressing or in any way relating to any act of **terrorism**.
- 2 In Northern Ireland
 - a any act of **terrorism**, regardless of any other cause or event contributing concurrently or in any other sequence to the loss
 - b any action taken in controlling, preventing, suppressing or in any way relating to any act of **terrorism**
 - c riot, civil commotion and (except for damage or interruption to the **business** caused by fire or explosion) strikers, locked-out workers or persons taking part in labour disturbances or malicious persons.

If any of the points above are found to be invalid or unenforceable, the remainder of the points shall remain in full force and effect.

In any action, lawsuit or other proceedings or where **we** state that any loss, damage, cost or expense is not covered by this section it will be **your** responsibility to prove that they are covered.

Theft or any attempted theft exclusion

We will not cover **you** for any theft or attempted theft from the **premises** when neither **you** nor any of **your** partners, directors or employees or any member of **your** family is at the **premises** unless it involves entry to, or exit from a

building or part of a building by forcible and violent means.

Unexplained loss exclusion

We will not cover **you** for any loss, damage, cost or expense caused by or consisting of

- 1 any disappearance or shortage revealed at the time of any stocktaking or a stock check or the making of any inventory or not traceable to a specific event
- 2 misfiling or misplacing of information.

Unoccupied building exclusion

We will not cover **you** for any loss, destruction or damage to any building which is **unoccupied** caused

- 1 by freezing
- 2 by the escape of water from any tank, apparatus or pipe
- 3 by malicious persons not acting on behalf of or in connection with any political organisation other than by fire or explosion
- 4 by theft damage to the building
- 5 by theft of fabric of the building.

Valuables exclusion

We will not cover **you** for any loss, destruction or damage to jewellery, precious stones, precious metals, bullion, furs, curiosities, works of art or rare books, but **we** will cover subsequent **damage** which results from a **defined peril** covered by this section.

War risks exclusion

We will not cover any claims caused by or happening through war, invasion, act of foreign enemy, hostilities (whether war is declared or not), civil war, civil rebellion, warlike operations, revolution, insurrection or military or usurped power, confiscation, nationalisation, requisition, seizure or destruction or damage to property by or under the order of any government or public or local authority.

Wear and tear, deterioration exclusion

We will not cover **you** for any loss, damage, cost or expense caused by or consisting of inherent vice, latent defect, gradual deterioration, wear and tear, frost, change in water table level or its own faulty or defective design or materials but **we** will cover subsequent **damage** which itself results from a **defined peril** covered by this section.

Section conditions

These conditions of cover apply only to this section. **You** must comply with the following conditions to have the full protection of **your policy**. Some conditions specify circumstances whereby non-compliance will mean that **you** will not receive payment for a claim. However, **you** will be covered and **we** will pay **your** claim if **you** are able to prove that the non-compliance with these conditions could not have increased the risk of the loss which actually occurred in the circumstances in which it occurred.

Arbitration condition

If **we** agree to pay **your** claim and **you** disagree with the amount to be paid, the amount of the difference will be referred to an arbitrator who is jointly appointed in accordance with the statutory requirements. **You** will not be able to take legal action against **us** over this disagreement until the arbitrators have made their award.

Average condition

If at the time of **damage** the sum insured is less than the value of the property covered, the amount **we** will pay will be reduced proportionately.

This will not apply to

- 1 a private dwelling, house or household goods and personal effects
- 2 a building used mainly for public religious worship or for connected activities
- 3 agricultural produce from a farm in Great Britain subject to the special condition of average (if shown in **your** schedule as applicable and detailed by endorsement)

- 4 any item subject to the two conditions of average (if shown in **your** schedule as applicable and detailed by endorsement)
- 5 any item subject to the **Day one average cover**.

Contribution and average condition

If, at the time of the claim, there is any other policy covering the same property covered by this section, **we** will only be responsible for **our** proportionate share.

If any other policy is subject to any average (under insurance) condition, this section, if not already subject to average, will be subject to average in the same way as the other insurance policy.

If any other policy has a condition that prevents it from paying its share, **our** share of the claim will be limited to the proportion of the sum insured compared to the value of the property insured.

Designation condition

For the purpose of determining where necessary the heading under which any property is covered **we** agree to accept the designated category under which such property has been entered in **your** books.

Explosion condition

Any vessel, machinery or apparatus or its contents belonging to **you** or under **your** control, which needs examination to comply with any statutory regulations, will be the subject of a contract providing the required inspection.

If **you** do not comply with this condition **you** will not be covered and **we** will not make any payment in respect of a claim.

Fire protections condition

You must ensure that all fireproof doors and shutters are kept closed (except during working hours) and all fire protections (including fire extinguishing appliances) must be maintained in efficient working order during the **period of insurance**.

If **you** do not comply with this condition **you** will not be covered and **we** will not make any

payment in respect of a claim for fire and/or explosion.

Indemnity condition

Where an item is marked 'I' in **your** schedule, **your** cover is on an indemnity basis which means the cost of replacing the item less an adjustment for wear and tear.

You must declare to **us** at the start date of the **period of insurance** the sum insured for those items on this basis. Any claim for **damage** will be settled on this basis subject to

- 1 the value for those items will be calculated on this basis for the purpose of the **Average condition**
- 2 the maximum amount payable for any one item shall not exceed the sum insured for that item shown in **your** schedule.

Maintenance condition

You must maintain **your** property at the **premises** in a good state of repair.

If **you** do not comply with this condition **you** will not be covered and **we** will not make any payment in respect of a claim.

Minimum security standards condition

The following minimum level of security must be installed and maintained at the **premises** and put into use whenever the **premises** are closed for business or left unattended.

Alternative minimum security protections can only be installed with **our** written permission.

- 1 all external doors of the building(s) or any part of the building(s) used by **you** at the **premises** must be secured as follows
 - a timber doors must be fitted with an appropriate mortice deadlock which has 5 or more levers and/or conforms to British Standards BS 3621 or a cylinder lock conforming to European Norm EN 1303 together with a matching metal box striking plate, installed in accordance with the manufacturer's recommendations

- b** aluminium doors must be fitted with integral cylinder key operated mortice deadlocks to EN 1303
 - c** UPVC doors must be fitted with key operated multi-point locking devices incorporating swinging/claw locking bolts
 - d** the first closing leaf of double leaf doors must be fitted internally with bolts top and bottom
- 2** all internal doors in the building(s) that give access to any part of the building(s) not used by **you** for the purpose of the **business** are to be fitted with
 - a** timber doors must be fitted with an appropriate mortice deadlock which has 5 or more levers and/or conforms to BS 3621 or a cylinder lock conforming to European Norm EN 1303 together with a matching metal box striking plate, installed in accordance with the manufacturer's recommendations
 - b** aluminium doors must be fitted with integral cylinder key operated mortice deadlocks to EN 1303
 - c** UPVC doors must be fitted with key operated multi-point locking devices incorporating swinging/claw locking bolts
 - d** the first closing leaf of double leaf doors must be fitted internally with bolts top and bottom
- 3** all opening external basement, ground floor and other accessible windows (accessible includes a window that can be easily reached from an adjacent flat roof, a fire escape, balconies, canopies or down pipes), fanlights, roof lights, skylights must all be fitted with suitable and appropriate key operated window locks, installed in accordance with the manufacturer's recommendations. All louvered windows must have their louvers permanently fixed into place to ensure they cannot be removed from their fixings

This requirement does not apply to windows protected by solid steel bars, weld mesh or expanded metal grills securely fixed to the brickwork surrounding the window

- 4 any door or window officially designated by the local planning officer, local building control officer or as defined within the business fire risk assessment forming part of an emergency exit route, is excluded from the above requirements. The doors and windows must only be secured using suitable and appropriate internally operated quick release type of security devices, specifically designed for this purpose with mortice deadlocks conforming to BS 8621; panic bars/latches conforming to BS EN 1125 and/or emergency exit door devices conforming to BS EN 179.

If **you** do not comply with this condition **you** will not be covered and **we** will not make any payment in respect of a claim for malicious damage and/or theft or attempted theft.

Modern materials condition

Where an item is marked ‘MM’ in **your** schedule, **your** cover is on a modern materials basis which means the cost of erecting modern buildings providing comparable facilities to the existing structures.

You must declare to **us** at the start date of the **period of insurance** the sum insured for those items on this basis. Any claim for **damage** will be settled on this basis subject to

- 1 the value of the **building(s)** will be calculated on this basis for the purpose of the **Average condition**
- 2 the amount payable for any **building(s)** shall not exceed either the cost of a modern building providing comparable facilities or the sum insured, whichever is less.

Mortgagee's condition

The act of neglect of any mortgagor or occupier of any **premises** covered by this section where the risk of **damage** is increased without the authority or knowledge of any mortgagee will not prejudice the interest of the latter party (or parties) in this section, provided they tell **us** immediately when they become aware of any increased risk, pay any necessary additional premium and comply with any additional terms agreed with **us**.

Non-invalidating condition

The cover provided by this section will not be invalidated by any act or omission or an alteration where the risk of **damage** is increased unknown to **you** and beyond **your** control, provided that when **you** become aware of it, **you** tell **us** immediately and pay any necessary additional premium and comply with any additional terms agreed with **us**.

Police notification condition

You must immediately notify the police of any loss or **damage** by theft or attempted theft of the property covered by this section. **You** must take all reasonable steps for the discovery and punishment of the guilty person or persons and to trace and recover the property lost.

If **you** do not comply with this condition **you** will not be covered and **we** will not make any payment in respect of a claim for theft or attempted theft.

Protective and locking devices condition

All locks, bolts, bars, window fastenings and other protective and locking devices installed at the **premises** must be maintained and put into operation whenever the **premises** are closed for business or left unattended.

If **you** do not comply with this condition **you** will not be covered and **we** will not make any payment in respect of a claim for malicious damage and/or theft or attempted theft.

Reinstatement condition

This condition is not applicable to motor vehicles and their accessories, personal effects or **stock**.

Where an item is marked 'R' in **your** schedule, **your** cover is on a reinstatement basis which means the cost of reinstatement of the property lost, destroyed or damaged.

Provided that

- 1 **our** liability for the repair or restoration of property that has suffered **damage** in part only will not exceed the amount **we** would have been liable for had the property been completely destroyed

- 2 if the sum insured at the time of any **damage** is less than 85% of the cost which would have been incurred in reinstating the whole of the property covered by any item, at the time of rebuilding or replacement, the amount payable by **us** will be proportionately reduced
- 3 no payment will be made beyond the amount which would have been payable in the absence of this cover
 - a unless reinstatement commences and proceeds without unreasonable delay
 - b until reinstatement costs have been actually incurred
 - c if the property covered by this section at the time of its **damage** has any other insurance in force which is not on the same basis of reinstatement
- 4 all the terms and conditions of the **policy** will apply
 - a to any claim payable under this condition unless they have been amended by this condition
 - b if any claim is payable as if this condition had not been included.

Reinstatement of sum insured after loss condition

In the event of **damage** the sum insured by this section will be automatically reinstated from the date of the **damage** unless written notice is given to the contrary either by **us** or by **you**.

Provided that in the event of reinstatement **you** will

- 1 pay the necessary premiums that may be required for the reinstatement, from the date of reinstatement
- 2 complete any additional risk improvements which **we** may reasonably require.

Rent condition

Any cover on rent only applies if the **premises** or any part of them is unfit for occupation following **damage**.

The amount payable will not exceed the proportion of the sum insured on rent relating to the period necessary for reinstatement.

Security of premises condition

If the cover provided by this section has been granted following a survey of **your premises**, **you** must not alter door and window fastenings and other security devices (except as may be provided for in any further protection endorsement shown in **your** schedule) without **our** written consent. In **your** own interest, **you** should give early notification of proposed changes so that if necessary a further survey can be completed.

If **you** do not comply with this condition, **you** will not be covered and **we** will not make any payment in respect of a claim for malicious damage and/or theft or attempted theft.

Subrogation waiver condition

In the event of a claim under this section **we** agree to waive any rights, remedies or relief to which **we** might have become entitled by subrogation against

- 1 any company standing in relation of parent to subsidiary (or subsidiary to parent) to **you**
- 2 any company which is a subsidiary of a parent company of which **you** are a subsidiary

in each case as defined by current law at the time of the **damage**.

Transfer of interest condition

If at the time of **damage** **you** have entered into a contract to sell **your** interest in any **building(s)** covered by this section and the sale has not but subsequently completes, the purchaser will have the full protection of this section on exchange of contracts, provided the **building(s)** are not covered by any other insurance arranged by the purchaser.

Unoccupied buildings condition

The following must be complied with

- 1 **You** must tell **us** as soon as **you** become aware
 - a of any buildings or portions of buildings at the **premises** becoming **unoccupied** or **unoccupied** buildings or portions of **unoccupied** buildings at the **premises** becoming occupied and **you** agree to

- i pay any necessary additional premium as may be required by **us**
 - ii complete any additional risk improvements which **we** may reasonably require
 - b of any **damage** to the **unoccupied** buildings or **unoccupied** portions of buildings whether the **damage** is covered or not
- 2 In respect of **unoccupied** buildings or **unoccupied** portions of buildings, **you** must ensure that
 - a the buildings are inspected internally and externally at least once a week by **you** or on **your** behalf and a written record of the inspection is maintained by **you**
 - b all refuse and waste materials are removed from the interior of the buildings and removed from the **premises**
 - c **you** will secure the **premises** and put all protective, locking devices and any alarm protection in effective operation
 - d gas, water and electricity services (except electricity supply to maintain any fire or intruder alarm systems) and any fuel supplies are permanently shut off at the switch or stopcock where they enter the buildings (or in the case of individual flats or portions of a building, where they enter the flat or **unoccupied** part of the building)
 - e **you** implement any additional protections that **we** may require within the time scale **we** specify
 - f all **damage** to the **premises** must be rectified immediately
 - g letterboxes must be sealed
 - h the final exit door of the building(s) must be secured as follows
 - i timber doors must be fitted with an appropriate mortice deadlock which has 5 or more levers and/or conforms to British Standards BS 3621 or European Norm EN 1303 together with a matching metal box striking plate, installed in

- accordance with the manufacturer's recommendations
- ii aluminium doors must be fitted with integral cylinder key operated mortice deadlocks to EN 1303
- iii UPVC doors must be fitted with key operated multi-point locking devices incorporating swinging/claw locking bolts
- iv the first closing leaf of double leaf doors must be fitted internally with bolts top and bottom.

If **you** do not comply with this condition **you** will not be covered and **we** will not make any payment in respect of a claim for fire and/or explosion and/or malicious damage and/or theft or attempted theft.

Workmen's condition

Joiners and other tradesmen are allowed in or on the **premises** covered by this section to make repairs or minor structural alterations without prejudice to this insurance, provided that if the repairs or minor structural alterations involve the use of heat, **you** must comply with the Hot work permit system condition if applicable

Specific section conditions and covers

The following conditions and covers only apply if shown in **your** schedule.

You must comply with the following conditions to have the full protection of **your policy**. Some conditions specify circumstances whereby non-compliance will mean that **you** will not receive payment for a claim. However, **you** will be covered and **we** will pay **your** claim if **you** are able to prove that the non-compliance with these conditions could not have increased the risk of the loss which actually occurred in the circumstances in which it occurred.

1 Day one average cover

Subject to the following special conditions, the amount payable for property under sums insured marked 'DA' in **your** schedule will be calculated as reinstatement of the **damage** to the property.

For this purpose, reinstatement means

- 1 the rebuilding or replacement of damaged property, which provided **our** liability is not increased may be completed
 - a in any manner suitable to **your** requirements
 - b upon another site
- 2 the repair or restoration of **damaged** property

to a condition equivalent to or the same as but no better or more extensive than its condition when new.

You have stated in writing the **declared value** shown in **your** schedule, for each item insured and the premium has been calculated accordingly.

Special conditions applicable to Day one average cover

- 1 At the start of each **period of insurance** **you** must tell **us** the **declared value** of each item insured. Without this declaration the last amount declared by **you** will be taken as the **declared value** which will be adjusted for inflation for the next **period of insurance**.
- 2 If at the time of **damage** the **declared value** of the property covered by any item is less than the cost of reinstatement at the start of the **period of insurance**, **our** liability for any **damage** will be proportionately reduced and will be limited to the proportion that the **declared value** bears to the cost of reinstatement.
- 3 **Our** liability for the repair or restoration of property damaged in part only, will not exceed the amount which would have been paid had the property been completely destroyed.
- 4 No payment will be made beyond the amount that would have been payable in the absence of this Day one average cover
 - a unless reinstatement starts and proceeds without unreasonable delay
 - b until the cost of reinstatement has been incurred
 - c if the property covered by this section at the time of the **damage** is insured by any other insurance which is not upon the same basis of reinstatement.

If **you** do not comply with Special condition 4 above or **you** decide not to reinstate the property

insured in a condition equal to but not better or more extensive than its condition when new, then this cover is cancelled and **our** and **your** rights and liabilities in respect of the **damage** will be subject to the following Condition of average (under insurance).

Condition of average (under insurance)

The cover for each item is deemed to be subject to average i.e. if the property at the time of **damage** is valued at more than 115% of the **declared value** stated in **your** schedule then **you** will be considered as self insured for the difference and will be responsible for a proportionate share of the loss.

2 Stock declaration condition

The premium for any item in **your** schedule where the sum insured is marked 'D' is provisional and subject to adjustment as below.

Within 30 days of the end of each calendar month **you** will declare to **us** the value of the property on the last day of that month. If a declaration is not given, **you** will be deemed to have declared the sum insured as the value.

On the expiry of each **period of insurance** the actual premium will be calculated at the rate applicable on the total of the amounts declared divided by the number of the declarations, where a declaration is not received the sum insured will be used. If the actual premium is greater than the provisional premium **you** will pay the difference to **us**. If it is less **we** will pay the difference to **you**.

The sum insured will not be reduced by the amount of any loss. **You** will have to pay an appropriate extra premium on the amount of the loss from the date of the loss until the expiry of the **period of insurance**.

For cover to apply every insurance on such property covering **damage** must be on a similar basis of declaration adjustment.

3 Subsidence cover

If this cover is shown as covered in **your** schedule, the **Subsidence exclusion** under the heading 'What is not covered' does not apply.

We will cover **you** for **damage** to the property insured caused by subsidence, ground heave or landslip of any part of the site on which the **building(s)** stands, but **we** will not cover

- 1 the **excess** shown in **your** schedule for each and every claim in respect of each separate **premises**
- 2 **damage** to yards, car parks, roads, pavements, walls, gates and fences unless also affecting a building covered under this section which is also damaged at the same time by the same cause
- 3 **damage** caused by or consisting of
 - a the normal settlement or bedding down of new structures
 - b the settlement or movement of made-up ground
 - c coastal or river erosion
 - d defective design or workmanship or the use of defective materials
 - e fire, subterranean fire, explosion, earthquake or the escape of water from any tank, apparatus or pipe
- 4 **damage** which originated before the start of this cover
- 5 **damage** resulting from
 - a demolition, construction, structural alteration or repair of any property or
 - b ground works or excavation at the **premises**.

Special conditions applicable to the Subsidence cover

- 1 **You** must notify **us** as soon as possible if **you** become aware of any demolition, ground works, excavation or construction being carried out on any adjoining site and **we** will then have the right to vary the terms or cancel the cover.

If **you** do not comply with this condition **you** will not be covered and **we** will not make any payment in respect of a claim for subsidence, ground heave or landslip.

4 Deep fat frying condition

You must ensure that

- 1 all deep fat frying equipment must be fitted with
 - a a fully functioning thermostat to prevent the temperature of cooking oils or fats rising above 205 degrees centigrade or the manufacturer's maximum temperature if less than 205 degrees centigrade
 - b a separate fully functioning high temperature limit control of a non-self-resetting type to shut off the heat source should the temperature of the fat exceed 230 degrees centigrade
- 2 a means for the emergency shutdown of power fuel supply and the extraction system of all cooking equipment must be provided. The emergency shutdown must be clearly labelled, easily accessible and safely located
- 3 all deep fat frying equipment including flues and exhaust ducting must be securely fixed and free from contact with combustible material. The exhaust ducting must be constructed of and supported by galvanised or stainless steel materials with watertight seams and joints
- 4 a fire blanket must be situated in the cooking area and must be in such a position where it can be safely reached in the event of fire
- 5 a 6 litre Class F wet chemical fire extinguisher must be situated where it is easily accessible in the vicinity of any deep fat frying equipment and must be maintained under an annual service contract with a British Approvals for Fire Equipment (BAFE) registered contractor
- 6 all extraction hoods, canopies, filters and grease traps must be cleaned at least once every 7 days and a written record must be kept by **you** detailing each cleaning activity
- 7 all internal surfaces of all ducting and extraction motors must be cleaned at least once every 12 months by a specialist contractor who is accredited by the British Engineering Services Association (BESA) complying with the standards laid down by BESA 'TR19® Grease – Fire Risk Management of Grease Accumulation within Kitchen Extract Systems'
- 8 all waste oil must be kept in closed metal (or heat resistant plastic) containers and removed from the buildings at the end of each working day and from the **premises** at least once a week
- 9 where fire suppression equipment is fitted
 - a the installation must be maintained annually under contract by the equipment manufacturer or their appointed approved contractors
 - b the installation must have both manual and automatic operation and it must automatically shut down the heat supply and extraction system on activation
 - c the installation must be recharged and fully operational within 48 hours following activation
- 10 the installation and connection of
 - a gas fired deep fat frying equipment to the gas supply must be carried out by a GAS SAFE registered contractor
 - b electrical powered deep fat frying equipment must be carried out by a member of National Inspection Council for Electrical Installation Contracting (NICEIC), Electrical Contractors Association (ECA), NAPIT or SELECT (Scotland only) registered contractor
- 11 all deep fat frying equipment, including safety devices, should be serviced at frequencies in accordance with the original equipment manufacturers instructions by suitably qualified personnel.

If **you** do not comply with this condition **you** will not be covered and **we** will not make any payment in respect of a claim for fire and/or explosion.

5 No smoking condition

You must ensure that

- 1 smoking is not permitted in enclosed or substantially enclosed buildings and standard no smoking notices must be displayed in prominent positions
- 2 any outside area designated for smoking must be kept clear of combustible materials and provisions must be made for the extinguishment of lighted materials.

If **you** do not comply with this condition **you** will not be covered and **we** will not make any payment in respect of a claim for fire and/or explosion.

6 Hot work permit system condition

You must ensure that for any construction, maintenance, repair or activity at the **premises** which involves **hot work**, **you** must enforce a hot work permit system under which **you** must ensure that

- 1 prior to any work commencing, the contractor or person employed to complete the work completes and signs a hot work permit which is available upon request from **us**
- 2 the precautions and systems of work shown on the hot work permit are complied with at each stage of the work.

If **you** do not comply with this condition **you** will not be covered and **we** will not make any payment in respect of a claim for fire and/or explosion.

7 Waste condition

You must ensure that

- 1 all oily or greasy waste and cloths must be kept in metal bins with close fitting metal lids and removed from the buildings at the end of each working day and from the **premises** at least once a week
- 2 all other trade refuse must be swept up and removed daily from the buildings and from the **premises** at least once a week.

If **you** do not comply with this condition **you** will not be covered and **we** will not make any payment in respect of a claim for fire and/or explosion.

8 Alarm condition

For cover to operate in respect of **damage** following entry or attempted entry to or exit from the **alarmed buildings** by forcible and violent means **you** must ensure that the following must be complied with

- 1 the **alarmed buildings** are protected by an **intruder alarm system** designed, installed and maintained to British Standard BS 4737 or European Norm EN 50131 including, where stipulated by **us** or the local police authority, British Standard BS8243 for

installation of intruder alarm systems designed to generate confirmed alarms

- 2 the intruder alarm installation and maintenance company must be both
 - a a member of an alarm inspectorate which is accredited by the United Kingdom Accreditation Service (UKAS) to BS EN ISO/IEC 17065 or BS EN 17021and
 - b recognised as an approved company by National Security Inspectorate (NSI) or Security Systems and Alarm Inspectorate Board (SSAIB) for the design, installation and maintenance of intruder alarm systems
- 3 the **intruder alarm system** must be maintained in full and efficient working order under a contract to provide both corrective and preventative maintenance, as per the requirements of BS 4737 or EN 50131 with the installing company or such other company as agreed with **us**. Where remote alarm signalling is required, the signal transmission must be transmitted to an alarm-receiving centre fully compliant with BS 5979 or BS EN 50518 and operated by a company accredited and operating to a quality management system in accordance with EN ISO 9000
- 4 no alteration to or substitution of
 - a any part of the **intruder alarm system**
 - b the maintenance contract
 - c the structure of the **alarmed buildings** or changes to their layout which would affect the effectiveness of the **intruder alarm system**
 - d the procedures agreed with **us** for police or any other response to any activation of the **intruder alarm system**be made without **our** written agreement
- 5 the **alarmed building** will not be left unattended without **our** agreement
 - a unless the **intruder alarm system** is set in its entirety with the means of communication used to transmit signals (including both alarm transmission

systems for dual signalling systems) in full operation

- b** if the police have withdrawn their response to alarm activations

If the alarm system is not fully operative **you** must make arrangements for the **premises** to be attended until the **intruder alarm system** is fully operational

- 6** **you** must keep all security codes for the **intruder alarm system** confidential and all codes and keys must be removed from the **premises** when they are left unattended
- 7** **you** will appoint at least two **key holders** and give written details (which must be kept up to date) to the alarm company and either the police or the alarm-receiving centre
- 8** in the event of notification of any activation of the **intruder alarm system** or interruption of means of communication, including one or both alarm transmission systems for dual signalling systems, during any period the **intruder alarm system** is set a **key holder** will attend the **premises** as soon as reasonably possible

If the alarm cannot be reset following the **key holder** attendance **you** must make arrangements for the **premises** to be attended until the **intruder alarm system** is fully operational

- 9** in the event of **you** receiving any notification
 - a** that the police attendance in response to alarm signals or calls from the **intruder alarm system** may be withdrawn, or the level of response reduced or delayed
 - b** from a local authority or magistrate imposing any requirement for abatement of nuisance
 - c** that the **intruder alarm system** cannot be returned to or maintained in full working order

You will tell **us** as soon as possible but in any event within 7 days and comply with any subsequent requirements stipulated by **us**.

If **you** do not comply with this condition **you** will not be covered and **we** will not make any payment in respect of a claim for malicious damage and/or theft or attempted theft.

Production property section - Selected all risks

Contents of this section

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Your schedule will show if this section is covered.

Meanings of defined terms

These meanings apply within **your** Production property section – Selected all risks. If a word or phrase has a defined meaning it will be highlighted in bold blue print and will have the same meaning wherever it is used in this section. The meaning of defined terms that apply throughout **your policy**, and not just this section, can be found in the General introduction section of **your policy**.

Alarmed buildings

The **building(s)** or those portions of the **building(s)** used by **you** at the **premises** protected by the **intruder alarm system**.

Building(s)

The buildings, outbuildings, extensions and garages at the **premises** occupied by **you** or under **your** control, as shown in **your** schedule.

Communicable disease

Any disease which can be transmitted by means of any substance or agent from any organism to another organism where:

- 1 the substance or agent includes, but is not limited to, a virus, bacterium, parasite or other organism or any variation thereof, whether deemed living or not, and
- 2 the method of transmission, whether direct or indirect, includes but is not limited to, airborne transmission, bodily fluid transmission, transmission from or to any surface or object, solid, liquid or gas or between organisms, and
- 3 the disease, substance or agent can cause or threaten damage to human health or human welfare or can cause or threaten damage to, deterioration of, loss of value of, marketability of or loss of use of property.

Computer equipment

Computer and auxiliary equipment used for electronic processing communication and storage of **data** including

- 1 fixed disks, interconnecting wiring and telecommunications systems
 - 2 temperature and environmental control equipment, power supply voltage regulating and other protective equipment used exclusively in connection with the computer equipment
 - 3 **portable computer equipment**
 - 4 **computer records**
- belonging to **you** or for which **you** are responsible.

Computer records

All current and back up computer records (excluding fixed disks and paper records of any description) incorporating stored programs and/or information stored on them.

Computer systems

Computer or other equipment or component or system or item which processes, stores, transmits or receives **data**.

Cyber act

An unauthorised, malicious or criminal act or series of related unauthorised, malicious and criminal acts, regardless of time and place, or the threat or hoax thereof involving access to, processing of, use of or operation of any **computer systems**.

Cyber incident

- 1 any error or omission or series of related errors or omissions involving access to, processing of, use of or operation of any **computer systems**; or
- 2 any partial or total unavailability or failure or series of related partial or total unavailability or failures to access, process, use or operate any **computer systems**.

Damage

Physical loss or destruction or damage.

Data

Any data of any sort whatever, including without limitation tangible or intangible data, and any programs or software, bandwidth,

cryptographic keys, databases, documents, domain names or network addresses or anything similar, files, interfaces, metadata, platforms, processing capability, storage media, transaction gateways, user credentials, websites, or any information whatever.

Defined peril

Fire, lightning, explosion, aircraft or other aerial devices or articles dropped from them, riot, civil commotion, strikers, locked-out workers, persons taking part in labour disturbances, malicious persons other than thieves, earthquake, **storm**, **flood**, escape of water from any tank, apparatus or pipe or impact by any road vehicle or animal.

Denial of service attack

Any actions or instructions constructed or generated with the ability to damage, interfere with or otherwise affect the availability or performance of networks, network services, network connectivity or **computer systems**. Denial of service attacks include, but are not limited to, the generation of excess traffic into network addresses, the exploitation of system or network weaknesses, the generation of excess or non-genuine traffic between and amongst networks and the procurement of such actions or instructions by other **computer systems**.

Excess

First amount of any claim or claims for which **you** are responsible.

Flood

Damage caused by

- 1 the escape of water from the normal confines of any natural or artificial water course, lake, reservoir, canal, drain or dam
- 2 inundation from the sea
- 3 inundation by rainwater or rainwater-induced run off other than where the inundation is solely caused by or solely results from ingress of rainwater through or via the roof of the building

whether resulting from storm or not.

Hacking

Unauthorised access to any **computer systems**, whether **your** property or not.

Intruder alarm system

The component parts including the means of communication used to transmit signals to the alarm-receiving centre.

Key holder

You or any person or key holding company authorised by **you**, who is available at all times to accept notification of faults to or alarm signals from the **intruder alarm system** and to attend and allow access to the **premises**.

Money

Bills of exchange, uncrossed promissory notes, cash, bank and currency notes, uncrossed cheques, giro cheques including preauthenticated giro cheques, uncrossed postal orders, uncrossed money orders, uncrossed warrants, current postage stamps, unused units in franking machines, National Savings stamps and certificates, National Insurance stamps, trading stamps, gift tokens, gaming machine tokens, lottery tickets (excluding scratch cards held in stock for resale), customer redemption vouchers, authenticated travel tickets, phone cards (excluding phone cards held in stock for resale), holiday with pay stamps, luncheon vouchers, securities for money, travel warrants, crossed warrants, credit company sales vouchers, debit card sales vouchers, crossed cheques, crossed giro drafts, crossed postal orders, crossed money orders, crossed national giro bank orders, crossed promissory notes, crossed bankers drafts, premium bond certificates, VAT purchase receipts, credit card counterfoils, premium bonds, savings bonds, stamped National Insurance cards and National savings certificates.

Phishing

Any access or attempted access to **data** made by means of misrepresentation or deception.

Portable computer equipment

Any

- 1 laptops, palmtops and notebooks
- 2 personal digital assistants
- 3 projectors, printers and other peripheral devices which are designed to be carried and used in conjunction with other portable **computer equipment**
- 4 removable satellite navigation systems
- 5 digital cameras
- 6 mobile phones

belonging to **you** or for which **you** are responsible.

Premises

The premises shown in **your** schedule.

Production(s)

Any film, video or media production, conference, event, festival or product launch undertaken by **you** in the course of the **business**.

Props, sets or wardrobe

Any props, sets, scenery, costumes, models, wardrobe and similar theatrical property belonging to **you** or for which **you** are responsible but not including

- 1 photographic or videographic equipment, sound equipment, lighting equipment, grip equipment, portable electrical equipment or generators
- 2 animals
- 3 **money**, credit cards, passports, deeds, letters of credit or travel tickets
- 4 permanent buildings or structures (unless specifically constructed by **you** for the purposes of any **production**)
- 5 mechanically propelled vehicles or accessories on them, caravans, trailers, railway locomotives, rolling stock, watercraft or aircraft (unless otherwise shown in **your** schedule)
- 6 film or tape (unless used as a prop in connection with a **production**)

- 7 **valuables** exceeding £10,000 in total (unless otherwise shown in **your** schedule).

Storm

Storm excluding damage by **flood**.

Technical equipment

- 1 film, video, projection, sound, recording, lighting, grip, generators, staging, post-production and ancillary equipment but not including any film, video or sound recording tape contained in such equipment or any **computer equipment**
- 2 property used in connection with any film, video or media production, conference, event, festival or product launch
- 3 other items described in **your** schedule (if applicable)

belonging to **you** or for which **you** are responsible.

Terrorism

In England, Scotland and Wales: Acts of persons acting on behalf of, or in connection with, any organisation which carries out activities directed towards the overthrowing or influencing, by force or violence, of His Majesty's Government in the United Kingdom or any other government de jure or de facto.

In Northern Ireland: an act including, but not limited to the use of force or violence and/or threat thereof of any person or group(s) of persons, whether acting alone or on behalf of or in connection with any organisation(s) or government(s) committed for political, religious, ideological or similar purposes, including the intention to influence any government and/or put the public or any section of the public in fear.

In the Channel Islands, the Isle of Man and Rest of the World: an act of any person(s) acting on behalf of or in connection with any organisation which carries out activities directed towards the overthrowing or influencing by force or violence of any government de jure or de facto.

Time element loss

Business interruption, contingent business interruption or any other consequential losses.

United Kingdom

Anywhere in Great Britain, Northern Ireland, the Channel Islands or the Isle of Man.

Valuables

Jewellery, precious stones, precious metals, bullion, furs, curiosities, works of art or rare books belonging to **you** or for which **you** are responsible.

Virus or similar mechanism

Program code, programming instruction or any set of instructions constructed with the purpose and ability, or purposely used, to damage, interfere with, adversely affect, infiltrate or monitor computer programs, **computer systems**, **data** or operations, whether involving self-replication or not. The meaning of virus or similar mechanism includes but is not limited to trojan horses, worms and logic bombs and the exploitation of bugs or vulnerabilities in a computer program to damage, interfere with, adversely affect, infiltrate or monitor as above.

✓ What is covered

We will cover **you** for **damage** to any of the property insured detailed in **your** schedule occurring during the **period of insurance** at the location shown in **your** schedule, including whilst in transit, which are

- 1 lost, stolen or destroyed and which cannot be recovered or found. **We** will cover **you** for an amount equal to the replacement value of the property at the date of the loss
- 2 damaged in any other way. **We** will cover **you** for an amount sufficient to repair the damaged property or at **our** option replace or reinstate such property or any part of it.

We will pay **you** up to the sum insured shown in **your** schedule for any one item adjusted in accordance with the **Inflation protection cover** below.

Accidental discharge of gas flooding systems cover

We will cover **you** for the cost of recharging gas flooding systems, installed solely for the

protection of the property insured, following loss of gas due to **damage** covered by this section occurring during the **period of insurance**.

Provided that

- 1 **we** will not be liable for any claim as a result of gradual leakage, discharge or drop in pressure
- 2 **You** will maintain, at **your** own expense, the gas flooding system in accordance with the supplier's and/or maker's recommendations.

We will not pay for costs recoverable under any other section of **your policy**.

Our liability will not exceed £25,000 in any one **period of insurance**.

Alternative hire costs cover

We will cover **you** for the costs incurred in hiring alternative property insured following **damage** occurring during the **period of insurance** to the property insured detailed in **your** schedule at the location shown in **your** schedule for the sole purpose of being able to continue filming or to fulfil contractual commitments.

We will also pay for any ancillary or transit costs incurred with **our** prior written consent.

Provided that **our** liability shall commence from the date of the **damage** and end when the damaged property has been repaired or replaced or when the hire agreement expires whichever occurs first.

Our total liability will not exceed £100,000 in any one **period of insurance**.

Branded merchandise cover

In the event of **damage** covered by this section to property insured consisting of branded merchandise, any salvage will not be disposed of or sold by **us** without **your** consent. If such salvage is not sold, the basis of claims settlement will be the value agreed by **you** and **us**.

Capital additions cover

We will cover **you** for any newly acquired **props, sets or wardrobe** or **technical equipment** which is not insured elsewhere or any alterations or additions to such property (but not for any appreciation in value)

Provided that

- 1 the most **we** will pay for any one claim for such property is the lesser of £250,000 or 10% of the sum insured shown in **your** schedule
- 2 **you** give **us** details in writing of the acquisition, addition or alteration as soon as possible but in any event within 30 days
- 3 **you** ensure specific insurance is arranged with **us** from the date **you** become responsible
- 4 the provisions of this cover will be fully maintained in addition to any specific insurance effected under **3** above.

Capital additions cover (Computers)

We will cover **you** for any additional **computer equipment** purchased by **you** during **the period of insurance** for which **you** are responsible, at any existing **premises** shown in **your** schedule until the next renewal date at no additional charge.

Provided that **you** give **us** details in writing of the purchase as soon as possible but in any event within 30 days.

Our liability will not exceed the lesser of 10% of the **computer equipment** sum insured shown in **your** schedule or £250,000 in any one **period of insurance**.

Customs duty cover

In the event of goods imported by **you** into any territory covered by this section in the course of the **business** not being received due to **damage** covered by this section to such goods prior to their receiving customs clearance, **we** will cover **you** for the amount of any import duty paid by **you** in advance that is not otherwise recoverable from the customs authority.

You must provide **us** with a copy of the import invoice if requested by **us**.

Our liability for any one claim will not exceed £5,000 and **our** total liability in any one **period of insurance** will not exceed £10,000.

Expediting costs cover

We will pay for the costs necessarily and reasonably incurred in making temporary repairs and/or expediting the repair, reinstatement replacement of **computer equipment** as a result of **damage** covered by this section occurring

during the **period of insurance** to **computer equipment**.

We will not pay for costs recoverable under any other section of **your policy**.

Our liability for any one claim will not exceed the lesser of 50% of the **computer equipment** sum insured shown in **your** schedule or £50,000.

Inadvertent omission of third party property cover

Provided that **you** have notified **us** of **your** intention to cover all property in which **you** have an interest and that **you** believe all the property is covered, **we** will cover **you** for **damage** to property held in trust or hired in by **you** in connection with the **business** that has been inadvertently omitted. **We** will provide cover within the terms of this section, subject to payment of the premium for all such property from the start of this section or from the date of **your** interest in such property if it is held in trust or hired in by **you** after the start of this section.

Provided that the value of the property which has been inadvertently omitted shall be added to the sum insured as soon as possible but in any event within 30 days of discovery of the omission.

We will not cover **you** for

- 1 property that is specifically insured elsewhere
- 2 damage for which **you** are not legally liable to pay any compensation
- 3 property that would be otherwise covered under any other cover provided by this section.

Our total liability for all claims will not exceed £250,000 in any one **period of insurance**.

Inflation protection cover

We will adjust the sums insured in line with suitable indices and the renewal premium for this section will be based on the adjusted sums insured.

Involuntary betterment cover

In the event that new property of like kind and quality is not available, new property which is as similar as possible to that which was lost or

damaged and is capable of performing the same function, will be provided as a replacement and will be deemed to be new property of like kind and quality and in no event will this be considered as a betterment to **you**.

We will also pay the cost of purchasing and installing technologically current equipment which is needed due to incompatibility between

- 1 new equipment installed to replace the damaged equipment, and
- 2 undamaged existing equipment at the same or an interdependent location

provided that

- a the **damage** is covered by this section
- b **we** will only pay the amount sufficient to enable **you** to resume operations in substantially the same manner as before the **damage**.

For the purpose of the application of any **excess**, the **damage** and the necessity to replace incompatible equipment shall be regarded as one occurrence.

Munitions of war cover

The **War risks exclusion** will not apply to **damage** to property insured under this section from or occasioned by the detonation of World War II munitions of war only or parts thereof in or within five miles of the **premises** situated in the United Kingdom.

We will not pay under this cover for any property insured located outside of the United Kingdom.

Property on loan cover

We will cover property loaned to **you** in substitution of insured property temporarily unavailable due to cleaning, renovation, repair or maintenance requirements. **We** will provide cover for the duration of the loan period. **We** will not cover property that is specifically insured elsewhere.

Our total liability in any one **period of insurance** will not exceed £100,000.

Valuables pairs and sets cover

If **damage** covered by this section occurs to an item of **valuables** forming part of a pair or set,

the amount **we** pay will be a reasonable and fair proportion of the total value of the pair or set allowing for the special value which that item may have as a pair or set provided such **damage** is not deemed to mean a total loss or destruction of the pair or set.

x What is not covered

Aircraft or aerial devices exclusion

We will not cover **you** for any loss, damage cost or expense caused by or occasioned by pressure waves caused by aircraft or other aerial devices travelling at sonic or supersonic speeds but **we** will cover subsequent **damage** which itself results from a cause covered by this section.

Confiscation or detention exclusion

We will not cover **you** for any claim arising out of official confiscation or detention. This exclusion will not apply to confiscation or detention of any property insured detailed in **your** schedule provided that **our** total liability will not exceed £100,000 in any one **period of insurance**.

We will not cover **you** for any consequential loss as a result of such confiscation or detention.

Cyber exclusion

We will not cover **you** for any loss, damage, cost, or expense directly or indirectly caused by, contributed to by, arising from, occasioned by or resulting from

- 1 any **cyber act** including but not limited to **hacking, phishing, denial of service attack** or the transmission of any **virus or similar mechanism**
- 2 any **cyber incident**.

This exclusion shall not apply to claims for **damage** resulting from fire, lightning, explosion, aircraft or other aerial devices or articles dropped from them covered by this section.

Date recognition exclusion

We will not cover **you** for or any loss, damage, cost, or expense directly or indirectly caused by, contributed to or arising from the failure of equipment (including any **computer systems**) to correctly recognise any given date or to process data or to operate properly due to failure to recognise any given date.

This exclusion shall not apply to claims for **damage** resulting from a **defined peril** covered by this section.

Deliberate loss or damage exclusion

We will not cover **you** for any loss, damage, cost, or expense caused, or allowed to be caused, deliberately, wilfully, maliciously, illegally or unlawfully by **you**.

Disease exclusion

- 1 Notwithstanding any provision to the contrary within this section, this section excludes any loss, damage, liability, claim, cost or expense of whatsoever nature, directly or indirectly caused by, contributed to by, resulting from, arising out of, or in connection with a **communicable disease** or the fear or threat (whether actual or perceived) of a **communicable disease** regardless of any other cause or event contributing concurrently or in any other sequence thereto.
- 2 Subject to the other terms, conditions and exclusions contained in this section, this section will cover physical damage to property insured and any **time element loss** directly resulting therefrom where such physical damage or **time element loss** is covered by this section and is directly caused by or arising from any of the following perils: fire, lightning, explosion, aircraft or other aerial devices or articles dropped from them, or impact by any road vehicle or animal, **storm**, earthquake, **flood**, subsidence, landslip, landslide, riot, riot attending a strike, civil commotion, vandalism and malicious persons, theft, escape of water from any tank, apparatus or pipe, leakage of oil from any fixed heating installation.

Electrically driven machinery exclusion

We will not cover **you** for any loss, damage, cost or expense to any electrically driven machine or apparatus directly caused by its own overrunning, short-circuiting, excessive pressure, self-heating or by the application of excessive electrical energy or mechanical derangement not arising from external impact.

Excess exclusion

We will not cover **you** for the **excess** shown in **your** schedule. Where there is damage to more than one item described in **your** schedule as a result of a loss, **we** will only apply one **excess**, this being the highest amount shown against any of the items specified that have suffered damage.

External conditions exclusion

We will not cover **you** for any loss, damage, cost, or expense arising from or attributable to the action of light, atmosphere, moths, parasites or vermin.

Fraud and dishonesty exclusion

We will not cover **you** for any loss, damage, cost, or expense which results from acts of fraud or dishonesty by **you**, **your** employees or any partner, director or member of **your** family but **we** will cover subsequent **damage** which results from a **defined peril** covered by this section.

Miscellaneous damage exclusion

We will not cover **you** for any loss, damage, cost or expense caused by or consisting of

- 1 loss of use of the property insured or any other consequential loss
- 2 wind, rain, hail, sleet, snow, **flood** or dust to property insured in the open (other than property insured consisting of **technical equipment** whilst being used externally in connection with any film, video or media production, conference, event, festival or product launch)
- 3 damage to film, video and sound recording tape which suffers damage at custom points as a result of exposure by surveillance machines
- 4 resulting from the property insured undergoing any process of production, packing, treatment, testing, commissioning, servicing or repair
- 5 loss, damage, cost or expense that is recoverable under any guarantee or maintenance, rental, hire or lease agreement

- 6 penalties for delay or detention or in connection with guarantees of performance or efficiency
- 7 any disappearance or shortage revealed at the time of any stocktaking or a stock check or the making of any inventory or not traceable to a specific event
- 8 mechanical breakdown or derangement.

Pollution or contamination exclusion

We will not cover **you** for any loss, damage, cost or expense caused by pollution or contamination except for **damage** to property insured occurring during the **period of insurance** caused by

- 1 pollution or contamination which itself results from a **defined peril** provided that peril is covered by this section
- 2 any **defined peril** provided that peril is covered by this section, which itself results from pollution or contamination
- 3 pollution or contamination which itself results from an occurrence not otherwise excluded, other than a **defined peril**
- 4 an occurrence not otherwise excluded, other than a **defined peril**, which itself results from pollution or contamination.

Our total liability in any one **period of insurance** for items **3** and **4** will not exceed £500,000 or the applicable item sum insured shown in **your** schedule whichever is lower.

Radioactive contamination exclusion

We will not cover damage, or any other loss or expense resulting or arising from damage to any property, or any consequential loss, directly or indirectly caused by or contributed to by or arising from

- 1 ionising radiations or contamination by radioactivity from any nuclear fuel, nuclear waste from the combustion of nuclear fuel, radioisotopes, or any other nuclear or radioactive material
- 2 buildings, plant or equipment for the generation of nuclear power, or production, use or storage of nuclear fuel, nuclear waste from the combustion of nuclear

fuel, radioisotopes, or any other nuclear or radioactive material

- 3 transportation of nuclear fuel, nuclear waste from the combustion of nuclear fuel, radioisotopes, or any other nuclear or radioactive material
- 4 the radioactive, toxic, explosive or other hazardous properties of any explosive nuclear assembly or nuclear component of that assembly
- 5 any weapon or device employing atomic or nuclear fission and/or fusion or other like reaction or radioactive force or matter.

Temporary removal exclusion

We will not cover **you** for any loss, destruction or damage to any component part of any insured item, while such part is removed from its normal position in the item.

Terrorism and Northern Ireland exclusion

We will not cover **you** for any loss, damage, cost or expense of any nature directly or indirectly caused by, resulting from or in connection with

- 1 In England, Scotland, Wales, the Channel Islands, the Isle of Man and Rest of the World
 - a any act of **terrorism**, regardless of any other cause or event contributing concurrently or in any other sequence to the loss
 - b any action taken in controlling, preventing, suppressing or in any way relating to any act of **terrorism**
- 2 In Northern Ireland
 - a any act of **terrorism**, regardless of any other cause or event contributing concurrently or in any other sequence to the loss
 - b any action taken in controlling, preventing, suppressing or in any way relating to any act of **terrorism**
 - c riot, civil commotion and (except for damage or interruption to the **business** caused by fire or explosion) strikers, locked-out workers or persons taking part in labour disturbances or malicious persons.

If any of the points above are found to be invalid or unenforceable, the remainder of the points shall remain in full force and effect.

In any action, lawsuit or other proceedings or where **we** state that any loss, damage, cost or expense is not covered by this section, it will be **your** responsibility to prove that they are covered.

Theft exclusion

We will not cover **you** for any theft or attempted theft

- 1 of unattended property insured in the open whilst at **your premises**
- 2 caused by or in conjunction with **you** or any of **your** partners, directors or employees or any member of **your** or their family
- 3 when neither **you** nor any of **your** partners, directors or employees or any member of **your** family is at the **premises** unless it involves entry to, or exit from a building or part of a building by forcible and violent means.

War risks exclusion

We will not cover any claims caused by or happening through war, invasion, act of foreign enemy, hostilities (whether war is declared or not), civil war, civil rebellion, warlike operations, revolution, insurrection or military or usurped power, confiscation, nationalisation, requisition, seizure or destruction or damage to property by or under the order of any government or public or local authority.

Wear and tear, deterioration exclusion

We will not cover **you** for any loss, damage, cost or expense caused by or consisting of inherent vice, latent defect, gradual deterioration, wear and tear, frost, change in water table level or its own faulty or defective design or materials. **We** will cover subsequent **damage** which itself results from a **defined peril** covered by this section.

Section conditions

These conditions of cover apply only to this section.

You must comply with the following conditions to have the full protection of **your policy**.

Some conditions specify circumstances whereby non-compliance will mean that **you** will not receive payment for a claim. However, **you** will be covered and **we** will pay **your** claim if **you** are able to prove that the non-compliance with these conditions could not have increased the risk of the loss which actually occurred in the circumstances in which it occurred.

Agreed value condition

Where an item is marked 'AV' in **your** schedule, **your** cover is on an agreed value basis which means the amount payable in the event of a claim is the sum insured shown in **your** schedule for such item and the **Average condition** and the average provision within the **Contribution and average condition** shall not apply.

In no event will **we** be liable for more than the item sum insured shown in **your** schedule. The agreed value should not be relied upon for any purpose except insurance of the item under this section and **we** make no representations that this is the value that the item would attain if sold.

Arbitration condition

If **we** agree to pay **your** claim and **you** disagree with the amount to be paid, the amount of the difference will be referred to an arbitrator who is jointly appointed in accordance with the statutory requirements. **You** will not be able to take legal action against **us** over this disagreement until the arbitrators have made their award.

Average condition

If at the date of **damage** the sum insured is less than the value of the item described in **your** schedule, the amount **we** will pay will be reduced proportionately.

Contribution and average condition

If, at the time of the claim, there is any other policy covering the same item described in **your** schedule and covered by this section, **we** will be responsible only for **our** proportionate share.

If any other policy is subject to any average condition, this section, if not already subject to average, will be subject to average in the same way as the other insurance policy.

If any other policy has a condition that prevents it from paying its share, **our** share of the claim will be limited to the proportion of the sum insured bears to the value of the item described in **your** schedule.

Indemnity condition

Where an item is marked 'I' in **your** schedule **your** cover is on an indemnity basis which means the cost of replacing the item less an adjustment for wear and tear.

You must declare to **us** at the start date of the **period of insurance** the sum insured for those items on this basis. Claims for **damage** will be settled on this basis subject to

- 1 the value for those items will be calculated on this basis for the purpose of the **Average condition**
- 2 the maximum amount payable for any one item shall not exceed the sum insured for that item shown in **your** schedule.

Police notification condition

You must immediately notify the police of any loss or **damage** by theft or attempted theft of property covered by this section. **You** must take all reasonable steps for the discovery and punishment of the guilty person or persons and to trace and recover the property lost.

If **you** do not comply with this condition **you** will not be covered and **we** will not pay **your** claim.

Reinstatement condition

Where the sum insured in **your** schedule is marked 'R' the basis of claims settlement will be the cost of repair or the current replacement value without deduction for wear and tear, provided that all necessary repairs or replacements are carried out without delay.

If any property is to be reinstated or replaced by **us**, **you** will at **your** own expense provide **us** with plans, documents, books and any information as may be reasonably required. **We** will not be required to reinstate exactly, but only as circumstances permit and in a reasonable manner. **We** will not pay more than the sum insured for any one item.

Reinstatement of sum insured after loss condition

In the event of **damage** the sum insured by this section will be automatically reinstated from the date of the **damage** unless written notice is given to the contrary either by **us** or by **you**.

Provided that in the event of reinstatement **you** will

- 1 pay the necessary premiums that may be required for the reinstatement, from the date of reinstatement
- 2 complete any additional risk improvements which **we** may reasonably require.

Subrogation waiver condition

In the event of a claim under this section **we** agree to waive any rights, remedies or relief to which **we** might have become entitled by subrogation against

- 1 any company standing in relation of parent to subsidiary (or subsidiary to parent) to **you**
- 2 any company which is a subsidiary of a parent company of which **you** are a subsidiary in each case as defined by current law at the time of the **damage**.

Claims for **computer records** will be settled on the basis of the value of the materials together with the cost of clerical labour and computer time taken in reproducing those records, but **we** will not cover

- 1 any expenses in connection with reproducing information to be recorded on them
- 2 the value to **you** of the information contained in them.

Unattended vehicles condition

We will not cover **you** for theft or attempted theft from any unattended vehicle unless

- 1 the doors of the vehicle are locked and all its windows and other openings are fully closed and properly fastened
- 2 any **computer equipment** is concealed from view in a locked glove box or locked boot or covered hatchback area
- 3 between the hours of 9pm and 6am, the vehicle is also either
 - a in a locked garage, or
 - b a walled or fenced compound that is either securely locked or has a watchman in constant attendance, or
 - c alarmed with the alarm set and fully operational.

It will be up to **you** to prove that any theft or attempted theft occurred before 9pm and after 6am.

If **you** do not comply with this condition, **you** will not be covered and **we** will not pay **your** claim.

This condition will not apply when such vehicle is on location or during transits to and from a location for the purposes of the **business**.

Specific section conditions

The following conditions apply only if shown in **your** schedule.

1 Alarm condition

For cover to operate in respect of **damage** following entry or attempted entry to or exit from the **alarmed buildings** by forcible and violent means, **you** must ensure that the following are complied with

- 1 the **alarmed buildings** must be protected by an **intruder alarm system** designed, installed and maintained to British Standard BS 4737 or European Norm EN 50131 including, where stipulated by **us** or the local police authority, British Standard BS 8243 for the installation and configuration of intruder alarm systems designed to generate confirmed alarms

- 2 the intruder alarm installation and maintenance company must be both
 - a a member of an alarm inspectorate which is accredited by the United Kingdom Accreditation Service (UKAS) to BS EN ISO/IEC 17065 or BS EN 17021and
 - b recognised as an approved company by National Security Inspectorate (NSI) or Security Systems and Alarm Inspectorate Board (SSAIB) for the design, installation and maintenance of intruder alarm systems
- 3 the **intruder alarm system** must be maintained in full and efficient working order under a contract to provide both corrective and preventative maintenance, as per the requirements of BS 4737 or EN 50131 with the installing company or such other company as agreed with **us**. Where remote alarm signalling is required, the signal transmission must be transmitted to an alarm-receiving centre fully compliant with BS 5979 or BS EN 50518 and operated by a company accredited and operating to a quality management system in accordance with EN ISO 9000
- 4 no alteration to or substitution of
 - a any part of the **intruder alarm system**
 - b the maintenance contract
 - c the structure of the **alarmed buildings** or changes to their layout which would affect the effectiveness of the **intruder alarm system**
 - d the procedures agreed with **us** for police or any other response to any activation of the **intruder alarm system**be made without **our** written agreement
- 5 the **alarmed buildings** will not be left unattended without **our** agreement
 - a unless the **intruder alarm system** is set in its entirety with the means of communication used to transmit signals (including both alarm

transmission systems for dual signalling systems) in full operation

- b if the police have withdrawn their response to alarm activationsIf the alarm system is not fully operative **you** must make arrangements for the **premises** to be attended until the **intruder alarm system** is fully operational
- 6 **you** must keep all security codes for the **intruder alarm system** confidential and all codes and keys must be removed from the **premises** when they are left unattended
- 7 **you** will appoint at least two **key holders** and give written details (which must be kept up to date) to the alarm company and either the police or the alarm-receiving centre
- 8 in the event of notification of any activation of the **intruder alarm system** or interruption of means of communication, including one or both alarm transmission systems for dual signalling systems, during any period the **intruder alarm system** is set a **key holder** will attend the **premises** as soon as reasonably possible
If the alarm cannot be reset following the **key holder** attendance **you** must make arrangements for the **premises** to be attended until the **intruder alarm system** is fully operational
- 9 in the event of **you** receiving any notification
 - a that the police attendance in response to alarm signals or calls from the **intruder alarm system** may be withdrawn, or the level of response reduced or delayed
 - b from a local authority or magistrate imposing any requirement for abatement of nuisance
 - c that the **intruder alarm system** cannot be returned to or maintained in full working order.

You will advise **us** as soon as possible but in any event within 7 days and comply with any subsequent requirements stipulated by **us**.

If **you** do not comply with this condition **you** will not be covered and **we** will not pay **your** claim.

2 Minimum security standards condition

The following minimum level of security must be installed and maintained at the **premises** and put into use whenever the **premises** are closed for business or left unattended.

Alternative security protections can only be installed with **our** written permission.

1 all external doors of the **building(s)** at the **premises** must be secured as follows

- a** timber doors must be fitted with an appropriate mortice deadlock which has 5 or more levers and/or conforms to British Standards BS 3621 or a cylinder lock conforming to European Norm EN 1303 together with a matching metal box striking plate, installed in accordance with the manufacturer's recommendations
- b** aluminium doors must be fitted with integral cylinder key operated mortice deadlocks to EN 1303
- c** UPVC doors must be fitted with key operated multi-point locking devices incorporating swinging/claw locking bolts
- d** the first closing leaf of double leaf doors must be fitted internally with bolts top and bottom

2 all internal doors in the **building(s)** that give access to any part of the **premises** not occupied by **you** for the purpose of the **business** must be fitted with either

- a** timber doors must be fitted with an appropriate mortice deadlock which has 5 or more levers and/or conforms to BS 3621 or a cylinder lock conforming to European Norm EN 1303 together with a matching metal box striking plate, installed in accordance with the manufacturer's recommendations

- b** aluminium framed doors must be fitted with integral cylinder key operated mortice deadlocks to EN 1303
- c** UPVC framed doors must be fitted with key operated multi-point locking devices incorporating swinging/claw locking bolts
- d** the first closing leaf of double leaf doors must be fitted internally with bolts top and bottom

3 all opening external basement, ground floor and other accessible windows (accessible includes a window that can be easily reached from an adjacent flat roof, a fire escape, balconies, canopies or down pipes), fanlights, roof lights, skylights must be fitted with suitable and appropriate key operated window locks, installed in accordance with the manufacturer's recommendations. All louvered windows must have their louvers permanently fixed into place to ensure they cannot be removed from their fixings.

This requirement does not apply to windows protected by solid steel bars, weld mesh or expanded metal grills securely fixed to the brickwork surrounding the window.

4 any door or window officially designated by the local planning officer, local building control officer or as defined within the business fire risk assessment forming part of an emergency exit route is excluded from the above requirements. The doors and windows must only be secured using suitable and appropriate internally operated quick release type of security devices, specifically designed for this purpose with mortice deadlocks conforming to BS 8621; panic bars/latches conforming to BS EN 1125 and/or emergency exit door devices conforming to BS EN 179.

If **you** do not comply with this condition **you** will not be covered and **we** will not pay **your** claim.

Special clauses

Applicable only if the clause number(s) are shown on **your** schedule.

Special clauses are subject to the terms, conditions and exclusions contained in this section and **your policy**.

1 Fraudulent hire cover

Subject to clause **4** **Hired out property cover** being shown as covered in **your** schedule, **we** will cover **you** for **damage** occurring during the **period of insurance** and caused by a hirer's fraudulent act to property insured whilst hired out in connection with the **business** provided that the terms of the hire agreement holds the hirer responsible for all **damage** for the duration of the hire.

Our liability for any one claim will not exceed the hired out property sum insured shown in **your** schedule.

2 Fraudulent hire cover condition

For all hires where the property hired out is unaccompanied by **you** or **your** representative, **you** must obtain and retain

- 1 a signed copy of the hire agreement
- 2 a copy of photo-identity in the form of a UK driving licence or passport
- 3 proof of identity in the form of letter headed stationery or a copy of a utility bill.

For hires where a credit agreement has been established, **you** must obtain and retain

- 1 two trade or bank references which are followed up
- 2 a completed standard credit account application form.

For hires where a credit agreement has not been established, **you** must only accept payment by credit or debit card or cleared bank funds.

If **you** do not comply with this condition, **you** will not be covered and **we** will not make any payment in respect of a claim.

However, **you** do not need to comply with the condition if **you** have an established pattern of trading with the hirer for more than twelve months provided that

- a the hire is subject to a standard hire agreement in line with current industry standards
- b the hirer concerned has not suffered a loss which has resulted in a claim under **your policy**.

3 Hired in property and continuing hiring charges cover

We will cover **you** for

- 1 **damage** occurring during the **period of insurance** to property insured whilst hired in by **you** in connection with the **business** and for which **you** are legally liable under the terms of the hire agreement or where **you** are otherwise liable to pay compensation for such **damage**
- 2 hiring charges for which **you** are legally liable under the terms of a hire agreement as a result of and solely due to **damage** as described in item **1** provided that **our** liability shall commence from the date of the **damage** and end when the damaged property insured has been repaired or replaced.

Our liability for any one claim under item **1** will not exceed the sum insured shown in **your** schedule for hired in property.

Our total liability under item **2** will not exceed £100,000 in any one **period of insurance**.

Special condition applicable to the Hired in property cover

Whenever property is hired in by **you** from a third party for use at any location, **you** or **your** representative must

- 1 sign and retain a declaration upon delivery accepting responsibility for all property hired in, and
- 2 sign and retain a written inventory of all property hired in prior to it being taken to any location and prior to its return to the third party hirer.

If **you** do not comply with this condition, **you** will not be covered and **we** will not make any payment in respect of a claim.

4 Hired out property cover

We will cover **you** for **damage** occurring during the **period of insurance** to property insured whilst hired out by **you** to a third party in connection with the **business**, under a standard hire agreement in line with current industry standards.

We will not cover **you** for **damage** caused by a hirer's fraudulent act under this cover.

Our liability for any one claim will not exceed the item sum insured shown in **your** schedule.

Special condition applicable to the Hired out property cover

- 1 Whenever the property insured is hired in for rehire by **you**, the hiring conditions will be no less onerous than those under which **you** hired in such property
- 2 Whenever the property insured is hired out to a third party but is unaccompanied by **you** or **your** representative, **you** must obtain and retain a signed hire agreement
 - a holding the third party hirer fully responsible for any **damage** caused to such property, and
 - b declaring that the third party hirer will indemnify **you** in full in the event of any **damage**.

If **you** do not comply with this condition, **you** will not be covered and **we** will not make any payment in respect of a claim.

4 Mechanical and electrical breakdown cover

The following meanings highlighted in bold black print will have the same meaning where they are used in this cover.

Breakdown

- 1 The actual breaking, failure, distortion or burning out of any part of the property insured whilst in ordinary use arising from defects in the property insured causing its sudden stoppage and necessitating repair or replacement before it can resume work.

- 2 Fracturing of any part of the property insured by frost when such fracture renders the property insured inoperative.
- 3 The actual and complete severance of a rope but not breakage or abrasion of wires or strands even though replacement may be necessary.
- 4 Electronic derangement.

Cover

We will cover **you** for **damage** caused by or resulting from **breakdown** of any property insured by this section occurring during the **period of insurance**.

Provided that

- 1 all property insured is fully maintained in accordance with the manufacturer's instructions
- 2 all property insured is fully tested in accordance with the industry's highest standards and is deemed to be in good working order prior to its use.

We will not cover **you** for

- a any property insured for which cover is provided under the Computer breakdown section of **your policy**
- b damage deliberately, wilfully, maliciously, illegally or unlawfully by **you**
- c wear and tear, gradual deterioration, gradually developing defects, corrosion, rust or scratching or chipping of painted or polished surfaces
- d damage caused by or arising from any testing, repairing, adjusting, servicing or maintenance operation.

Our liability for any one claim will not exceed £30,000.

Computer breakdown section

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Your schedule will show if this section is covered.

Meanings of defined terms

These meanings apply within **your** Computer breakdown section. If a word or phrase has a defined meaning it will be highlighted in bold blue print and will have the same meaning wherever it is used in this section. The meaning of defined terms that apply throughout **your policy**, and not just this section, can be found in the General introduction section of **your policy**.

Accident

- 1 breakdown or failure of any part of the **property insured** whilst in ordinary use arising from either mechanical or electrical defect causing a stoppage of normal functions
- 2 failure or fluctuation of the supply of electricity to the **computer equipment** or **portable computer equipment**
- 3 erasure, destruction, corruption or distortion of software contained, or **data** stored, on fixed disks or **computer records**.

All accidents that are the result of the same event will be considered to be one accident.

Communicable disease

Any disease which can be transmitted by means of any substance or agent from any organism to another organism where

- 1 the substance or agent includes, but is not limited to, a virus, bacterium, parasite or other organism or any variation thereof, whether deemed living or not, and
- 2 the method of transmission, whether direct or indirect, includes but is not limited to, airborne transmission, bodily fluid transmission, transmission from or to any surface or object, solid, liquid or gas or between organisms, and
- 3 the disease, substance or agent can cause or threaten damage to human health or human welfare or can cause or threaten damage to, deterioration of, loss of value of, marketability of or loss of use of property.

Computer systems

Computer or other equipment or component or system or item which processes stores transmits or receives **data**.

Cyber act

An unauthorised, malicious or criminal act or series of related unauthorised, malicious and criminal acts, regardless of time and place, or the threat or hoax thereof involving access to, processing of, use of or operation of any **computer systems**.

Cyber incident

- 1 any error or omission or series of related errors or omissions involving access to, processing of, use of or operation of any **computer systems**; or
- 2 any partial or total unavailability or failure or series of related partial or total unavailability or failures to access, process, use or operate any **computer systems**.

Data

Any data of any sort whatever, including without limitation tangible or intangible data, and any programs or software, bandwidth, cryptographic keys, databases, documents, domain names or network addresses or anything similar, files, interfaces, metadata, platforms, processing capability, storage media, transaction gateways, user credentials, websites, or any information whatever.

Damage/damaged

Loss or damage or destruction.

Denial of service attack

Any actions or instructions constructed or generated with the ability to damage, interfere with or otherwise affect the availability or performance of networks, network services, network connectivity or **computer systems**. Denial of service attacks include, but are not limited to, the generation of excess traffic into network addresses, the exploitation of system or network weaknesses, the generation of excess or non-genuine traffic between and amongst

networks and the procurement of such actions or instructions by other **computer systems**.

Excess

First amount of any claim or claims for which **you** are responsible.

Hacking

Unauthorised access to any **computer systems**, whether **your** property or not.

Phishing

Any access or attempted access to **data** made by means of misrepresentation or deception.

Premises

The premises shown in **your** schedule.

Property insured

1 Computer equipment

Computer and auxiliary equipment used for electronic processing communication and storage of **data** including

- a fixed disks, interconnecting wiring and telecommunications systems
- b temperature and environmental control equipment, power supply voltage regulating and other protective equipment used exclusively in connection with the computer equipment

being **your** property or leased, hired or rented to **you** on **your premises**.

2 Computer records

All current and back up computer records (excluding fixed disks and paper records of any description) incorporating stored programs and/or information stored on them being **your** property or leased, hired or rented to **you** on **your premises** or anywhere within the **policy territories**.

3 Portable computer equipment

- a Laptops, palmtops and notebooks
- b Personal digital assistants

- c Projectors, printers and other peripheral devices which are designed to be carried and used in conjunction with other portable computer equipment
- d Removable satellite navigation systems
- e Digital cameras
- f Mobile phones

being **your** property or leased, hired or rented to **you** on **your premises** or anywhere within the **policy territories**.

Terrorism

In England, Scotland and Wales

Acts of persons acting on behalf of, or in connection with, any organisation which carries out activities directed towards the overthrowing or influencing, by force or violence, of His Majesty's Government in the United Kingdom or any other government de jure or de facto.

In Northern Ireland

An act including, but not limited to the use of force or violence and/or threat thereof of any person or group(s) of persons, whether acting alone or on behalf of or in connection with any organisation(s) or government(s) committed for political, religious, ideological or similar purposes, including the intention to influence any government and/or put the public or any section of the public in fear.

In the Channel Islands and the Isle of Man

An act of any person(s) acting on behalf of or in connection with any organisation which carries out activities directed towards the overthrowing or influencing by force or violence of any government de jure or de facto.

Virus or similar mechanism

Program code, programming instruction or any set of instructions constructed with the purpose and ability, or purposely used to damage, interfere with, adversely affect, infiltrate or monitor computer programs, **computer systems**, **data** or operations, whether involving self-replication or not. The meaning of virus or similar mechanism includes but is not limited

to trojan horses, worms and logic bombs and the exploitation of bugs or vulnerabilities in a computer program to damage, interfere with, adversely affect, infiltrate or monitor as above.

✓ What is covered

We will pay **you** for **damage** to the **property insured** shown in **your** schedule caused by or resulting from an **accident** occurring during the **period of insurance**.

Limit of cover

The most **we** will pay **you** for any one **accident** during any **period of insurance**, including any payment made under the Special conditions applicable to the Reinstatement condition, is

- 1 the sum insured shown in **your** schedule in respect of **computer equipment**
- 2 the sum insured shown in **your** schedule in respect of **portable computer equipment** (subject to a single article limit of £10,000)
- 3 £5,000 in respect of **computer records**.

Accidental discharge of gas flooding systems cover

We will cover **you** for the cost of recharging gas flooding systems, installed solely for the protection of the **property insured** following accidental discharge occurring during the **period of insurance**.

Provided that

- 1 **we** will not be liable for any claim as a result of gradual leakage, discharge or drop in pressure
- 2 **you** will maintain, at **your** own expense, the gas flooding system in accordance with the supplier's and/or maker's recommendations.

Our liability will not exceed £25,000 in any one **period of insurance**.

Additional rental cover

We will pay for the additional rental arising out of the replacement of a lease or hire agreement in respect of the **property insured** by a new contract for a similar property as a result of

damage to the **property insured** shown in **your** schedule caused by or resulting from an **accident** occurring during the **period of insurance**. **Our** liability will not exceed £7,500 in any one **period of insurance**.

Capital additions cover

We will cover **you** for the additional **computer equipment** purchased by **you** during the **period of insurance** for which **you** are responsible, at any existing **premises** shown in **your** schedule until the next renewal date at no additional charge.

Our liability will not exceed the lesser of 10% of the **computer equipment** sum insured shown in **your** schedule or £250,000 in any one **period of insurance**.

Expediting costs cover

We will cover **you** for the costs necessarily and reasonably incurred in making temporary repairs and/or expediting the repair, reinstatement replacement of insured items as a result of **damage** to the **property insured** shown in **your** schedule caused by or resulting from an **accident** occurring during the **period of insurance**, excluding costs recoverable under any other cover provided by this section.

Our liability for any one claim will not exceed the lesser of 50% of the **computer equipment** sum insured shown in **your** schedule or £50,000.

Incompatibility of computer records cover

We will pay for the costs of

- 1 modification of the **computer equipment** or **portable computer equipment**, or
- 2 replacement of **computer records** together with reinstatement of programs and/or information on them

whichever is the lesser amount, to achieve compatibility in the event that the **damage** caused by or resulting from an **accident** to any **computer equipment** or **portable computer equipment** has resulted in undamaged **computer records** being incompatible with the replacement **computer equipment** or **portable computer equipment**.

Our liability will not exceed £50,000 in any one **period of insurance**.

Increased cost of working and reinstatement of data cover

We will pay for the additional costs necessarily and reasonably incurred by **you** to

- 1 prevent or minimise the interruption of or interference with the work normally carried out by or on the **computer equipment** or **portable computer equipment**
- 2 recompile or restore **data** or software or replace third party proprietary software as a direct result of **damage** occurring during the **period of insurance** to **computer equipment** or **portable computer equipment** caused by or resulting from breakdown or failure of any part of the **computer equipment** or **portable computer equipment** whilst in ordinary use arising from either mechanical or electrical defect causing a stoppage of normal functions.

Item 5 of the **Miscellaneous damage exclusion** under the heading 'What is not covered' will not apply.

Our liability will not exceed £50,000 in any one **period of insurance**.

Inflation protection cover

We will adjust the sum insured for items covered by this section in line with suitable indices of cost and the renewal premium for this section will be based on the adjusted sums insured.

Virus seek and destroy costs cover

We will cover **you** for the costs necessarily and reasonably incurred with **our** prior consent in locating and removing a detected computer virus infecting any insured host program or disk.

Our liability will not exceed £10,000 in any one **period of insurance**.

Waste Electrical and Electronic Equipment Directive cover

We will cover **you** for the additional costs that **you** incur in order to comply with the Waste Electrical and Electronic Equipment Directive for

the disposal of **damaged computer equipment** and/or **portable computer equipment** following an **accident** covered by this section.

Our liability will not exceed £100,000 in any one **period of insurance**.

X What is not covered

Cyber exclusion

We will not cover **you** for any loss, damage, cost, or expense directly or indirectly caused by, contributed to by, arising from, occasioned by or resulting from

- 1 any **cyber act** including but not limited to **hacking, phishing, denial of service attack** or the transmission of any **virus or similar mechanism**
- 2 any **cyber incident**.

Date recognition exclusion

We will not cover **you** for or any loss, damage, cost, or expense directly or indirectly caused by, contributed to or arising from the failure of equipment (including any **computer systems**) to correctly recognise any given date or to process **data** or to operate properly due to failure to recognise any given date.

Deliberate acts exclusion

We will not cover **you** for any loss, damage, cost or expense caused, or allowed to be caused, deliberately, wilfully, maliciously, illegally or unlawfully by **you**.

Disease exclusion

We will not cover **you** for any loss, damage, liability, claim, cost or expense of whatsoever nature directly or indirectly caused by, contributed to by, resulting from, arising out of or in connection with a **communicable disease** or the fear or threat (whether actual or perceived) of a **communicable disease** regardless of any other cause or event contributing concurrently or in any other sequence thereto.

Excess exclusion

We will not cover **you** for the **excess** shown in **your** schedule.

Fraud and dishonesty exclusion

We will not cover **you** for any loss, damage, cost or expense which results from acts of fraud or dishonesty by **you, your** employees or any partner, director or member of **your** family.

Miscellaneous damage exclusion

We will not cover any loss, damage, cost or expense

- 1 for which any manufacturer, supplier, agent or maintenance undertaking is responsible under the terms of a guarantee or maintenance agreement
- 2 where **you** are relieved of responsibility under any rental, hire or lease agreement
- 3 where the cause of such loss, damage, cost or expense is or would be covered under any other section of **your policy**
- 4 caused by or consisting of wear and tear or deterioration due to atmospheric or climatic conditions
- 5 caused by a deliberate act of a supply undertaking in withholding the supply of electricity or telecommunication services unless for the sole purpose of safeguarding life
- 6 caused by the inability of the supply undertaking to maintain the supply system due to industrial action by its employees
- 7 caused by the use of telecommunications equipment which is not approved by the telecommunications authority
- 8 caused by it undergoing any process of production, packaging, treatment, testing, commissioning, servicing or repair
- 9 caused by the use of unproven software which has not been finalised or which has not passed all the testing procedures or which has not been successfully proven
- 10 caused by programming errors or design defects in software
- 11 caused by or resulting from the failure or interruption of any electrical power supply network or telecommunication networks not owned and operated by **you**. This exclusion shall not apply to losses caused by or resulting from **damage**, if otherwise covered

by this section, to the electrical power supply network, telecommunication networks or other property

- 12 to any **property insured** controlling a manufacturing process.

Radioactive contamination exclusion

We will not cover damage, or any other loss or expense resulting or arising from damage to any property, or any consequential loss, directly or indirectly caused by or contributed to by or arising from

- 1 ionising radiations or contamination by radioactivity from any nuclear fuel, nuclear waste from the combustion of nuclear fuel, radioisotopes, or any other nuclear or radioactive material
- 2 buildings, plant or equipment for the generation of nuclear power, or production, use or storage of nuclear fuel, nuclear waste from the combustion of nuclear fuel, radioisotopes, or any other nuclear or radioactive material
- 3 transportation of nuclear fuel, nuclear waste from the combustion of nuclear fuel, radioisotopes, or any other nuclear or radioactive material
- 4 the radioactive, toxic, explosive or other hazardous properties of any explosive nuclear assembly or nuclear component of that assembly
- 5 any weapon or device employing atomic or nuclear fission and/or fusion or other like reaction or radioactive force or matter.

Terrorism and Northern Ireland exclusion

We will not cover **you** for loss, damage, cost or expense of any nature directly or indirectly caused by, resulting from or in connection with

- 1 In England, Scotland, Wales, the Channel Islands and the Isle of Man
 - a any act of **terrorism**, regardless of any other cause or event contributing concurrently or in any other sequence to the loss

- b any action taken in controlling, preventing, suppressing or in any way relating to any act of **terrorism**.

- 2 In Northern Ireland

- a any act of **terrorism**, regardless of any other cause or event contributing concurrently or in any other sequence to the loss
 - b any action taken in controlling, preventing, suppressing or in any way relating to any act of **terrorism**.

If any of the points above are found to be invalid or unenforceable, the remainder shall remain in full force and effect.

In any action, law suit or other proceedings or where **we** state that any loss, damage, cost or expense is not covered by this section it will be **your** responsibility to prove that they are covered.

War risks exclusion

We will not cover any claims caused by or happening through war, invasion, act of foreign enemy, hostilities (whether war is declared or not), civil war, civil rebellion, warlike operations, revolution, insurrection or military or usurped power, confiscation, nationalisation, requisition, seizure or destruction or damage to property by or under the order of any government or public or local authority.

Section conditions

These conditions of cover apply only to this section. **You** must comply with these conditions to have the full protection of **your policy**. Some conditions specify circumstances whereby non-compliance will mean that **you** will not receive payment for a claim. However, **you** will be covered and **we** will pay **your** claim if **you** are able to prove that the non-compliance with these conditions could not have increased the risk of the loss which actually occurred in the circumstances in which it occurred.

Maintenance agreement condition

You must maintain an approved maintenance agreement in force for the duration of the **period of insurance** providing a minimum service of on call remedial and/or corrective maintenance at inclusive costs.

If **you** do not comply with this condition, **you** will not be covered and **we** will not pay **your** claim.

Reinstatement condition

In the event of **damage** to any **computer equipment** or **portable computer equipment**, **we** will repair the **damage** and restore the portion that has suffered **damage** to a working condition the same as, but not better or more extensive than, its condition when new. Where such repair is uneconomic or impractical, **we** will replace the **damaged** item with a new item of equal performance and/or capacity. If this is not possible, its replacement will have the nearest higher performance and/or capacity to the **damaged** item.

Special conditions applicable to the Reinstatement condition

- 1 **Our** liability for the repair or restoration of property **damaged** in part only shall not exceed the amount which would have been payable had such property been wholly destroyed.
- 2 If, at the time of reinstatement, the sum representing 85% of the cost which would have been incurred in reinstating the whole of the property covered by any item subject to this condition exceeds its sum insured at the start of any destruction or **damage**, **our** liability will not exceed that proportion of the amount of the destruction or **damage** which the said sum insured shall bear to the sum representing the total cost of reinstating the whole of such property at that time.
- 3 No payment beyond the amount which would have been payable in the absence of this condition will be made
 - a unless reinstatement starts and proceeds without unreasonable delay
 - b until the cost of reinstatement has actually been incurred

- c if the **property insured** at the time of its **damage** is insured by any other policy effected by **you** or on **your** behalf which is not on the same basis of reinstatement.
- 4 All the terms and conditions of **your policy** will apply
 - a in respect of any claim payable under the provisions of this condition except if **we** vary them
 - b where claims are payable as if this condition had not been incorporated.

Subrogation waiver condition

We agree to waive any rights of subrogation against any user of the **computer equipment** or **portable computer equipment** provided that

- 1 such user has **your** permission to use the **computer equipment** or **portable computer equipment**, and
- 2 such user will observe, fulfil and be subject to the terms, exclusions and conditions of this section, as if they were **you**.

Business interruption section – All risks

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Your schedule will show if this section is covered.

Meanings of defined terms

These meanings apply within **your** Business interruption section. If a word or phrase has a defined meaning it will be highlighted in bold print and will have the same meaning wherever it is used in this section. The meaning of defined terms that apply throughout **your policy**, and not just this section, can be found in the General introduction section of **your policy**.

Note 1 For the purpose of the following defined meanings, any adjustments implemented in current cost accounting will be disregarded

Note 2 To the extent that **you** are accountable to the tax authorities for Value Added Tax all terms in this section will be exclusive of such tax

Note 3 Adjustments will be made as necessary for trends of the **business** and for variations and other circumstances affecting the **business**, either before or after the **incident**, or which would have affected the **business** had the **incident** not occurred so that the adjusted figures represent as closely as possible, the results which would have been obtained during the **indemnity period** after the **incident**.

Accounts receivable

The total amount of the balances debited to **customers** in **your** accounts and declared in the last statement given under the provisions of the **Premium adjustment condition** after adjustments for bad debts and for amounts debited (or invoiced but not debited) and credited (including credit notes and cash not passed through the books at the date of the **incident**) to **customers** accounts in the period between the date of the statement and the date of the **incident**.

Annual gross rentals

The **gross rentals** during the 12 months immediately before the date of the **incident**.

Annual gross revenue

The **gross revenue** during the 12 months immediately before the date of the **incident**.

Annual turnover

The **turnover** during the 12 months immediately before the date of the **incident**.

Building(s)

The buildings, outbuildings, extensions, and garages together with landlord's fixtures and fittings in or on them, foundations or footings, canopies, annexes, gangways, conveniences, chimneys, fire escapes, walls, gates and fences, yards, car parks, roads and pavements, piping, ducting, cables, wires and associated control gear, CCTV systems, entry and exit systems signage, accessories and electric vehicle chargepoints fixed to **your** building(s), their tethered cables and connectors on the **premises** and extending to the public mains, but only to the extent of **your** responsibility.

Business interruption

Loss, cost or expense resulting from interruption of or interference with the **business** carried on by **you** at the **premises** as a result of any loss destruction or damage to property used by **you** at the **premises** for the purposes of the **business**.

Communicable disease

Any disease which can be transmitted by means of any substance or agent from any organism to another organism where:

- 1 the substance or agent includes, but is not limited to, a virus, bacterium, parasite or other organism or any variation thereof, whether deemed living or not, and
- 2 the method of transmission, whether direct or indirect, includes but is not limited to, airborne transmission, bodily fluid transmission, transmission from or to any surface or object, solid, liquid or gas or between organisms, and
- 3 the disease, substance or agent can cause or threaten damage to human health or human welfare or can cause or threaten

damage to, deterioration of, loss of value of, marketability of or loss of use of property.

Computer equipment

Computer and auxiliary equipment used for electronic processing communication and storage of **data** including

- 1 fixed disks, interconnecting wiring and telecommunications systems
- 2 temperature and environmental control equipment, power supply voltage regulating and other protective equipment used exclusively in connection with the computer equipment

3 portable computer equipment

being **your** property or leased, hired or rented to **you** on **your premises**.

Computer systems

Computer or other equipment or component or system or item which processes, stores, transmits or receives **data**.

Customers

All **your** customers who obtain goods or services from **you** on a credit basis.

Cyber act

An unauthorised, malicious or criminal act or series of related unauthorised, malicious and criminal acts, regardless of time and place, or the threat or hoax thereof involving access to, processing of, use of or operation of any **computer systems**.

Cyber incident

- 1 any error or omission or series of related errors or omissions involving access to, processing of, use of or operation of any **computer systems**; or
- 2 any partial or total unavailability or failure or series of related partial or total unavailability or failures to access, process, use or operate any **computer systems**.

Damage

Physical loss or destruction or damage.

Data

Any data of any sort whatever, including without limitation tangible or intangible data, and any programs or software, bandwidth, cryptographic keys, databases, documents, domain names or network addresses or anything similar, files, interfaces, metadata, platforms, processing capability, storage media, transaction gateways, user credentials, websites, or any information whatever.

Defined peril

Fire, lightning, explosion, aircraft or other aerial devices or articles dropped from them, riot, civil commotion, strikers, locked-out workers, persons taking part in labour disturbances, malicious persons other than thieves, earthquake, **storm**, **flood**, escape of water from any tank, apparatus or pipe or impact by any road vehicle or animal.

Denial of service attack

Any actions or instructions constructed or generated with the ability to damage, interfere with or otherwise affect the availability or performance of networks, network services, network connectivity or **computer systems**. Denial of service attacks include, but are not limited to, the generation of excess traffic into network addresses, the exploitation of system or network weaknesses, the generation of excess or non-genuine traffic between and amongst networks and the procurement of such actions or instructions by other **computer systems**.

Estimated gross profit

The amount declared by **you** to **us** as the anticipated **gross profit** which will be earned by the **business** during the financial year most closely concurrent with the **period of insurance** (or a proportionately increased multiple of the anticipated **gross profit** where the **maximum indemnity period** exceeds 12 months).

Estimated gross rentals

The amount **you** declare to **us** as the anticipated **gross rentals** which will be earned by the **business** during the financial year most closely concurrent with the **period of insurance** (or a proportionately increased multiple of the

anticipated **gross rentals** where the **maximum indemnity period** exceeds 12 months).

Estimated gross revenue

The amount declared by **you** to **us** as the anticipated **gross revenue** which will be earned by the **business** during the financial year most closely concurrent with the **period of insurance** (or a proportionately increased multiple of the anticipated **gross revenue** where the **maximum indemnity period** exceeds 12 months).

Flood

Damage caused by

- 1 the escape of water from the normal confines of any natural or artificial water course, lake, reservoir, canal, drain or dam
- 2 inundation from the sea
- 3 inundation by rainwater or rainwater-induced run off other than where the inundation is solely caused by or solely results from ingress of rainwater through or via the roof of the building

whether resulting from storm or not.

Gross profit

The amount by which the sum of the **turnover**, closing stock and work in progress exceeds the sum of the opening stock, work in progress and **uninsured working expenses**.

The amounts of the opening and closing stocks (including work in progress) will be arrived at in accordance with **your** usual accounting methods with provision being made for depreciation.

Gross rentals

The money paid or payable to **you** for tenancies and other charges and for services rendered in the course of the **business** at the **premises**.

Gross revenue

The money paid or payable to **you** for services provided in the course of the **business** at the **premises**.

Hacking

Unauthorised access to any **computer systems**, whether **your** property or not.

Incident

Damage to property used by **you** at the **premises** for the purpose of the **business**

or

Damage to **your** accounting records, other business books or records at the **premises** for any item on **accounts receivable**.

Indemnity period

The period during which the **business** is affected, starting on the date the **incident** occurred and ending not later than the **maximum indemnity period**.

Maximum indemnity period

The period shown in **your** schedule.

Other items

The items shown under the heading of 'Other items' in **your** schedule.

Phishing

Any access or attempted access to **data** made by means of misrepresentation or deception.

Portable computer equipment

- 1 Laptops, palmtops and notebooks
- 2 Personal digital assistants
- 3 Projectors, printers and other peripheral devices which are designed to be carried and used in conjunction with other portable computer equipment
- 4 Removable satellite navigation systems
- 5 Digital cameras
- 6 Mobile phones

being **your** property or leased, hired or rented to you on **your premises** or anywhere within the **policy territories**.

Premises

The premises shown in **your** schedule.

Rate of gross profit

The rate of gross profit earned on the **turnover** during the financial year immediately before the date of the **incident**.

Standard gross rentals

The **gross rentals** during the period in the 12 months immediately before the date of the **incident** which corresponds with the **indemnity period**.

Standard gross revenue

The **gross revenue** during the period in the 12 months immediately before the date of the **incident** which corresponds with the **indemnity period**.

Standard turnover

The **turnover** during the period in the 12 months immediately before the date of the **incident** which corresponds with the **indemnity period**.

Storm

Storm excluding damage by **flood**.

Terrorism

In England, Scotland and Wales: Acts of persons acting on behalf of, or in connection with, any organisation which carries out activities directed towards the overthrowing or influencing, by force or violence, of His Majesty's Government in the United Kingdom or any other government de jure or de facto.

In Northern Ireland: An act including but not limited to the use of force or violence and/or threat thereof of any person or group(s) of persons whether acting alone or on behalf of or in connection with any organisation(s) or government(s) committed for political, religious, ideological or similar purposes including the intention to influence any government and/or put the public or any section of the public in fear.

In the Channel Islands and the Isle of Man: An act of any person(s) acting on behalf of or in

connection with any organisation which carries out activities directed towards the overthrowing or influencing by force or violence of any government de jure or de facto.

Time element loss

Business interruption, contingent business interruption or any other consequential losses.

Turnover

The money paid or payable to **you** for goods sold and delivered and for services rendered in the course of the **business** at the **premises**.

Uninsured working expenses

- 1 purchases less discounts received
- 2 discounts allowed
- 3 carriage, freight and packaging
- 4 bad debts.

Unoccupied

Any building(s) or any portions of the building(s) which are wholly empty, mainly empty or not in use by **you** or any of **your** tenants for more than 30 consecutive days.

Virus or similar mechanism

Program code, programming instruction or any set of instructions constructed with the purpose and ability, or purposely used, to damage, interfere with, adversely affect, infiltrate or monitor computer programs, **computer systems**, **data** or operations, whether involving self-replication or not. The meaning of virus or similar mechanism includes but is not limited to trojan horses, worms and logic bombs and the exploitation of bugs or vulnerabilities in a computer program to damage, interfere with, adversely affect, infiltrate or monitor as above.

Basis of claim settlement

These terms of settlement only apply if the paragraph title appears in **your** schedule for this section.

Gross profit/Estimated gross profit

We will cover **you** for loss of **gross profit** due to

- 1 reduction in **turnover**

and

- 2 increase in cost of working

and the amount payable will be

- a for reduction in **turnover**: the sum produced by applying the **rate of gross profit** to the amount by which the **turnover**, during the **indemnity period**, falls short of the **standard turnover** as a result of the **incident**
- b for increase in cost of working: the additional cost (subject to the provisions of the **Uninsured working expenses condition**) necessarily and reasonably incurred for the sole purpose of avoiding or diminishing the reduction in **turnover** which would have taken place during the **indemnity period** as a result of the **incident**, but not exceeding the sum produced by applying the **rate of gross profit** to the amount of the reduction which has been avoided by this additional cost

less any amount saved during the **indemnity period** for the charges and expenses of the **business** payable out of **gross profit** as may stop or be reduced as a result of the **incident**.

Provided that if the sum insured by the item on **gross profit** is less than the sum produced by applying the **rate of gross profit** to the **annual turnover** (or to a proportionately increased multiple where the **maximum indemnity period** exceeds 12 months) the amount payable will be proportionately reduced.

Gross revenue/Estimated gross revenue

We will cover **you** for

- 1 loss of **gross revenue**

and

- 2 increase in cost of working

and the amount payable will be

- a for reduction in **gross revenue**: the amount by which the **gross revenue** during the **indemnity period**, falls short of the **standard gross revenue** as a result of the **incident**
- b for increase in cost of working: the additional cost necessarily and reasonably incurred for the sole purpose of avoiding or diminishing the reduction in **gross revenue** which would

have taken place during the **indemnity period** as a result of the **incident**, but not exceeding the amount of the reduction which has been avoided by this additional cost

less any amount saved during the **indemnity period** for the charges and expenses of the **business** payable out of **gross revenue** as may stop or be reduced as a result of the **incident**.

Provided that if the sum insured by the item on **gross revenue** is less than the **annual gross revenue** (or to a proportionately increased multiple where the **maximum indemnity period** exceeds 12 months) the amount payable will be proportionately reduced.

Gross rentals/Estimated gross rentals

We will cover **you** for

1 a loss of **gross rentals**

and

2 increase in cost of working

and the amount payable will be

a for reduction in **gross rentals**: the amount by which the **gross rentals** during the **indemnity period**, falls short of the **standard gross rentals** as a result of the **incident**

b for increase in cost of working: the additional cost necessarily and reasonably incurred for the sole purpose of avoiding or diminishing the reduction in **gross rentals** which would have taken place during the **indemnity period** as a result of the **incident**, but not exceeding the amount of the reduction which has been avoided by this additional cost

less any amount saved during the **indemnity period** for the charges and expenses of the **business** payable out of **gross rentals** as may stop or be reduced as a result of the **incident**.

Provided that if the sum insured by the item on **gross rentals** is less than the **annual gross rentals** (or to a proportionately increased multiple where the **maximum indemnity period** exceeds 12 months) the amount payable will be proportionately reduced.

Additional increased cost of working

We will cover **you** for further additional costs beyond those recoverable under paragraph **b**

for **gross profit/estimated gross profit** or **gross revenue/estimated gross revenue** that **you** necessarily and reasonably incur during the **indemnity period** as a result of the **incident**, for the sole purpose of avoiding or diminishing a reduction in **turnover** or **gross revenue**.

Increased cost of working

We will cover **you** for the increased cost of working and the amount payable will be the additional expenditure necessarily and reasonably incurred by **you** as a result of the **incident** in order to prevent or minimise the interruption of the **business** during the **indemnity period**. **We** will not be liable for more than 50% of the sum insured during the first 3 months of the **indemnity period** and the balance will follow in equal monthly proportions.

Increased cost of working and reinstatement of data (Computers)

We will pay for the additional costs necessarily and reasonably incurred by **you** to

- 1** prevent or minimise the interruption of or interference with the **business** during the **indemnity period** in respect of work normally carried out by or on **computer equipment**
- 2** recompile or restore or replace **data** or software or replace third party proprietary software as a direct result of **damage** occurring during the **period of insurance** to **computer equipment** caused by a **defined peril** other than damage caused deliberately by rioters, strikers, locked-out workers, persons taking part in labour disturbances, civil commotion or malicious persons or as a result of a **cyber act** or **cyber incident**.

Accounts receivable

We will cover **you** for

1 loss of **accounts receivable**

and

2 additional costs

and the amount payable will be

a for loss of **accounts receivable**: the difference, solely due to the **incident**,

between the amount of the **accounts receivable** at the date of the **incident** and the total amount received in payment of them during the 12 months after the **incident**

- b** for additional costs: the additional costs necessarily and reasonably incurred for the sole purpose of avoiding or diminishing the loss of **accounts receivable** which would have taken place as a result of the **incident**, but not exceeding the amount which would otherwise have been payable under **a** above

provided that if at the time of the **incident** the sum insured by this item is less than the total amount of the **accounts receivable**, the amount payable will be proportionately reduced.

Other items

We will cover **you** for **other items** shown as covered in **your** schedule on the basis of cover described within the endorsement detailed in **your** schedule.

✓ What is covered

- 1 **We** will cover **you** for the items shown in **your** schedule other than for **accounts receivable** and **Increased cost of working and reinstatement of data (Computers)**.

If any **building(s)** or other property used by **you** at the **premises** for the purpose of the **business** suffers **damage** during the **period of insurance** and as a result the **business** is interrupted or interfered with, then **we** will pay **you** for each item in **your** schedule the amount of loss resulting from the interruption or interference.

Provided that

- a** at the time of the **damage** there is insurance in force covering **your** interest in the **building(s)** or other property against that **damage** and that
 - i** payments have been made or liability admitted under that insurance
- or
- ii** payment would have been made or liability admitted but for the conditions in that insurance,

excluding liability for losses below a specified amount

- b** **our** liability under this section will not exceed
 - i** the total sum insured or for any item its sum insured at the date of the **damage**
 - ii** the sum insured remaining after deduction for any other **business interruption** as a result of a claim for **damage** occurring during the same **period of insurance**, unless **we** have agreed to reinstate any sum insured

adjusted in accordance with the **Inflation protection cover** if shown as operative in **your** schedule.

- 2 **We** will cover **you** for any items shown in **your** schedule for **accounts receivable**.

If any of **your** accounting records, other business books or records at the **premises** suffers **damage** during the **period of insurance** and it is not possible for **you** to obtain from **your customers** all the amounts due to **you** and outstanding at the date of the **damage**, then **we** will pay **you** the amount **you** may be entitled to recover under the conditions of this section.

Provided that **our** liability will not exceed

- a** the total sum insured or for any item of **accounts receivable**, its sum insured at the date of the **damage**
- b** the sum insured remaining after deduction for any other loss under this section as a result of **damage**, occurring during the same **period of insurance** unless **we** have agreed to reinstate the sum insured.

The sums insured will be adjusted in accordance with the **Inflation protection cover** if shown as operative in **your** schedule.

- 3 **We** will cover **you** for any items shown in **your** schedule for **Increased cost of working and reinstatement of data (Computers)**.

We will not pay for costs recoverable under any other cover provided by this section.

Our liability will not exceed £50,000 in any one period of insurance.

Additional rental costs cover (Computers)

We will pay for the additional rental costs arising out of the replacement of a lease or hire agreement in respect of any **computer equipment** by a new contract for similar property as a result of **damage** covered by this section occurring during the **period of insurance** to **computer equipment**.

We will not pay for costs recoverable under any other cover provided by this section.

Our liability will not exceed £7,500 in any one **period of insurance**.

Contract sites cover

We will cover **you** for any loss insured by this section resulting from interruption of or interference with the **business** as a result of **damage** to **your** property whilst at contract sites being worked upon by **you** anywhere in the world.

We will not cover damage resulting from flood in the Netherlands, storm surge in Germany or earthquake including fire or subterranean fire in Italy, Portugal, Slovenia, Romania, Greece or Iceland.

Our liability under this cover for any one site will not exceed £50,000.

Denial of access cover

We will cover **you** for loss of **business interruption** covered by this section, resulting from interruption of or interference with **your business** caused directly by damage by fire, lightning, explosion, aircraft or other aerial devices or articles dropped from them, theft, earthquake, **storm**, **flood**, escape of water from any tank, apparatus or pipe, leakage of oil from any fixed heating installation, impact by any road vehicle or animal to property exclusively within a 1 mile radius of **your premises** which prevents the use of **your premises**, or access to it, regardless of whether **your premises** is damaged or not

Provided that

- 1 fire, lightning, explosion, aircraft or other aerial devices or articles dropped from them, theft, earthquake, **storm**, **flood**, escape of water from any tank, apparatus or

pipe, leakage of oil from any fixed heating installation, impact by any road vehicle or animal are covered under the property damage section in respect of **your premises**

- 2 the insurance provided by this cover in any one **period of insurance** shall only apply for the period starting with the prevention of access or hindrance of use and ending after 3 months during which time **you** suffer an interruption to **your business**
- 3 **our** liability for any one claim and in any one **period of insurance** is the lesser of either 25% of the annual figure on which **your** sum insured is based or £1,000,000, irrespective of the number of **premises** insured. The **Reinstatement of sum insured after loss condition** shall not apply in respect of this cover
- 4 this does not include any **damage** to property from which **you** obtain electricity, gas, water or telecommunications services which prevent or hinder the supply of these services
- 5 **we** will not cover **you** for any incident involving interference or interruption with the **business** that is less than 12 consecutive hours.

Denial of access (non damage) cover

We will cover **you** for any loss insured by this section resulting from interruption of or interference with the **business** where access to, exit from or use of **your premises** is impaired, prevented or restricted for more than 12 hours arising directly and exclusively from

- 1 restrictions having the force of law imposed by the police or other competent local (as opposed to a minister or other central government or public) authority in response solely to an emergency incident which is likely to endanger life or property occurring either at **your premises** or exclusively within a 1 mile radius of **your premises**
- 2 the unlawful occupation of **your premises** by third parties.

Provided that

- 1 the insurance provided by this cover in any one **period of insurance**, irrespective of the

number of incidents or **premises** insured, shall only apply for the period starting with the prevention, impairment or restriction and end after the **maximum indemnity period** during which time the results of the **business** are affected

- 2 regardless of the number of incidents or **premises** insured or parties comprising the insured, **our** total liability in any one **period of insurance** will not exceed 25% of the annual figure on which **your** sum insured is based or £50,000 whichever is less
- 3 The **Reinstatement of sum insured after loss condition** shall not apply in respect of this cover.

We will not cover **you** where access to, exit from or use of **your premises** is impaired, prevented or restricted as a result of

- 1 physical loss or destruction or damage to property at **your premises** or elsewhere
- 2 riot, civil commotion, strikes, strikers, picketing, labour disturbances or trade disputes
- 3 the condition of or the **business** conducted within **your premises** or any other **premises** owned or occupied by **you**
- 4 drought, murder, suicide, rape, illness, disease or pathogens capable of causing disease or illness or any other hazards to health (including but not limited to the diseases expressly specified in the **Murder, suicide or disease cover** within this section)
- 5 actions where **you** have been given prior notice
- 6 any advice given or actions taken in controlling, preventing or suppressing the spread of any disease (including but not limited to the diseases expressly specified in the **Murder, suicide or disease cover** within this section) or illness
- 7 any change in law or the enactment of new legislation (including statutory regulations) for any failure, interruption or reduction to the public supply of electricity, gas, water or telecommunications
- 8 any failure, interruption or reduction to the public supply of electricity, gas, water or

telecommunications or any deliberate act or decision of any utility supply undertaking or public authority in cutting off, withholding, restricting or rationing, whether planned in advance or not, or the exercise by any such utility undertaking, government or public authority of its power to cut off, withhold, restrict or ration supply or services

If an incident occurs resulting in a claim under this extension **you** cannot claim under any other Business interruption section cover extension for the same incident.

Essential employees cover

We will cover **you** for any loss insured by this section resulting from interruption of or interference with the **business** as a result of

- 1
 - a death of an employee except due to illness
 - b permanent total disablement arising out of bodily injury except due to illness which in the opinion of an independent medical officer will in all likelihood prevent the employee from carrying out their usual employment or usual occupation for the remainder of their life
- 2 **your** employee winning a prize on the national lottery, premium bonds or football pools provided that their win exceeds £100,000 but excluding losses where **your** employee
 - a has been employed by **you** for a period of less than 12 months
 - b has served notice or has been served notice of termination of their employment prior to their win
 - c has been absent from work through sickness, disability or suspension for a period of 4 weeks at the time of their win

the cover will only apply from the date of the death or permanent total disablement or lottery win, premium bond win or football pools win for **your** employee and end a maximum of 3 months after this date.

Our liability will not exceed the amount of loss resulting from interference or interruption to **your business** for up to a maximum of 3 months

in any one **period of insurance** or £100,000 whichever is the lower.

Exhibition cover

We will cover **you** for any loss, covered by this section, resulting from interruption or interference with the **business** as a result of **damage** to **your** property whilst at exhibition sites anywhere in the world other than at the **premises** in **your** occupation, where **you** are exhibiting goods.

Provided that

- 1 **we** will not cover damage resulting from flood in the Netherlands, storm surge in Germany or earthquake including fire or subterranean fire in Italy, Portugal, Slovenia, Romania, Greece or Iceland
- 2 after the application of all other terms and conditions of **your policy**, **our** liability for any one claim will not exceed £50,000.

Exhibition expenses cover

The following meanings highlighted in bold and black print will have the same meaning wherever they are used in this cover.

Expenses

Advertising, printing and stationery, insurance premiums, charge for space at exhibitions, telephone, hire of stands, display materials and the like, transport charges, wages on stand and installing exhibits.

Location

Any exhibition site within the **policy territories** elsewhere than at the **premises** in **your** occupation where **you** are exhibiting goods including whilst in transit by road, rail or inland waterway.

We will cover **you** for the **expenses you** incur in connection with exhibitions held at any **location**

Provided that

- 1 in the event of the exhibition not being held (or **you** are unable to exhibit at all) as a result of the **incident** at any **location**, the amount recoverable will be limited to the

expenses you have paid or are liable to pay in connection with the exhibition

- 2 should the exhibition be discontinued after it starts, but before the full exhibition finishes (or **you** are unable to continue to exhibit for the full period of the exhibition) as a result of the **incident** at any **location**, the amount recoverable will be limited to the proportion of the amount calculated in accordance with provision 1 above, as the period for which **you** could not exhibit relates to the whole period of the exhibition
- 3 if the sum insured is less than the total of the **expenses**, the amount payable will be proportionately reduced.

Our liability for any one claim will not exceed £50,000.

Failure of selected public supplies cover

We will cover **you** for loss insured by this section of **business interruption** resulting from interruption or interference with **your business** caused by the unplanned disruption of

- 1 the public electricity supply at **your** supplier's generating station or sub station
- 2 the public gas supply at **your** supplier's land based premises
- 3 the public water supply at **your** supplier's waterworks or pumping station
- 4 the public telecommunications services at **your** supplier's land based premises

from which **you** obtain electricity, gas, water or telecommunications services within the **policy territories** where such unplanned disruption is a direct result of damage caused by fire, lightning, explosion, aircraft or other aerial devices or articles dropped from them, theft, malicious persons, accidental damage, earthquake, **storm, flood**, escape of water from any tank, apparatus or pipe, leakage of oil from any fixed heating installation, impact by any road vehicle or animal.

Provided that after the application of all other terms and conditions of this section, the most **we** will pay is the lower of either 25% of the annual figure upon which **your** sum insured is based, or £1,000,000 in total in any one **period of insurance** irrespective of the number of

premises insured and regardless of the number of suppliers affected during any one **period of insurance**.

The **Reinstatement of sum insured after loss condition** shall not apply in respect of this cover.

The insurance provided by this cover in any one **period of insurance** shall only apply for the period starting with the unplanned disruptions(s) of supply or service at **your premises** and ending after 3 months in total during which time **you** suffer a loss of **business interruption** regardless of the number of **your** suppliers affected during the **period of insurance** or the number of **premises** insured.

We will not cover

- a** any failure
 - i** which does not involve cessation of supply, for at least 12 hours
 - ii** due to an excluded cause
- b** loss resulting from failure caused by
 - i** any deliberate act or decision of any utility supply undertaking or public authority in cutting off, withholding, restricting or rationing, whether planned in advance or not, or the exercise by any such utility undertaking, government or public authority of its power to cut off, withhold, restrict or ration supply or services
 - ii** strikes or any labour or trade dispute
 - iii** solar flare or other atmospheric or weather conditions, but **we** will cover failure due to **damage** to equipment caused by these conditions.

In any action, lawsuit or other proceedings or where **we** allege that any loss resulting from damage is not covered by this section, it will be **your** responsibility to prove that they are covered.

Failure of selected public supplies terminal ends cover

We will cover **you** for loss covered by this section of **business interruption** resulting from interruption or interference with **your business** caused by the accidental failure and unplanned disruption of

- 1 the public electricity supply at the “terminal ends” of **your** supplier’s service feeds to the **premises** within the **policy territories**
- 2 the public gas supply at **your** supplier’s meters to the **premises** within the **policy territories**
- 3 the public water supply at **your** supplier’s main stop cock serving the **premises** (other than by drought) within the **policy territories**
- 4 the public telecommunications services supply (other than satellite services) at the incoming line, terminals or receivers to the **premises** within the **policy territories**

from which **you** obtain electricity, gas, water or telecommunications services within the **policy territories** where such unplanned disruption is a direct result of damage caused by fire, lightning, explosion, aircraft or other aerial devices or articles dropped from them, theft, malicious persons, accidental damage, earthquake, **storm, flood**, escape of water from any tank, apparatus or pipe, leakage of oil from any fixed heating installation, impact by any road vehicle or animal.

Provided that after the application of all other terms and conditions of this section, the most **we** will pay is the lower of either 25% of the annual figure on which **your** sum insured is based or £50,000 in total in any one **period of insurance** irrespective of the number of premises insured and regardless of the number of suppliers affected during any one **period of insurance**. The **Reinstatement of sum insured after loss condition** shall not apply in respect of this cover.

The insurance provided by this cover in any one **period of insurance** shall only apply for the period starting with the unplanned disruptions(s) of supply or service at **your premises** and ending after 3 months in total during which time **you** suffer a loss of **business interruption** regardless of the number of **your** suppliers affected during the **period of insurance** or the number of **premises** insured.

We will not cover

- a** any failure

- i which does not involve cessation of supply, for at least 12 hours
- ii due to an excluded cause
- b loss resulting from failure caused by
 - i any deliberate act or decision of any utility supply undertaking or public authority in cutting off, withholding, restricting or rationing, whether planned in advance or not, or the exercise by any such utility undertaking, government or public authority of its power to cut off, withhold, restrict or ration supply or services **damage**
 - ii strikes or any labour or trade dispute
 - iii solar flare or other atmospheric or weather conditions, but **we** will cover failure due to **damage** to equipment caused by these conditions.

In any action, lawsuit or other proceedings or where **we** allege that any loss resulting from damage is not covered by this section, it will be **your** responsibility to prove that they are covered.

Fines, penalties and damages cover

We will cover **you** for fines, penalties or damages for breach of contract and the amount payable will be the sums **you** are legally liable to pay in discharge of

- 1 fines, penalties or damages incurred solely as a result of **damage** for non-completion or late completion of orders, work or services and
- 2 committed costs for outside purchases or services incurred solely as a result of the **damage** in respect of the outside purchases or services which cannot be utilised by the **business** during the **indemnity period**.

Our liability for any one claim will not exceed £2,500.

Inflation protection cover

We will adjust the sum insured at each renewal in line with suitable indices of costs and the renewal premium for this section will be based on the adjusted sum insured.

Loss reduction expenses cover

We will cover **you** for the costs and expenses necessarily and reasonably incurred by **you** with **our** consent in

- 1 preventing or reducing imminent interruption of or interference with the **business** which would have been covered by this section
- 2 reducing, mitigating or otherwise alleviating any interruption of or interference with the **business** covered by this section during and after the occurrence of an insured event

Provided that

- a the impending interruption of or interference with the **business** was not reasonably foreseeable earlier and would be the natural outcome if such costs and expenses were not incurred
- b the impending interruption of or interference with the **business** did not arise from any defect in the property used by **you** for the purpose of the **business**
- c **we** are satisfied that the interruption of or interference with the **business** which would have been covered by this section has been avoided or reduced as a result of the measures taken.

Our liability will not exceed £2,500 in any one **period of insurance**.

Munitions of war cover

The **War risks exclusion** will not apply to **damage** to property insured under this section from or occasioned by the detonation of World War II munitions of war only or parts thereof in or within five miles of the **premises** situated in the **policy territories**.

Murder suicide or disease cover

We will cover **you** for any loss of **business interruption** insured by this section resulting from interruption of or interference with the **business** conducted by **you** at **your premises** during the **period of insurance** as a result of

- 1** the occurrence of any of the following specified human infectious or specified human contagious diseases
- Acute Encephalitis
 - Acute Poliomyelitis
 - Anthrax
 - Chicken Pox
 - Diphtheria
 - Dysentery caused by Shigella
 - Legionellosis
 - Legionnaires' Disease
 - Malaria
 - Measles
 - Meningococcal Infection
 - Mumps
 - Ophthalmia Neonatorum
 - Paratyphoid fever
 - Bubonic, Septicemic and Pneumonic Plague
 - Rabies
 - Rubella
 - Tetanus
 - Tuberculosis
 - Typhoid Fever
 - Whooping Cough
 - Yellow Fever

manifested by any person whilst at **your premises** which directly and exclusively results in restrictions having the force of law imposed by the police or other competent local (as opposed to a minister or other central governmental or public) authority which require the compulsory closing of the whole or part of **your premises** to prevent or restrict access to **your premises**

- 2** murder, suicide or rape at **your premises**
- 3** bodily injury (excluding illness, disease and psychiatric injury) or bacterial food poisoning sustained by any person arising from or traceable to foreign or injurious matter in food or drink provided at **your premises**
- 4** the discovery of vermin or pests in the **building(s)** at **your premises** that prevents the use of or part use of the **buildings** by

order of a public authority having the force of law

- 5** the compulsory closing of the whole or part of **your premises** by order of a public authority having the force of law as a result of an accident causing a defect in the drains, toilets or sinks at **your premises**.

We will not cover:

- a** any costs incurred in the cleaning, repair, replacement, recall or checking of the property insured
- b** any loss to the extent that it would have been caused in any event by disease occurring in a wider geographical area extending beyond **your premises** or by vermin or pests being discovered in a wider geographical area beyond the building(s) at **your premises**
- c** any incident involving interference or interruption to the business that is less than 12 consecutive hours

Any **Disease exclusion** shall apply to this **Murder, suicide or disease cover**, except that **communicable disease** shall not include the specified human infectious or specified human contagious diseases listed under clause 1 of this cover, the pathogens which cause them, or bacterial food poisoning, provided that such diseases listed under clause 1 have not been declared by the World Health Organization to be a public health emergency of international concern or a pandemic.

The maximum indemnity period under this cover shall be 3 months in any one **period of insurance** commencing from the date of

- i** the compulsory closing of the whole or part of **your premises** (in relation to clauses 1 and 5 of this cover)
- ii** the discovery of murder, suicide or rape (in relation to clause 2 of this cover)
- iii** the occurrence of injury or illness (in relation to clause 3 of this cover) or, where there is a series of related injuries or illness, the first occurrence of injury or illness in that series
- iv** the order of the public authority (in relation to clause 4 of this cover).

Our liability will not exceed the lower of the maximum indemnity period of 3 months or

£25,000 or 25% of the annual figure on which **your** sum insured is based in any one **period of insurance**, irrespective of the number of **premises** insured.

The **Reinstatement of sum insured after loss condition** shall not apply in respect of this cover.

For the purposes of the cover provided under this cover clause, any references to **damage** or incident within the meaning of the defined terms (including the notes thereto), the basis of claim settlement provisions, section or general exclusions, conditions and Policy conditions shall be read as if they were references to the cover provided under clauses 1 to 5 above.

Patterns cover

We will cover **you** for any loss insured by this section resulting from interruption of or interference with the **business** as a result of **damage** to patterns, jigs, models, templates, moulds, tools, dyes, drawings or designs which are **your** property or held in trust by **you** or for which **you** are responsible whilst at the premises of any machine makers, engineers, founders or other metal workers (excluding any premises in **your** occupation) within the **policy territories**.

Our liability for any one claim will not exceed £10,000.

Theft of building fabric cover

We will cover **you** for any loss insured by this section resulting from interruption of or interference with the **business** caused by theft or attempted theft of the external fabric of any **building(s)** insured by this **policy** up to the sum insured.

This cover does not apply to any **building(s)** which is **unoccupied**.

Transit cover

We will cover **you** for any loss insured by this section resulting from interruption of or interference with the **business** as a result of **damage** to property belonging to **you** whilst in transit by road, rail or inland waterway anywhere in the world provided that **we** will not cover damage resulting from flood in the Netherlands, storm surge in Germany or earthquake including

fire or subterranean fire in Italy, Portugal, Slovenia, Romania, Greece or Iceland.

Our liability under this cover for any one claim will not exceed £50,000.

Unspecified customers cover

The following meaning highlighted in bold black print will have the same meaning where it is used in this cover.

Customers

The companies, organisations or individuals who at the date of the **incident you** have contracts or trading relationships with for the supply of goods or services.

We will cover **you** for any loss insured by this section resulting from interruption of or interference with the **business** for a maximum indemnity period of 12 months as a result of

- 1 **damage** at the premises of any of **your customers** (other than those **customers** more specifically insured by this section) situated within the **policy territories**
- 2 **damage** to property insured in **your** schedule, held at unspecified **customers** premises.

Our liability for any one claim will not exceed £250,000.

Unspecified suppliers and storage sites cover

The following meaning highlighted in bold black print will have the same meaning where it is used in this cover.

Suppliers

The companies, organisations or individuals including manufacturers or processors of components, goods or materials who at the date of the **incident, you** have contracts or trading relationships with for the supply of goods or services to **you**.

We will cover **you** for any loss, covered by this section, resulting from interruption or interference with the **business** as a result of **damage** at

- 1 the premises of any of **your suppliers** other than those **suppliers** more specifically insured by this section
- 2 premises not in **your** occupation where **your** property is stored

within the **policy territories** or to properties noted in **your** schedule for a maximum indemnity period of 12 months.

This cover does not apply to the premises of any **supplier** from where **you** obtain electricity, gas or water or telecommunications services.

Our liability under this cover for any one claim will not exceed £250,000.

X What is not covered

Aircraft and aerial devices exclusion

We will not cover **you** for **business interruption** caused by or occasioned by pressure waves caused by aircraft or other aerial devices travelling at sonic or supersonic speeds. **We** will cover subsequent **business interruption** which itself results from a cause covered by this section.

Brittle articles exclusion

We will not cover **you** for **business interruption** resulting from loss, destruction or damage to glass (other than fixed glass) china, earthenware, marble or other fragile or brittle objects other than for **business interruption** caused by a **defined peril** covered by this section.

Collapse exclusion

We will not cover **you** for **business interruption** resulting from loss, destruction or damage to the **building(s)** or structure caused by its own collapse or cracking unless resulting from a **defined peril** which is covered by this section.

Collusion exclusion

We will not cover **you** for **business interruption** resulting from theft or attempted theft caused by or in conjunction with **you** or any of **your** partners, directors or employees or any member of **your** family or any other people lawfully at the **premises**.

Cyber exclusion

We will not cover **you** for any loss, damage, cost or expense directly or indirectly caused by, contributed to by, arising from, occasioned by or resulting from

- 1 any **cyber act** including but not limited to **hacking, phishing, denial of service attack** or the transmission of any **virus or similar mechanism**
- 2 any **cyber incident**

This exclusion shall not apply to claims for **damage** resulting from fire, lightning, explosion, aircraft or other aerial devices or articles dropped from them covered by this section.

Date recognition exclusion

We will not cover **you** for any loss, damage, cost or expense resulting from, directly or indirectly caused by, contributed to or arising from the failure of equipment (including any **computer systems**) to correctly recognise any given date or to process data or to operate properly due to failure to recognise any given date.

This exclusion shall not apply to claims for **damage** resulting from a **defined peril** covered by this section.

Deliberate loss or damage exclusion

We will not cover **you** for any loss, damage, cost or expense caused, or allowed to be caused, deliberately, wilfully, maliciously, illegally or unlawfully by **you**.

Disease exclusion

- 1 Notwithstanding any provision to the contrary within this section, this section excludes any loss, damage, liability, claim, cost or expense of whatsoever nature, directly or indirectly caused by, contributed to by, resulting from, arising out of, or in connection with a **communicable disease** or the fear or threat (whether actual or perceived) of a **communicable disease** regardless of any other cause or event contributing concurrently or in any other sequence thereto.
- 2 Subject to the other terms, conditions and exclusions contained in this section,

this section will cover physical damage to property insured and any **time element loss** directly resulting therefrom where such physical damage or **time element loss** is covered by this section and is directly caused by or arising from any of the following perils: fire, lightning, explosion, aircraft or other aerial devices or articles dropped from them, or impact by any road vehicle or animal, **storm**, earthquake, **flood**, subsidence, landslip, landslide, riot, riot attending a strike, civil commotion, vandalism and malicious persons, theft, escape of water from any tank apparatus or pipe, leakage of oil from any fixed heating installation.

Electrical plant or apparatus exclusion

We will not cover **you** for **business interruption** as a result of loss, destruction or damage to any electrical plant or apparatus caused by its own overrunning, short circuiting, excessive pressure or self-heating.

We will cover subsequent **business interruption** which itself results from a cause covered by this section.

Erasure of data exclusion

We will not cover **you** for **business interruption** arising directly or indirectly from

- 1 erasure, loss, distortion or corruption of information on computer systems or other records, programs or software caused deliberately by rioters, strikers, locked-out workers, persons taking part in labour disturbances, civil commotion or malicious persons
- 2 other erasure, loss, distortion or corruption of information on computer systems or other records, programs or software unless resulting from a **defined peril** covered by this section.

This exclusion will not apply to the cover provided under **Increased cost of working and reinstatement of data (Computers)**.

Faulty or defective workmanship exclusion

We will not cover **you** for **business interruption** caused by or consisting of faulty or defective

workmanship, operational error or omission by **you**, any of **your** employees or anyone on **your** behalf, but **we** will cover subsequent **business interruption** which results from a **defined peril** covered by this section.

Fraud and dishonesty exclusion

We will not cover **you** for **business interruption** arising directly or indirectly from any acts of fraud or dishonesty by **your** employees, or any partner, director or member of **your** family. **We** will cover subsequent **business interruption** which results from a **defined peril** covered by this section.

Miscellaneous damage exclusion

We will not cover **you** for **business interruption** caused by or resulting from

- 1 corrosion, rust, wet or dry rot, shrinkage, evaporation, loss of weight, dampness, dryness, marring, scratching, vermin or insects
- 2 change in temperature, colour, flavour, texture or finish
- 3 joint leakage, failure of welds, cracking, fracturing, collapse or overheating of boilers, economisers, superheaters, pressure vessels or any range of steam and feed piping connected to them
- 4 mechanical or electrical breakdown or derangement of a particular machine, apparatus or equipment where the breakdown or derangement originates

but **we** will cover

- 1 **business interruption** which results from a **defined peril** covered by this section
- 2 subsequent **business interruption** which itself results from a cause covered by this section.

Motor vehicle and other property exclusion

We will not cover **you** for **business interruption** resulting from loss, destruction or damage to

- 1 vehicles licensed for road use (including accessories on them) caravans, trailers, railway locomotives, rolling stock, watercraft or aircraft

- 2 property or structures in the course of construction or erection and materials or supplies in connection with all property in the course of construction or erection
- 3 land, piers, jetties, bridges, culverts or excavations
- 4 livestock, growing crops or trees
- 5 pitch fibre pipes
- 6 electronic cryptographic or virtual currency or currencies of any kind.

Pollution or contamination exclusion

We will not cover **you** for any consequential loss resulting from pollution or contamination but **we** will cover loss resulting from **damage** to property used by **you** at the **premises** for the purpose of the **business** which is covered elsewhere in this section caused by

- 1 pollution or contamination at the **premises** which itself results from a **defined peril** provided that peril is covered by this section
- 2 a **defined peril** provided that peril is covered by this section which itself results from pollution or contamination.

Process exclusion

We will not cover **you** for **business interruption** arising directly or indirectly from loss, destruction or damage

- 1 to property used by **you** at the **premises** for the purpose of the **business** caused by fire, resulting from its undergoing any heating process or any process involving the application of heat
- 2 (other than by fire or explosion) to property used by **you** at the **premises** for the purpose of the **business** resulting from its undergoing any process of production, packing, treatment, testing, commissioning, servicing or repair.

Property in the open exclusion

We will not cover **you** for **business interruption** resulting from loss, destruction or damage to fences, gates and moveable property in the open caused by wind, rain, hail, sleet, snow, **flood**, or dust unless otherwise stated.

Radioactive contamination exclusion

We will not cover damage, or any other loss or expense resulting or arising from damage to any property, or any consequential loss, directly or indirectly caused by or contributed to by or arising from

- 1 ionising radiations or contamination by radioactivity from any nuclear fuel, nuclear waste from the combustion of nuclear fuel, radioisotopes, or any other nuclear or radioactive material
- 2 buildings, plant or equipment for the generation of nuclear power, or production, use or storage of nuclear fuel, nuclear waste from the combustion of nuclear fuel, radioisotopes, or any other nuclear or radioactive material
- 3 transportation of nuclear fuel, nuclear waste from the combustion of nuclear fuel, radioisotopes, or any other nuclear or radioactive material
- 4 the radioactive, toxic, explosive or other hazardous properties of any explosive nuclear assembly or nuclear component of that assembly
- 5 any weapon or device employing atomic or nuclear fission and/or fusion or other like reaction or radioactive force or matter.

Steam pressure exclusion

We will not cover **you** for **business interruption** following loss, destruction or damage caused by or consisting of the bursting of any vessel, machine or apparatus (not being a boiler or economiser used for domestic purposes only) where the internal pressure is due to steam only belonging to **you** or under **your** control.

But **we** will cover subsequent **business interruption** which itself results from a cause covered by this section.

Subsidence exclusion

We will not cover **you** for **business interruption** caused by or resulting from

- 1 subsidence, ground heave or landslip unless resulting from fire, explosion, earthquake or the escape of water from any tank, apparatus or pipe

- 2 coastal or river erosion
- 3 normal settlement or bedding down of new structures

Part 1 of this exclusion does not apply if Special clause 3 **Subsidence cover** is shown as covered in **your** schedule.

Terrorism and Northern Ireland exclusion

We will not cover **you** for consequential loss of any nature directly or indirectly caused by, resulting from or in connection with

- 1 In England, Scotland, Wales, the Channel Islands, Isle of Man and the Rest of the World
 - a any act of **terrorism**, regardless of any other cause or event contributing concurrently or in any other sequence to the loss
 - b any action taken in controlling, preventing, suppressing or in any way relating to any act of **terrorism**
- 2 In Northern Ireland
 - a any act of **terrorism**, regardless of any other cause or event contributing concurrently or in any other sequence to the loss
 - b any action taken in controlling, preventing, suppressing or in any way relating to any act of **terrorism**
 - c riot, civil commotion and (except for damage or interruption to the **business** caused by fire or explosion) strikers, locked-out workers or persons taking part in labour disturbances or malicious persons.

If any of the points above are found to be invalid or unenforceable, the remainder of the points shall remain in full force and effect.

In any action, lawsuit or other proceedings or where **we** state that any loss, damage, cost or expense is not covered by this section it will be **your** responsibility to prove that they are covered.

Theft or any attempted theft exclusion

We will not cover you for **business interruption** caused by theft or attempted theft

- 1 of property insured in the open whilst at **your premises** unless otherwise stated
- 2 when neither **you** nor any of **your** partners, directors or employees or any member of **your** or their family is at the **premises** unless it involves entry to, or exit from a building or part of a building by forcible and violent means.

Unexplained losses exclusion

We will not cover **you** for **business interruption** arising directly or indirectly from

- 1 any disappearance or shortage revealed at the time of any stocktaking or a stock check or the making of any inventory or not traceable to a specific event
- 2 misfiling or misplacing of information.

Unoccupied building exclusion

We will not cover **you** for **business interruption** for any building which is **unoccupied** caused by

- 1 freezing
- 2 escape of water from any tank, apparatus or pipe
- 3 malicious persons not acting on behalf of or in connection with any political organisation other than by fire or explosion
- 4 theft damage to the building
- 5 theft of fabric of the buildings.

War risks exclusion

We will not cover any claims caused by or happening through war, invasion, act of foreign enemy, hostilities (whether war is declared or not), civil war, civil rebellion, warlike operations, revolution, insurrection or military or usurped power, confiscation, nationalisation, requisition, seizure or destruction or damage to property by or under the order of any government or public or local authority.

Wear and tear, deterioration exclusion

We will not cover **you** for **business interruption** caused by or resulting from inherent vice, latent defect, gradual deterioration, wear and tear, frost, change in water table level, faulty or defective design or materials. **We** will cover

subsequent **business interruption** which itself results from a cause covered by this section.

Section conditions

These conditions of cover apply only to this section.

You must comply with the following conditions to have the full protection of **your policy**.

Some conditions specify circumstances whereby non-compliance will mean that **you** will not receive payment for a claim. However, **you** will be covered and **we** will pay **your** claim if **you** are able to prove that the non-compliance with these conditions could not have increased the risk of the loss which actually occurred in the circumstances in which it occurred.

Accounts receivable condition

We will cover **you** for **business interruption** caused by or arising directly or indirectly from the loss, destruction or damage to **your** accounting records, other business books or records at the **premises**.

Provided that

- 1 at the end of each month **you** record the total amount of **accounts receivable**
- 2 **you** keep a copy of such record at a place other than at the **premises**

If **you** do not comply with this condition **you** will not be covered and **we** will not make any payment in respect of a claim.

Accumulated stocks condition

In adjusting any loss, an allowance will be made if any shortage of **turnover** due to the **damage** is postponed because the **turnover** is temporarily maintained from accumulated stocks of raw materials, work in progress or finished goods.

Alternative trading condition

If during the **indemnity period** goods are sold, accommodation provided or services rendered elsewhere other than at the **premises** for the benefit of the **business**, either by **you** or by others on **your** behalf the money paid or payable for these sales, accommodation or services will be included in arriving at the **turnover**,

gross revenue or **gross rentals** during the **indemnity period**.

Arbitration condition

If **we** agree to pay **your** claim and **you** disagree with the amount to be paid, the amount of the difference will be referred to an arbitrator who is jointly appointed in accordance with the statutory requirements. **You** will not be able to take legal action against **us** over this disagreement until the arbitrators have made their award.

Cessation or discontinuation condition

We will not cover **you** if after the start of the **period of insurance** the **business** is wound up or carried on by a liquidator or receiver or permanently discontinued.

Claims condition

In event of a claim being made under this section **you** will at **your** own expense

- 1 a other than in respect of **accounts receivable** provide **us** within 30 days after the end of the **indemnity period** or within such time as agreed by **us** with written details of **your** claim
b provide **us** with details of any other insurances covering the property used by **you** at the **premises** for the purpose of the **business** or any part of it or any consequential loss
- 2 deliver to **us** any books of account and other business books, vouchers, invoices, balance sheets and other documents, proofs and any other information required by **us**, for the purpose of investigating or verifying the claim together with, if required, a statutory declaration of truth of the claim and any matters connected with it.

If **you** do not comply with this condition

- 1 **we** have the right to refuse to pay **your** claim
- 2 if **we** refuse to pay **your** claim **you** must repay **us** any amount **we** may have already paid.

Contribution condition

If the cover provided by this section is insured by any other policy, **we** will only cover **you** for

business interruption up to the limits of **our** rateable proportion.

Departmental condition

If the **business** is conducted in departments, where the independent trading results can be ascertained, the basis of settlement for **gross profit** or **gross revenue** or **gross rent** will apply separately to each department affected by the **incident**. Where the sum insured for **gross profit**, **gross revenue** or **gross rent** is less than the total sum produced by applying the rate of **gross profit**, **gross revenue** or **gross rentals** for each department of the **business** (whether affected by the **incident** or not) to the **annual turnover**, **annual gross revenue** or **annual gross rentals** (or to a proportionately increased multiple thereof where the **maximum indemnity period** exceeds 12 months) the amount payable shall be proportionately reduced.

Limit of cover condition

If **we** cover more than one person, firm, subsidiary, company, organisation or premises the amount payable by **us** in total, on behalf of all entitled to cover under this section, shall not in any circumstances exceed in total the sum insured including any limit shown in this section or **your** schedule.

Any payment or payments that **we** make to any or all insured parties will reduce **our** liability by the amount of the payment to all insured parties for any loss covered by this section and (if applicable) in the **period of insurance**.

New business condition

For the purpose of any claim arising from an **incident** occurring before the completion of the first year's trading of the **business** at the **premises**, the following meanings apply and not as otherwise stated in this section.

1 Rate of gross profit

The rate of gross profit earned on the **turnover** during the period between the start date of the **business** and the date of the **incident**.

2 Annual turnover

The proportional equivalent for a 12 month period, of the **turnover** earned during the

period between the start of the **business** and the date of the **incident**.

3 Standard turnover

The proportional equivalent for a period equal to the **indemnity period** of the **turnover** earned during the period between the start of the **business** and the date of the **incident**.

4 Annual gross revenue

The proportional equivalent for a period of 12 months of the **gross revenue** earned during the period between the start date of the **business** and the date of the **incident**.

5 Standard gross revenue

The proportional equivalent for a period equal to the **indemnity period** of the **gross revenue** earned during the period between the start date of the **business** and the date of the **incident**.

6 Annual gross rentals

The proportional equivalent for a period of 12 months of the **gross rentals** earned during the period between the start date of the **business** and the date of the **incident**.

7 Standard gross rentals

The proportional equivalent for a period equal to the **indemnity period** of the **gross rentals** earned during the period between the start of the **business** and the date of the **incident**.

We will make adjustments as necessary for trends of the **business** and for variations and other circumstances affecting the **business**, either before or after the **incident**, or which would have affected the **business** had the **incident** not occurred so that the adjusted figures represent as closely as possible, the results which would have been obtained during the **indemnity period** after the **incident**.

Payments on account condition

At **your** request, payments on account may be made to **you** monthly during the **indemnity period**.

Premium adjustment condition

The premium paid may be adjusted by **us** following a declaration of **gross profit**, **gross rentals** or **gross revenue** earned during the financial year most closely concurrent with the **period of insurance** as reported by **your** auditors

- 1 if any **incident** occurred resulting in a claim for loss of **gross profit**, **gross rentals** or **gross revenue**, **we** will increase the declaration for the purpose of premium adjustment, by the amount by which the **gross profit**, **gross rentals** or **gross revenue** was reduced during the financial year solely as a result of the **incident**.
- 2 if either declaration (adjusted as above and proportionately increased where the **maximum indemnity period** exceeds 12 months) is less than the sum insured on **gross profit**, **gross rentals** or **gross revenue** for the relative **period of insurance**, **we** will allow a pro rata return in the premium but **we** will not return more than 25% of the original premium.

Note: Accountants may be substituted for auditors for companies exempt from credit requirements.

Professional accountants condition

Any particulars or details contained in **your** books of account, other business books or documents that are required by **us** for investigation or verifying any claim under the **Claims condition** for this section, may be produced by professional accountants if, at the time they are regularly acting for **you**. Their report will be prima facie evidence of the particulars and details to which the report relates to.

We will pay **you** the reasonable charges that **you** have to pay for professional accountants in producing the particulars or details or any other proofs, information or evidence that **we** may require under the **Claims condition** for this section and reporting these particulars or details are in accordance with **your** accounting records, other business books or documents.

Provided that the total amount payable under this condition and the amount otherwise

payable under the section does not exceed the sum insured shown in **your** schedule.

Reinstatement of sum insured after loss condition

In the event of **business interruption**, the sum insured by this section will be automatically reinstated from the date of the **damage** unless written notice is given to the contrary either by **us** or by **you**.

Provided that in the event of reinstatement **you** will

- 1 pay the necessary premiums that may be required for the reinstatement, from the date of reinstatement
- 2 complete any additional risk improvements which **we** may reasonably require.

Salvage sales condition

If following a loss insured by this section resulting from interruption of or interference with the **business you** hold a salvage sale during the **indemnity period** paragraph 1 a of the **gross profit/estimated gross profit** item of the Basis of loss settlement is amended as follows

for reduction in **turnover**, the sum produced by applying the **rate of gross profit** earned on the **turnover** during the financial year immediately before the date of the **incident**, to the amount by which the **turnover** during the **indemnity period** (less **turnover** for the period of the salvage sale) as a result of the **incident**, falls short of the **turnover** during the corresponding period in the 12 months immediately before the date of the **incident** from which amount shall be deducted the **gross profit** actually earned during the period of the salvage sale.

Subrogation waiver condition

In the event of a claim under this section **we** agree to waive any rights, remedies or relief to which **we** might have become entitled by subrogation against

- 1 any company standing in relation of parent to subsidiary (or subsidiary to parent) to **you**
- 2 any company which is a subsidiary of a parent company of which **you** are a subsidiary

in each case as defined by current law at the time of the **damage**.

Uninsured working expenses condition

If any working expenses of the **business** are not insured by this section (having been deducted in arriving at the **gross profit**) then in calculating the amount recoverable as increase in cost of working, that proportion only of any additional cost will be taken into account which the **gross profit** relates to the sum of the **gross profit** and the **uninsured working expenses**.

Specific section conditions and covers

The following conditions and covers only apply if shown as covered in **your** schedule.

You must comply with the following conditions to have the full protection of **your policy**. Some conditions specify circumstances whereby non-compliance will mean that **you** will not receive payment for a claim. However, **you** will be covered and **we** will pay **your** claim if **you** are able to prove that the non-compliance with these conditions could not have increased the risk of the loss which actually occurred in the circumstances in which it occurred.

1 Deposit premium condition

The first and annual premiums are provisional, being 75% of the premiums which are payable at the start of the **period of insurance** and the balance of 25% to be paid within 6 months of the end of that period, except for any item on **gross profit**, **gross revenue** or **gross rentals** the premium paid will be adjusted on receipt by **us** of a declaration of **gross profit**, **gross revenue** or **gross rentals** earned during the financial year most closely concurrent with the year of insurance as reported by **your** auditors.

Note: Accountants may be substituted for auditors for companies exempt from audit requirements.

If any **incident** occurred resulting in a claim for loss of **gross profit**, **gross revenue** or **gross rentals**, **we** will increase the above declaration for the purpose of premium adjustment by the amount by which the

gross profit, **gross revenue** or **gross rentals** was reduced during the financial year solely because of the **incident**.

If the declaration (adjusted as above and proportionately increased where the **maximum indemnity period** exceeds 12 months)

- 1 is less than 75% of the sum insured on **gross profit**, **gross revenue** or **gross rentals** for the relative period, **we** will allow a pro rata return of premium not exceeding 33 1/3 % of the provisional premium paid
- 2 is greater than 75% of the sum insured on **gross profit**, **gross revenue** or **gross rentals** for the relative period, **you** will pay a pro rata additional premium not exceeding 33 1/3 % of the provisional premium paid.

In the event that no declaration is received within 6 months of the end of the **period of insurance you** must pay the balance of 25% of the premium.

Part 1 of the **Premium adjustment condition** does not apply.

2 Declaration linked condition

- 1 Before each renewal **you** will supply **us** with the **estimated gross profit**, **estimated gross revenue** or **estimated gross rentals** for the financial year most closely concurrent with the following year of insurance.
- 2 The first and annual premiums for each item on **estimated gross profit**, **estimated gross revenue** or **estimated gross rentals** are provisional and are based on the **estimated gross profit**, **estimated gross revenue** or **estimated gross rentals**.

You must provide **us** with a declaration confirmed by **your** auditors, of the **gross profit**, **gross revenue** or **gross rentals** earned during the financial year most closely concurrent with the **period of insurance**. **We** must receive this no later than 6 months after the end of each **period of insurance**

Note: Accountants may be substituted for auditors for companies exempt from audit requirements.

If any **incident** occurred resulting in a claim for loss of **gross profit**, **gross revenue** or **gross rentals**, **we** will increase the above declaration for the purpose of premium adjustment by the amount which the **gross profit**, **gross revenue** or **gross rentals** was reduced during the financial year solely as a result of the **incident**.

If the declaration (adjusted as provided above and proportionately increased where the **maximum indemnity period** exceeds 12 months)

- 1 is less than the **estimated gross profit**, **estimated gross revenue** or **estimated gross rentals** for the relative **period of insurance**, **we** will allow a pro rata return of the premium paid on the **estimated gross profit**, **estimated gross revenue** or **estimated gross rentals** but not exceeding 25% of the premium
- 2 is greater than the **estimated gross profit**, **estimated gross revenue** or **estimated gross rentals** for the relative **period of insurance**, **you** will pay a pro rata addition to the premium paid on the **estimated gross profit**, **estimated gross revenue** or **estimated gross rentals**.

Our liability under Part 1 b i under 'What is covered' is restated so that **our** liability will not exceed for **gross profit**, **gross revenue** or **gross rentals** the uplifted sum insured shown in **your** schedule for **estimated gross profit**, **estimated gross revenue** or **estimated gross rentals** and for each other item 100% of the sums insured by the items or other amounts as may be agreed by **us**.

Part 1 of the **Premium adjustment condition** is deleted.

3 Subsidence cover

If this cover is shown as covered in **your** schedule, the **Subsidence exclusion** under the heading 'What is not covered' does not apply.

We will cover **you** for any loss, insured by this section, resulting from interruption of or interference with the **business** caused by subsidence or ground heave of any part of the site on which the **premises** stands or landslip, but **we** will not cover interference or interruption of the business caused by

- 1 damage to yards, car parks, roads, pavements, walls, gates and fences unless also affecting the **building(s)** insured by this **policy**
- 2 damage caused by or consisting of
 - a the normal settlement or bedding down of new structures
 - b the settlement or movement of made-up ground
 - c coastal or river erosion
 - d defective design or workmanship or the use of defective materials
 - e fire, subterranean fire, explosion, earthquake or the escape of water from any tank, apparatus or pipe
- 3 damage which originated before the start of this cover
- 4 damage resulting from
 - a demolition, construction, structural alteration or repair of any property
 - b ground works or excavationat the **premises**

Special conditions applicable to Subsidence cover

You must notify **us** as soon as possible if **you** become aware of any demolition, ground works, excavation or construction being carried out on any adjoining site and **we** will then have the right to vary the terms or cancel the cover.

If **you** do not comply with this condition **you** will not be covered and **we** will not make any payment in respect of a claim for subsidence, ground heave or landslip.

Terrorism section

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Your schedule will show if this section is covered.

Meanings of defined terms

These meanings apply within **your** Terrorism section. If a word or phrase has a defined meaning it will be highlighted in bold blue print and will have the same meaning wherever it is used in this section. The meaning of defined terms that apply throughout **your policy**, and not just this section, can be found in the General introduction section of **your policy**.

Business interruption

Loss resulting from interruption of or interference with the **business** carried on by **you** at the **premises** as a result of **damage** to property used by **you** at the **premises** for the purpose of the **business**.

Computer systems

Computer or other equipment or component or system or item which processes, stores, transmits or receives **data**.

Cyber act

An unauthorised, malicious or criminal act or series of related unauthorised, malicious and criminal acts, regardless of time and place, or the threat or hoax thereof involving access to, processing of, use of or operation of any **computer systems**.

Cyber incident

- 1 any error or omission or series of related errors or omissions involving access to, processing of, use of or operation of any **computer systems**; or
- 2 any partial or total unavailability or failure or series of related partial or total unavailability or failures to access, process, use or operate any **computer systems**.

Damage

Physical loss or destruction or damage.

Data

Any data of any sort whatever, including without limitation tangible or intangible data, and any programs or software, bandwidth, cryptographic keys, databases, documents, domain names or network addresses or anything similar, files, interfaces, metadata, platforms, processing capability, storage media, transaction gateways, user credentials, websites, or any information whatever.

Denial of service attack

Any actions or instructions constructed or generated with the ability to damage, interfere with or otherwise affect the availability or performance of networks, network services, network connectivity or **computer systems**. Denial of service attacks include, but are not limited to, the generation of excess traffic into network addresses, the exploitation of system or network weaknesses, the generation of excess or non-genuine traffic between and amongst networks and the procurement of such actions or instructions by other **computer systems**.

Hacking

Unauthorised access to any **computer system** whether **your** property or not.

Phishing

Any access or attempted access to **data** made by means of misrepresentation or deception.

Premises

The premises shown in **your** schedule.

Private individual

Any person other than

- 1 a company, association or partnership
- 2 a trustee or body of trustees where insurance is arranged under the terms of a trust
- 3 a person who owns residential property for the purpose of a business as a sole trader
- 4 a person who owns residential property of which in excess of 20% is commercially occupied

5 an executor of a will

Where

- (i) the residential property is occupied by a trustee, executor of a will or a sole trader as a private residence and the property is not a block of flats then each will be classified as a private individual in respect of that property
- (i) more than one person is named on the **policy** but each is a private individual, or one of the parties named is a financial interest that has simply had their interest noted then the **policy** will be classified as being in the name of a private individual.

Terrorism

For risks located in England, Wales and Scotland except for residential property insured in the name of a private individual

Acts of persons acting on behalf of, or in connection with, any organisation which carries out activities directed towards the overthrowing or influencing, by force or violence, of His Majesty's Government in the United Kingdom or any other government de jure or de facto.

For risks located in the Channel Islands, Isle of Man and residential property located in England, Wales and Scotland insured in the name of a private individual

An act of any person(s) acting on behalf of or in connection with any organisation which carries out activities directed towards the overthrowing or influencing by force or violence of any government de jure or de facto.

Virus or similar mechanism

Program code, programming instruction or any set of instructions constructed with the purpose and ability, or purposely used, to damage, interfere with, adversely affect, infiltrate or monitor computer programs, **computer systems**, **data** or operations, whether involving self-replication or not. The meaning of virus or similar mechanism includes but is not limited to trojan horses, worms and logic bombs and the exploitation of bugs or vulnerabilities in a computer program to damage, interfere with, adversely affect, infiltrate or monitor as above.

✓ What is covered

The cover provided under the Sections applicable as shown in the Terrorism section of **your** schedule is extended to include **damage** to the property insured or loss resulting from interruption or interference with the **business** as a result of **damage** to property used by **you** at the **premises** or other insured loss directly resulting from **damage** which impacts the **business** carried on by **you** at the **premises** where covered caused by happening through or as a result of **terrorism**.

Where the Property damage section is shown as being applicable under the Terrorism section of **your policy** and Goods in transit cover is shown as being insured on **your** schedule, this section is extended to include **damage** to property insured under the Goods in transit section for losses caused by **terrorism**.

All losses arising within 72 hours caused by **terrorism** during the **period of insurance** will be treated as one loss and **you** can decide when the 72 hour period starts as covered by this section, provided that all **damage** occurs within the **period of insurance** and that no two periods overlap.

✗ What is not covered

Applicable to all locations

Excluded property exclusion

We will not cover **you** for any losses directly or indirectly caused by or resulting from loss, destruction or damage to or at any

- 1 property located outside England, Wales, Scotland, the Channel Islands and the Isle of Man and property in the territorial seas adjacent thereto as defined by the Territorial Seas Act 1987
- 2 nuclear installation or nuclear reactor
- 3 property which is specifically excluded elsewhere in this **policy**.

Motor exclusion

We will not cover **you** for any property

- 1 covered by a motor policy other than a motor trade policy

- 2 covered under a road risks section of a motor trade policy.

Other insurances exclusion

We will not cover **you** for any property which is insured by or would, but for the existence of this **policy**, be insured by any form of transit, aviation or marine policy.

Applicable to risks in England, Wales and Scotland only and where the risks are not residential property insured in the name of a private individual

Cyber exclusion

We will not cover any losses directly or indirectly caused by contributed to by or arising from or occasioned by or resulting from

- 1 damage to or the destruction of any **computer systems**
- 2 any alteration, modification, distortion, erasure or corruption of **data**

in each case whether **your** property or not, where such loss is directly or indirectly caused by or contributed to by or arising from or occasioned by or resulting from **virus or similar mechanism** or **hacking** or **phishing** or **denial of service attack**.

But this exclusion will not apply where the loss

- A) results directly from fire, explosion, flood, escape of water from any tank, apparatus or pipe (including any sprinkler system), impact of aircraft or any aerial devices or articles dropped from them, impact of any sea-going or water-going vessel or of any vehicle whatsoever or of any goods or cargo carried in or on such a vessel or vehicle, destruction of, damage to or movement of buildings or structures, plant or machinery other than any **computer systems**;
and
- B) comprises
 - (a) the cost of reinstatement, replacement or repair in respect of **damage** to or destruction of property insured by **you** and/or

- (b) **business interruption** suffered directly by **you** as a direct result of either **damage** or destruction to property used by **you** at a location covered by this **policy** or as a direct result of denial, prevention or hindrance of access to a location where property used by **you** is covered by this **policy** as a result of **damage** caused by **terrorism** to property which is within one mile of the location.

However, under **A)** and **B)** above **we** will not cover **you** for any losses caused by **terrorism** where the organisation involved or any persons acting on behalf of or in connection with that organisation are controlled by, acting on behalf of or part of any de jure or de facto government of any nation, country or state.

Subject only to the proviso set out in **C)** below, the following property is specifically excluded from the cover provided under **A)** and **B)** above

- (i) money, currency, electronic cryptographic or virtual currency, including Bitcoin or anything similar, negotiable or non-negotiable instruments, financial securities or any financial instrument of any sort whatever
and
 - (ii) **data**
- C)** However, in circumstances where loss otherwise falling within this section results indirectly from any alteration, modification, distortion, erasure or corruption of **data** because the occurrence of a peril or perils detailed under **A)** above results from any alteration, modification, distortion, erasure or corruption of **data** then notwithstanding **(ii)** above, such loss shall nonetheless be covered.

War risks exclusion

We will not cover any claims caused by or happening through riot, civil commotion, war, invasion, act of foreign enemy, hostilities (whether war is declared or not), civil war, rebellion, revolution, insurrection or military or usurped power.

Applicable to risks in the Channel Islands, Isle of Man and to residential property risks insured in the name of a private individual for England, Wales and Scotland.

Cyber exclusion

We will not cover **you** for any loss, damage, cost or expense directly or indirectly caused by, contributed to by, arising from occasioned by or resulting from

- 1 any **cyber act** including but not limited to **hacking, phishing, denial of service attack** or the transmission of any **virus or similar mechanism**
- 2 any **cyber incident**.

Deliberate loss or damage exclusion

We will not cover **you** for any loss, damage, cost or expense caused, or allowed to be caused, deliberately, wilfully, maliciously, illegally or unlawfully by **you**.

Pollution and contamination exclusion

We will not cover damage, or any other loss or expense resulting or arising from damage to any property, or any consequential loss directly or indirectly caused by or contributed to by, or in connection with, or arising from biological or chemical pollution or contamination.

Radioactive contamination exclusion

We will not cover damage, or any other loss or expense resulting or arising from damage to any property, or any consequential loss, directly or indirectly caused by or contributed to by or arising from

- 1 ionising radiations or contamination by radioactivity from any nuclear fuel, nuclear waste from the combustion of nuclear fuel, radioisotopes, or any other nuclear or radioactive material
- 2 buildings, plant or equipment for the generation of nuclear power, or production, use or storage of nuclear fuel, nuclear waste from the combustion of nuclear fuel, radioisotopes, or any other nuclear or radioactive material

- 3 transportation of nuclear fuel, nuclear waste from the combustion of nuclear fuel, radioisotopes, or any other nuclear or radioactive material
- 4 the radioactive, toxic, explosive or other hazardous properties of any explosive nuclear assembly or nuclear component of that assembly
- 5 any weapon or device employing atomic or nuclear fission and/or fusion or other like reaction or radioactive force or matter.

whichever is the less as stated within the Sections applicable shown in the Terrorism section of **your** schedule.

Proof of cover condition

In any action, lawsuit or other proceedings or where **we** state that any loss, damage, costs or expense is not covered by this section it will be **your** responsibility to prove that they are covered.

War risks exclusion

We will not cover **you** for any claims caused by or happening through war, invasion, act of foreign enemy, hostilities (whether war is declared or not), civil war, civil rebellion, warlike operations, revolution, insurrection or military or usurped power, confiscation, nationalisation, requisition, seizure or destruction or damage to property by or under the order of any government or public or local authority.

Section conditions

These conditions of cover apply only to this section.

You must comply with the following conditions to have the full protection of **your policy**.

Some conditions specify circumstances whereby non-compliance will mean that **you** will not receive payment for a claim. However, **you** will be covered and **we** will pay **your** claim if **you** are able to prove that the non-compliance with these conditions could not have increased the risk of the loss which actually occurred in the circumstances in which it occurred.

Limitation of liability condition

Our liability for all losses from any one event and in total in any one **period of insurance** will not exceed

- 1 the total sums insured, or
- 2 for each item its individual sum insured, or
- 3 any other limit of liability
- 4 the sum insured (or limit remaining) after the deduction for any other **damage** occurring during the same **period of insurance**

Employers liability section

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Your schedule will show if this section is covered.

Meanings of defined terms

These meanings apply within **your** Employers liability section. If a word or phrase has a defined meaning it will be highlighted in bold blue print and will have the same meaning wherever it is used in this section. The meaning of defined terms that apply throughout **your policy**, and not just this section, can be found in the General introduction section of **your policy**.

Bodily injury

Death, bodily injury, illness or disease.

Claim costs

Costs and expenses

- 1 of any claimant which **you** become legally liable to pay
- 2 incurred, with **our** prior written consent, to investigate or defend a claim against **you** including solicitors fees at
 - a any coroner's inquest or fatal accident inquiry
 - b summary court proceedings.

Contractual liability

Legal liability assumed by **you** under the express or intended terms of any contract or agreement that restrict **your** right of recovery, or increase **your** liability at law beyond that applicable in the absence of those terms.

Employed person

- 1 Anyone under a contract of service or apprenticeship with **you**.
- 2 Anyone who is
 - a employed by **you** or on **your** behalf on a labour only basis
 - b self employed
 - c hired to **you** or borrowed by **you** from another employer
 - d a voluntary helper or taking part in a work experience or training scheme

- e a prospective employee who is being assessed as to their suitability for employment and under **your** control or supervision.

Manslaughter costs

Costs and expenses of legal representation in connection with any criminal inquiry into or court proceedings brought for manslaughter, corporate manslaughter, corporate homicide or culpable homicide.

Offshore

On or working from, or travelling by sea or air, to, from or between an offshore rig, platform or similar offshore installation.

Principal

Employer who has engaged **you** to act on their behalf, under a contract for the performance of work by **you**, in connection with the **business**.

Safety legislation costs

Costs and expenses of legal representation in connection with an alleged breach of statutory duty under Health and Safety, Consumer Protection or Food Safety legislation, enacted within the **policy territories**.

Terrorist act

Any act of a person or group directed towards the overthrowing or influencing of any government or putting any section of the public in fear by threat, force or violence or other means.

✓ What is covered

We will cover the amount of damages which **you** are legally liable to pay in respect of **bodily injury** to any **employed person** resident in the **policy territories**, caused during the **period of insurance** and arising out of and in the course of their employment by **you** in connection with the **business**.

Additional business activities cover

The cover under this section includes the following activities of the **business**

- 1 providing and managing amenities for the benefit and welfare of **employed persons**
- 2 owning, repairing, maintaining and decorating **your** own property or premises **you** use
- 3 providing and managing facilities primarily used for fire prevention, safety or security at **your** premises
- 4 maintaining and repairing vehicles and machinery owned or used by **you**
- 5 private work **you** allow **employed persons** to do for **your** directors, partners or officers, as long as this work is done with **your** prior permission
- 6 the sale or disposal of **business** assets.

Claim costs cover

We will cover **claim costs** in connection with a claim for which an award of damages is paid or may be payable under this section, but **we** will not pay **claim costs** for any part of a claim not covered by this section.

Compensation for court attendance cover

We will compensate **you** at the rate of £500 per day, for each day that **we** request any director, partner or **employed person** to attend court as a witness in connection with a claim, for which an award of damages is paid or may be payable under this section.

Manslaughter costs cover

We will cover **manslaughter costs** in respect of any death occurring during the **period of insurance**, in circumstances where there is also a claim or potential claim against **you** for damages covered by this section.

You must obtain **our** prior written consent to legal representation and **we** will only agree to payment on a fee basis agreed by **us**.

If a claim for damages is settled or is withdrawn **we** will have no further liability other than in respect of costs and expenses of legal

representation incurred before the date of the claim payment or withdrawal of the claim.

If at any time a claim for damages remains unsettled and **you** wish to appeal against conviction, **we** will agree to costs and expenses of legal representation if, in the opinion of Counsel (appointed by mutual consent), such an appeal is more likely to succeed than not and the total amount of damages and claimants costs are likely to exceed the total cost of legal representation.

If **we** have consented to legal representation at court proceedings, **we** will also pay the legal costs of prosecution awarded against **you**, or any person entitled to cover under this section, in connection with the proceedings.

The maximum **we** will pay for **manslaughter costs** and costs awarded against **you**, or any person entitled to cover under this section, in total, as a result of all occurrences during any one **period of insurance**, is £1,000,000.

We will not pay

- 1 fines, penalties or awards of compensation imposed by a criminal court
- 2 costs and expenses of implementing any remedial order or publicity order
- 3 costs and expenses of an appeal against any fine, penalty, compensation award, remedial order or publicity order
- 4 costs and expenses incurred as a result of the failure to comply with any remedial order or publicity order
- 5 costs and expenses covered by any Legal Expenses insurance
- 6 costs and expenses of any investigation or prosecution brought other than under the laws of the **policy territories**.

Overseas employees cover

If **bodily injury** is caused during the **period of insurance** to any person under a contract of service or apprenticeship, arising out of and in the course of their employment by **you** in connection with the **business** and who is resident outside the **policy territories**, **we** will cover the amount of damages which **you** are legally liable to pay by a court of law having jurisdiction within the **policy territories**.

We will not pay

- 1 for any action or recovery brought or commenced
 - a in a court of law outside the **policy territories**
 - b in connection with any workmen's compensation or other social insurance, or arising from **your** failure to meet legal obligations or to pay adequate contributions for that insurance
- 2 where an insurance policy covering legal liability for **bodily injury** caused to **employed persons** is arranged outside the **policy territories**.

Personal liability cover

If no other insurance is in force, at **your** request, the cover provided by this section will apply to the legal liability of

- 1 any director, partner or **employed person of yours** whilst
 - a performing their normal duties in connection with the **business**
 - b work is being carried out on behalf of a director, partner or officer by an **employed person** with **your** consent
 - c acting in a personal capacity, during the course of a trip or journey arranged for the purpose of the **business**
- 2 the spouse, civil partner, domestic partner or any children accompanying a director, partner or **employed person** in the course of a business trip or journey.

The cover provided by this section will also apply to **your** personal representative, or the personal representative of any other deceased person entitled to cover.

Principals liability cover

At **your** request, **we** will cover the legal liability of any **principal** arising from the performance of **your** work for the **principal**.

We will not provide cover beyond the requirements of **your** contract with the **principal**.

Safety legislation costs cover

We will cover **safety legislation costs** in respect of any **bodily injury** occurring during the **period of insurance**, in circumstances where there is also a claim or potential claim against **you** for damages covered by this section.

You must obtain **our** prior consent to legal representation and **we** will only agree to payment on a fee basis agreed by **us**.

If a claim for damages is settled or is withdrawn, **we** will have no further liability other than in respect of costs and expenses of legal representation incurred before the date of the claim payment or withdrawal of the claim.

If at any time a claim for damages remains unsettled and **you** wish to appeal against conviction, **we** will agree to costs and expenses of legal representation if, in the opinion of Counsel (appointed by mutual consent), such an appeal is more likely to succeed than not and the total amount of damages and claimants costs are likely to exceed the total cost of legal representation.

If **we** have consented to legal representation at court proceedings, **we** will also pay the legal costs of prosecution awarded against **you**, or any person entitled to cover under this section, in connection with the proceedings.

The maximum **we** will pay for **safety legislation costs** and costs awarded against **you**, or any person entitled to cover under this section, in total, as a result of all occurrences during any one **period of insurance**, is £1,000,000.

We will not pay

- 1 fines, penalties or awards of compensation imposed by a criminal court
- 2 costs and expenses of an appeal against improvement or prohibition notices
- 3 costs and expenses on indictment for manslaughter, corporate manslaughter, corporate homicide or culpable homicide, other than **safety legislation costs** already incurred
- 4 costs and expenses covered by any Legal Expenses insurance

- 5 costs and expenses of any investigation or prosecution brought other than under the laws of the **policy territories**.

Unsatisfied court judgements cover

We will, at **your** request, pay an **employed person** the amount awarded to that person by a court of law for **bodily injury** against any company, partnership or individual conducting a business within the **policy territories**, if such award remains unpaid six months after the date of the judgement.

We will only provide cover if

- 1 there is no outstanding appeal
- 2 the **bodily injury** was sustained during the **period of insurance** by the **employed person** while working in connection with the **business**
- 3 the judgement was obtained in a court within the **policy territories**
- 4 the **employed person** or their personal representative assigns the amount awarded under the judgement to **us**.

Limit of indemnity

- 1 The employers liability limit of indemnity shown in **your** schedule is the maximum **we** will pay for the total of all damages and **claim costs** and will apply to any one claim or series of claims by one or more of the **employed persons** arising from one occurrence.
- 2 The limit of indemnity in respect of a **terrorist act** is £5,000,000 and will apply exclusively to any one claim or series of claims by one or more of the **employed persons** arising directly or indirectly in connection with a **terrorist act**.
- 3 In respect of any claim or claims, **we** may at any time pay the limit of indemnity applicable, after deducting any amounts already paid, or any lesser amount for which a settlement can be made. **We** will not then be liable to make any further payment in respect of the claim or claims.

x What is not covered

Offshore exclusion

We will not cover claims for **bodily injury** to any **employed person** while **offshore**.

Radioactive contamination exclusion

We will not cover claims for

1 contractual liability

2 which **your principal** has a legal liability caused by or arising from any type of nuclear radiation, nuclear material, nuclear waste, nuclear reaction or radioactive contamination.

Road Traffic Act exclusion

We will not cover claims for **bodily injury** to an **employed person** in circumstances where it is necessary to arrange compulsory motor insurance or security under any Road Traffic Legislation.

Section conditions

These conditions of cover apply only to this section. **You** must comply with these conditions to have the full protection of **your policy**.

Some conditions specify circumstances whereby non-compliance will mean that **you** will not receive payment for a claim. However, **you** will be covered and **we** will pay **your** claim if **you** are able to prove that the non-compliance with these conditions could not have increased the risk of the loss which actually occurred in the circumstances in which it occurred.

Premium adjustment condition

If the estimates shown in **your** schedule are marked as adjustable, then **you** must, at **our** request, tell **us** the actual figures on the expiry of the **period of insurance** so that the final premium can be calculated using the agreed rates. If the adjusted premium is less than the estimated premium, **we** will not return more than 25% of the original premium.

If the estimates shown in **your** schedule are marked as index linked, the renewal premium for each **period of insurance** will be calculated on an adjusted amount in line with suitable indices of costs.

Right of recovery condition

The cover provided under this section is in line with any law relating to the compulsory insurance of liability to persons employed within the **policy territories**. **You** must repay to **us** all amounts **we** pay which **we** would not have been liable to pay but for the law.

Public and products liability section

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Your schedule will show if this section is covered.

Meanings of defined terms

These meanings apply within **your** Public and products liability section. If a word or phrase has a defined meaning it will be highlighted in bold blue print and will have the same meaning wherever it is used in this section. The meaning of defined terms that apply throughout **your policy**, and not just this section, can be found in the General introduction section of **your policy**.

Abuse

Any form of

- 1 abuse or threat or cruelty
- 2 exploitation
- 3 molestation, intimate or inappropriate contact or inappropriate behaviour of a sexual nature
- 4 pornography.

Asbestos

Asbestos in any form, asbestos fibres or particles or derivatives of asbestos or any material containing asbestos.

Bodily injury

Death, bodily injury, illness or disease.

Claim costs

Costs and expenses

- 1 of any claimant which **you** become legally liable to pay
- 2 incurred with **our** prior written consent, to investigate or defend a claim against **you** including solicitors fees at
 - a any coroner's inquest or fatal accident inquiry
 - b summary court proceedings.

Clean up costs

Costs and expenses of remediation of environmental damage or environmental harm.

Computer system

Any computer, hardware, software, communications system, electronic device (including, but not limited to, smart phone, laptop, tablet or wearable device), server, cloud or microcontroller including any similar system or any configuration of the aforementioned and including any associated input, output, data storage device, networking equipment or back up facility.

Contractual liability

Legal liability assumed by **you** under the express or intended terms of any contract or agreement that restrict **your** right of recovery, or increase **your** liability at law beyond that applicable in the absence of those terms.

Cyber act

An unauthorised, malicious or criminal act or series of related unauthorised, malicious or criminal acts, regardless of time and place, or the threat or hoax thereof involving access to, processing of, use of or operation of any **computer system**.

Cyber incident

- 1 Any error or omission or series of related errors or omissions involving access to, processing of, use of or operation of any **computer system**
- 2 Any partial or total unavailability or failure or series of related partial or total unavailability or failures to access, process, use or operate any **computer system**.

Data

Information, facts, concepts, code or any other information of any kind that is recorded or transmitted in a form to be used, accessed, processed, transmitted or stored by a **computer system**.

Employed person

- 1 Anyone under a contract of service or apprenticeship with **you**

- 2 Anyone who is

- a employed by **you** or on **your** behalf on a labour only basis
- b self employed
- c hired to **you** or borrowed by **you** from another employer
- d a voluntary helper or taking part in a work experience or training scheme
- e a prospective employee who is being assessed as to their suitability for employment

and under **your** control or supervision.

Enforcing authority

Any government or statutory authority, implementing or enforcing environmental protection legislation in the **policy territories**.

Event

Claim or series of claims against **you** as a result of or attributable to a single source or the same original, repeated or continuing cause.

Excess

First amount of any claim or claims for which **you** are responsible.

Hot work

Any work that requires, uses or produces open flames or any other sources of heat or sparks that could ignite flammable or combustible materials.

Manslaughter costs

Costs and expenses of legal representation in connection with any criminal inquiry into or court proceedings brought for manslaughter, corporate manslaughter, corporate homicide or culpable homicide.

Nuisance or trespass

Nuisance, trespass to land or trespass to goods, or interference with any easement.

Offshore

On or working from, or travelling by sea or air, to, from or between an offshore rig, platform or similar offshore installation.

Personal injury

Personal injury or infringement of a person's legal right other than

- 1 **bodily injury**
- 2 a right arising from title to or an interest in property.

Pollutants

Any solid liquid or gaseous pollutant contaminant or irritant substance or any biological agent that is a danger to human health.

Principal

Employer who has engaged **you** to act on their behalf, under a contract for the performance of work by **you**, in connection with the **business**.

Products

Products that **you** have sold, supplied, provided or delivered including

- 1 containers, packaging, labelling, instructions or advice in connection with products
- 2 **services** that have been completed as part of a contract for the sale or supply of products in the course of the **business**.

Property damage

Loss of or damage to property that **you** do not own or possess and is not in **your** custody or under **your** control.

Safety legislation costs

Costs and expenses of legal representation in connection with an alleged breach of statutory duty under Health and Safety, Consumer Protection or Food Safety legislation, enacted within the **policy territories**.

Services

Work, process or other operation that **you** undertake or is undertaken on **your** behalf including any goods or materials used in connection with the work, process or other operation in the course of the **business**.

Sudden incident

Sudden, identifiable, unintended and unexpected incident that does not originate from a gradual, continuous or repetitive cause.

Terrorist act

Any act of a person or group directed towards the overthrowing or influencing of any government or putting any section of the public in fear by threat, force or violence or other means.

✓ What is covered

We will cover the amount of damages which **you** are legally liable to pay in respect of

- 1 **bodily injury**
- 2 **personal injury**
- 3 **property damage**
- 4 **nuisance or trespass**

occurring during the **period of insurance** in connection with the **business**.

If legal liability to pay damages in respect of **property damage** or **nuisance or trespass** arises from a release or escape of **pollutants** into the atmosphere or onto land, water, buildings or any structure, the cover will only apply to a **sudden incident** which happens at a specific time and place during the **period of insurance** within the **policy territories** and all **property damage** or **nuisance or trespass** will be considered as having occurred at the time of the **sudden incident**.

Accidental release of asbestos (Claims made) cover

We will cover the amount of damages which **you** are legally liable to pay in respect of a claim first made against **you** and notified to **us** during the

period of insurance arising from the accidental and unplanned release of **asbestos**.

The maximum amount **we** will pay for the total of all damages, **clean up costs** and **claim costs** arising from claims first made against **you** and notified to **us** during the **period of insurance** caused by or arising from **asbestos** is £1,000,000.

We will not cover

- 1 claims
 - a relating to the fear suffered by any person of the consequences of exposure to **asbestos**
 - b in respect of **property damage, nuisance or trespass** or **clean up costs**, unless arising from contamination resulting from the unplanned release of **asbestos** due to a **sudden incident** which happens at a specific time and place during the **period of insurance** in the course of any work, process or other operation
 - c to rectify, remedy, repair, replace, re-apply, modify, investigate, access or remove **asbestos** in or on premises
 - i that **you** have disposed of
 - ii owned, leased, let, rented, hired or lent to **you**
 - iii for which **you** have any statutory duty to manage **asbestos**
 - d or any incident known to **you** or for which **you** should have been aware before the start of this cover
- 2 the greater of £1,000 or the amount of **excess** shown in **your** schedule in respect of each **event**.

If during the **period of insurance**, **you** first become aware of any circumstances that may give rise to a claim under this cover and notification is given to **us** during or within 7 days of the expiry of the **period of insurance**, **we** will, if a claim is subsequently made against **you**, consider such circumstances as having been made during the **period of insurance** that **you** first become aware.

Conditions applicable to the Accidental release of asbestos (Claims made) cover

You must

- 1 undertake a written risk assessment put controls in place to prevent the release of **asbestos** if **you** have contracted or reached agreement for the investigation, handling, removal, stripping out, demolition, transportation or disposal of **asbestos**
- 2 on discovery of any materials that are known or suspected to be **asbestos** prior to or in the course of any work, process or other operation, immediately upon discovery take steps to suspend or cease such work, process or other operation until the composition of the materials is established
- 3 ensure that any **asbestos** is investigated, handled, removed, stripped out, demolished, transported and/or disposed of in accordance with Health and Safety regulations in force at the time within England, Scotland, Wales, Northern Ireland, the Channel Islands or the Isle of Man.

In the event of a claim arising from or in connection with the release of **asbestos**, **you** may be required by **us** to produce evidence that **you** complied with this condition.

Additional business activities cover

The cover under this section includes the following activities of the **business**

- 1 providing and managing amenities for the benefit and welfare of **employed persons**
- 2 owning, repairing, maintaining and decorating **your** own property or premises **you** use
- 3 providing and managing facilities primarily used for fire prevention, safety or security at **your** premises
- 4 maintaining and repairing vehicles and machinery owned or used by **you**
- 5 private work **you** allow **employed persons** to do for **your** directors, partners or officers, as long as this work is done with **your** prior permission
- 6 the sale or disposal of **business** assets.

Claims costs cover

We will cover **claim costs** in connection with a claim for which an award of damages or **clean up costs** is paid or may be payable under this section, but **we** will not pay **claim costs** for any part of a claim not covered by this section.

Compensation for court attendance cover

We will compensate **you** at the rate of £500 per day, for each day that **we** request any director, partner or **employed person** to attend court as a witness in connection with a claim, for which an award of damages is paid or may be payable under this section.

Contingent motor liabilities cover

We will cover the amount of damages which **you** are legally liable to pay and **claim costs** in respect of accidental

- 1 **bodily injury**
- 2 **property damage**

occurring during the **period of insurance** and arising out of

- a the use by an **employed person** of their own motor vehicle within the **policy territories** and the European Union in connection with the **business**
- b the movement of any motor vehicle, not owned by, or provided by **you**, or an **employed person** that is preventing access to, or causing an obstruction within **your** premises or any site at which **you** are working

and the **Road Traffic Act exclusion** in this section will not apply to that liability.

We will not pay

- 1 for loss of or damage to any motor vehicle referred to in a or b above
- 2 unless the motor vehicle is being driven with **your** permission and **you** have taken reasonable steps to ensure that the person driving holds a valid licence to drive the motor vehicle
- 3 where cover is provided by another insurance policy.

Cross liabilities cover

Any person, firm, company or organisation covered by this section, is entitled to the cover as if a separate policy had been issued to each and where **you** are a membership organisation, the cover will apply to each member as if a separate policy had been issued to each member.

However the amount payable by **us** in total, on behalf of all entitled to cover, shall not in any circumstances exceed the limit of indemnity shown in **your** schedule.

Data Protection cover

We will cover the amount of compensation which **you** are legally liable to pay in respect of **personal injury** occurring during the **period of insurance**, arising from holding personal data, or, as a result of any loss, misuse or unauthorised disclosure of personal data held by **you** in the course of the **business**.

We will only pay

- 1 amounts of compensation which **you** are ordered to pay, or which **you** might reasonably be expected to pay by a court having jurisdiction
- 2 if **you** are registered or are in the process of registration (and the application has not been refused or withdrawn) under Data Protection legislation

within the **policy territories**.

We will not cover

- 1 fines or penalties imposed by a court
- 2 the costs of any appeal against the refusal of an application for registration or alteration, in connection with the Data Protection legislation or any enforcement, de-registration or prohibition notice
- 3 the cost of replacing, reinstating, rectifying or erasing any personal data
- 4 refund of monies paid to **you** by any claimant
- 5 liability for which cover is provided under any other more specific insurance.

The maximum **we** will pay for compensation, costs and expenses in total, as a result of all occurrences during any one **period of insurance**, is £1,000,000.

Defective Premises Act cover

We will cover the amount of damages which **you** are legally liable to pay in respect of accidental **bodily injury** or **property damage**, occurring during any one **period of insurance**, arising out of premises **you** have disposed of, but had previously owned in connection with the **business**.

We will not cover

- 1 loss of or damage to the land or premises disposed of or in connection with the cost of rectifying any defect or alleged defect in them
- 2 any liability for which **you** are covered under any other insurance policy.

Environmental clean up cover

We will cover the amount of **clean up costs** which **you** are legally liable to pay, under a notice or order imposed upon **you** by an **enforcing authority**, arising from a release or escape of **pollutants**, onto or into land, surface water or ground water.

The cover will only apply to a **sudden incident** which happens at a specific time and place during the **period of insurance** in connection with the **business**, within the **policy territories**.

The maximum **we** will pay for all **clean up costs**, as a result of one **sudden incident** or all such incidents happening during any one **period of insurance**, is £100,000.

Where a claim for damages arises in addition to **clean up costs** as a result of the same **sudden incident**, the maximum **we** will pay for the total amount of damages and **clean up costs** added together, will not exceed the public liability limit of indemnity shown in **your** schedule.

We will not cover any part of a claim for **clean up costs**

- 1 at, in or upon property that is or was, owned by **you**, or in **your** possession, or in **your** custody or under **your** control
- 2 to achieve an improvement or alteration in the condition of the land, or any surface or ground water beyond that
 - a necessary to meet the standards required by law at the start of remediation

- b existing at the time of a **sudden incident** for which a claim is made under this section.

Manslaughter costs cover

We will cover **manslaughter costs** in respect of any death occurring during the **period of insurance**, in circumstances where there is also a claim or potential claim against **you** for damages covered by this section.

You must obtain **our** prior consent to legal representation and **we** will only agree to payment on a fee basis agreed by **us**.

If a claim for damages is settled or is withdrawn **we** will have no further liability other than in respect of costs and expenses of legal representation incurred before the date of the claim payment or withdrawal of the claim.

If at any time a claim for damages remains unsettled and **you** wish to appeal against conviction, **we** will agree to costs and expenses of legal representation if, in the opinion of Counsel (appointed by mutual consent), such an appeal is more likely to succeed than not and the total amount of damages and claimants costs are likely to exceed the total cost of legal representation.

If **we** have consented to legal representation at court proceedings, **we** will also pay the legal costs of prosecution awarded against **you**, or any person entitled to cover under this section, in connection with the proceedings.

The maximum **we** will pay for **manslaughter costs** and costs awarded against **you**, or any person entitled to cover under this section, in total, as a result of all occurrences during any one **period of insurance**, is £1,000,000.

We will not pay

- 1 fines, penalties or awards of compensation imposed by a criminal court
- 2 costs and expenses of implementing any remedial order or publicity order
- 3 costs and expenses of an appeal against any fine, penalty, compensation award, remedial order or publicity order
- 4 costs and expenses incurred as a result of the failure to comply with any remedial order or publicity order

- 5 costs and expenses covered by any Legal Expenses insurance
- 6 costs and expenses of any investigation or prosecution brought other than under the laws of the **policy territories**.

Personal liability cover

If no other insurance is in force, at **your** request, the cover provided by this section will apply to the legal liability of

- 1 any director, partner or **employed person** of **yours** whilst
 - a performing their normal duties in connection with the **business**
 - b work is being carried out on behalf of a director, partner or officer by an **employed person** with **your** consent
 - c acting in a personal capacity, during the course of a trip or journey arranged for the purpose of the **business**
- 2 the spouse, civil partner, domestic partner or any children accompanying a director, partner or **employed person** in the course of a business trip or journey.

The cover provided by this section will also apply to **your** personal representative, or the personal representative of any other deceased person entitled to cover.

Principals liability cover

At **your** request, **we** will cover the legal liability of any **principal** arising from the performance of **your** work for the **principal**.

We will not provide cover beyond the requirements of **your** contract with the **principal**.

Property in your care cover

The cover provided by this section will apply to the following property whether or not it is in **your** possession or custody or under **your** control at time of the occurrence of loss or damage

- 1 premises which are leased, let, rented, hired or lent to **you**
- 2 premises, including contents, which are not owned or rented by **you**, where **you** are

temporarily carrying out work in connection with the **business**

- 3 the vehicles or personal effects of **employed persons** or visitors while on **your** premises.

We will not provide cover for

- 1 any **contractual liability**
- 2 loss of or damage to property for which **you** have an agreement to arrange insurance on behalf of the owner, or as if **you** were the owner, under a tenancy, rental or hire agreement
- 3 **clean up costs**.

Safety legislation costs cover

We will cover **safety legislation costs** in respect of any **bodily injury** or **property damage** occurring during the **period of insurance**, in circumstances where there is also a claim or potential claim against **you** for damages covered by this section.

You must obtain **our** prior consent to legal representation and **we** will only agree to payment on a fee basis agreed by **us**.

If a claim for damages is settled or is withdrawn **we** will have no further liability other than in respect of costs and expenses of legal representation incurred before the date of the claim payment or withdrawal of the claim.

If at any time a claim for damages remains unsettled and **you** wish to appeal against conviction, **we** will agree to costs and expenses of legal representation if, in the opinion of Counsel (appointed by mutual consent), that such an appeal is more likely to succeed than not and the total amount of damages and claimants costs are likely to exceed the total cost of legal representation.

If **we** have consented to legal representation at court proceedings, **we** will also pay the legal costs of prosecution awarded against **you**, or any person entitled to cover under this section, in connection with the proceedings.

The maximum **we** will pay for **safety legislation costs** and costs awarded against **you**, or any person entitled to cover under this section, in total, as a result of all occurrences during any one **period of insurance**, is £1,000,000.

We will not pay

- 1 fines, penalties or awards of compensation imposed by a criminal court
- 2 costs and expenses of an appeal against improvement or prohibition notices
- 3 costs and expenses on indictment for manslaughter, corporate manslaughter, corporate homicide or culpable homicide, other than **safety legislation costs** already incurred
- 4 costs and expenses covered by any Legal Expenses insurance
- 5 costs and expenses of any investigation or prosecution brought other than under the laws of the **policy territories**.

Limit of indemnity

- 1 The public liability limit of indemnity shown in **your** schedule is the maximum amount **we** will pay for all damages arising from one **event**.
- 2 The public liability limit of indemnity is also the maximum amount **we** will pay for all damages as a result of all occurrences during any one **period of insurance** caused by or originating from release or escape of **pollutants**.
- 3 The products liability limit of indemnity shown in **your** schedule is the maximum amount **we** will pay for all damages as a result of all occurrences during any one **period of insurance** caused by or originating from **products**.
- 4 The maximum amount **we** will pay for all damages as a result of all occurrences during any one **period of insurance**, arising directly or indirectly in connection with a **terrorist act** is £5,000,000 other than for events where the attendance exceeds 5,000 persons where the maximum is £2,000,000.
- 5 If **we** cover more than one person, firm, company or organisation, the amount payable by **us** in total, on behalf of all entitled to cover, shall not in any circumstances exceed the limit of indemnity shown in **your** schedule.

- 6 **We** will pay **claim costs** in addition to the limit of indemnity applicable to the claim or claims, except if an action for damages is started or brought in the United States of America or Canada.
- 7 If an action for damages is started or brought in the United States of America or Canada, **we** will not pay more than the limit of indemnity shown in **your** schedule, for the total of all damages and **claim costs** arising from the action.
- 8 In respect of any claim or claims, **we** may at any time pay the limit of indemnity applicable, after deducting any amounts already paid, or any lesser amount for which a settlement can be made. **We** will not then be liable to make any further payment in respect of the claim or claims. If **we** have agreed to pay **claim costs** in addition to the limit of indemnity, **we** will pay the costs incurred before the date of the claim payment.

X What is not covered

Abuse exclusion

We will not cover claims directly or indirectly caused by or arising from any actual or alleged **abuse**.

Aircraft and watercraft exclusion

We will not cover claims caused by or arising from **you** owning, possessing or using any

- 1 type of aircraft or spacecraft
- 2 watercraft or hovercraft exceeding 8 metres in length that is ordinarily capable of movement by mechanical power and which is under **your** control.

Airside exclusion

We will not cover claims caused by or arising from any **services** in, or on

- 1 aircraft
- 2 airport or airfield runways, manoeuvring areas or aprons, or any other parts of airports or airfields to which aircraft ordinarily have access.

Aviation and hovercraft products exclusion

We will not cover claims caused by or arising from any **products** which, to **your** knowledge, are for use in or on any aircraft, hovercraft or device intended to travel through air or space.

Asbestos exclusion

Except as otherwise provided by the **Accidental release of asbestos (Claims made) cover**, **we** will not cover claims caused by or arising from

- 1 inhalation or ingestion of **asbestos**
- 2 exposure to or fear of the consequences of exposure to **asbestos**
- 3 the presence of **asbestos** in any property or on land
- 4 investigating, managing, removing, controlling or remediation of **asbestos**.

Contractual liability exclusion

We will not cover claims

- 1 for **contractual liability** in connection with **products**
- 2 where the terms of any contract or agreement made by **you**, prevent **us** from taking over the full defence or settlement of the claim
- 3 to pay liquidated damages, or any contractual fines or amounts payable under contractual penalty clauses.

Cyber and data exclusion

We will not cover claims directly or indirectly caused by, contributed to by, resulting from or arising out of or in connection with

- 1 any **cyber act** or **cyber incident** including but not limited to any action taken in controlling, preventing, suppressing or remediating any **cyber act** or **cyber incident**
- 2 loss of use, reduction in functionality, repair, replacement, restoration, reproduction, loss or theft, distortion, erasure, corruption or alteration of any **data**, including any amount pertaining to the value of such **data**
- 3 failure of electronic, electromechanical data processing or electronically controlled equipment or **data** to correctly recognise any given date or to process data or to

operate properly due to failure to recognise any given date.

This exclusion shall not apply to claims

- a for **bodily injury**
- b for physical **property damage**
- c under the **Data Protection cover** of this section

directly or indirectly caused by, contributed to by, resulting from, arising out of or in connection with any **cyber act** or **cyber incident**.

Damage to products and services exclusion

We will not cover claims for loss of or damage to property forming part of a contract for the sale or supply of **products** or **services**, caused by or arising from a defect in or the unsuitability of those **products** or **services**.

Defamation and discrimination exclusion

We will not cover claims caused by or arising from

- 1 libel or slander
- 2 false statement
- 3 discrimination of any kind.

Deliberate act exclusion

We will not cover claims

- 1 caused by or arising from any deliberate act, error or omission
 - a where the results are intended or expected, or are reasonably foreseeable by **you**
 - b by anyone other than **you**, so far as cover is requested for their own liability
- 2 for **clean up costs** in circumstances where **you** have knowingly
 - a deviated from any regulatory notice, order or protection ruling
 - b omitted to inspect, maintain or perform necessary repairs to plant or machinery for which **you** are responsible.

Employee injury exclusion

We will not cover claims for **bodily injury** sustained by any **employed persons** arising

out of and in the course of their employment with **you**.

Employment dispute exclusion

We will not cover claims caused by or arising from a dispute with, or proceedings brought by, any person for

- 1 their existing, past or prospective contract of employment with **you**
- 2 a breach of employment-related legislation.

Excess exclusion

The **excess** will apply to each **event** for loss as stated in **your** schedule. In respect of **products**, the **excess** will apply to each **event** during each **period of insurance** that loss occurs as a result of the **event**.

Intellectual property exclusion

We will not cover claims caused by or arising from passing off or infringement of trade name, registered design, unregistered design, copyright or patent right.

North America pollution exclusion

We will not cover claims caused by or arising from pollution or contamination of the atmosphere, land or water or any buildings or structure, or any environmental damage or impairment in the United States of America or Canada.

Offshore exclusion

We will not cover claims caused by or arising from any **services offshore**.

Overseas establishment exclusion

We will not cover claims caused by or arising from any associated or subsidiary company of **yours**, or any of **your** branch offices, or any representative of **yours** with power of attorney, registered, having premises or resident outside the **policy territories**.

Professional duty exclusion

We will not cover claims caused by or arising from any breach of professional duty in relation to

- 1 advice, instruction, consultancy, design, formula, specification, inspection, survey, valuation, certification, testing or supervision undertaken or given for a fee
- 2 any diagnosis or treatment provided (other than the provision of first aid treatment).

Punitive damages exclusion

We will not cover claims to pay any award of punitive, exemplary or aggravated damages or additional damages resulting from the multiplication of compensatory damages, by a court of law outside the **policy territories**.

Radioactive contamination exclusion

We will not cover claims caused by or arising from any type of nuclear radiation, nuclear material, nuclear waste, nuclear reaction or radioactive contamination.

Recall exclusion

We will not cover claims to pay any costs or expenses caused by or arising from any decision or requirement to recall or withdraw **products** from sale or use.

Rectification of defects exclusion

We will not cover claims to rectify, remedy, repair, replace, re-apply, modify, investigate, access or remove defective or unsuitable **products** or **services**, or to make any refund.

Road Traffic Act exclusion

We will not cover claims caused by or arising from the ownership, possession or use by **you** or on **your** behalf of any motor vehicle, trailer or mobile plant in circumstances where compulsory insurance or security is required by Road Traffic Legislation or where cover is provided (or would be provided but for breach of the terms of cover) by another insurance.

War risk exclusion

We will not cover claims caused by or arising from war, invasion, act of foreign enemy hostilities (whether war is declared or not), civil war, rebellion, revolution, insurrection or military or usurped power or confiscation or nationalisation or requisition, or loss of or damage to property by or under the order of any government or public or local authority.

Section conditions

These conditions of cover apply only to this section. **You** must comply with these conditions to have the full protection of **your policy**.

Some conditions specify circumstances whereby non-compliance will mean that **you** will not receive payment for a claim. However **you** will be covered and **we** will pay **your** claim if **you** are able to prove that the non-compliance with these conditions could not have increased the risk of the loss which actually occurred in the circumstances in which it occurred.

Hot work precautions condition

The following precautions must be complied with each time that **hot work** is undertaken away from **your** premises

- 1 the area where the work is to be completed must be cleared of all combustibles
- 2 combustible floors and other combustible property which cannot be moved, must be protected by non combustible material and where welding, cutting or grinding equipment is being used, this must extend to at least 6 metres from or beneath the work area
- 3 where there is a danger of ignition either directly, or by conduction of heat, through any partitions or walls, the area on the other side must be inspected and combustible material removed
- 4 at least one fire extinguisher, of a type suitable for the use required, must be kept adjacent to the work or task and ready for immediate use
- 5 no heat producing equipment must be left out of view of its operator or firewatcher whilst lighted or powered or whilst hot

- 6 a thorough safety check for signs of fire or combustion around, above or below the work area must be made at regular intervals, for at least 30 minutes after each period of work is completed.

If **you** do not comply with this condition **you** will not be covered and **we** will not pay **your** claim.

Legionella precautions condition

If **you** own or are responsible for water systems, water installations or cooling systems, a written risk assessment must be undertaken and controls put in place to prevent the growth of biological agents that may cause disease or illness.

If **you** do not comply with this condition **you** will not be covered and **we** will not pay **your** claim.

Premium adjustment condition

If the estimates shown in **your** schedule are marked as adjustable, then **you** must, at **our** request, tell **us** the actual figures on the expiry of the **period of insurance** so that the final premium can be calculated using the agreed rates. If the adjusted premium is less than the estimated premium, **we** will not return more than 25% of the original premium.

If the estimates shown in **your** schedule are marked as index linked, the renewal premium for each **period of insurance** will be calculated on an adjusted amount in line with suitable indices of costs.

Sub-contractors (services) condition

If **you** appoint any sub-contractor (other than an **employed person**) to carry out **services** at the premises or site of a customer, **you** must take reasonable steps to obtain confirmation from the sub-contractor, prior to starting work, that they have Public liability insurance in force throughout the period of their involvement.

If **you** do not comply with this condition **you** will not be covered and **we** will not pay **your** claim.

Money and personal accident assault section

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Your schedule will show if this section is covered.

Meanings of defined terms

These meanings apply within **your** Money and personal accident assault section. If a word or phrase has a defined meaning it will be highlighted in bold blue print and will have the same meaning wherever it is used in this section. The meaning of defined terms that apply throughout **your policy**, and not just this section, can be found in the General introduction section of **your policy**.

Alarmed buildings

The building(s) or those portions of the building(s) used by **you** at the **premises** protected by the **intruder alarm system**.

Business hours

Your usual office hours and the working hours (including overtime) while **you** or **your** employees entrusted with **money** are at **your premises** or **your** contract sites for the purposes of the **business**.

Communicable disease

Any disease which can be transmitted by means of any substance or agent from any organism to another organism where:

- 1 the substance or agent includes, but is not limited to, a virus, bacterium, parasite or other organism or any variation thereof, whether deemed living or not, and
- 2 the method of transmission, whether direct or indirect, includes but is not limited to, airborne transmission, bodily fluid transmission, transmission from or to any surface or object, solid, liquid or gas or between organisms, and
- 3 the disease, substance or agent can cause or threaten damage to human health or human welfare or can cause or threaten damage to, deterioration of, loss of value of, marketability of or loss of use of property.

Computer systems

Computer or other equipment or component or system or item which processes, stores, transmits or receives **data**.

Cyber act

An unauthorised, malicious or criminal act or series of related unauthorised, malicious and criminal acts, regardless of time and place, or the threat or hoax thereof involving access to, processing of, use of or operation of any **computer systems**.

Cyber incident

- 1 any error or omission or series of related errors or omissions involving access to, processing of, use of or operation of any **computer systems**; or
- 2 any partial or total unavailability or failure or series of related partial or total unavailability or failures to access, process, use or operate any **computer systems**.

Damage

Physical loss or destruction or damage.

Data

Any data of any sort whatever, including without limitation tangible or intangible data, and any programs or software, bandwidth, cryptographic keys, databases, documents, domain names or network addresses or anything similar, files, interfaces, metadata, platforms, processing capability, storage media, transaction gateways, user credentials, websites, or any information whatever.

Defined peril

Fire, lightning, explosion, aircraft or other aerial devices or articles dropped from them, riot, civil commotion, strikers, locked-out workers, persons taking part in labour disturbances, malicious persons other than thieves, earthquake, **storm**, **flood**, escape of water from any tank, apparatus or pipe or impact by any road vehicle or animal.

Denial of service attack

Any actions or instructions constructed or generated with the ability to damage, interfere with or otherwise affect the availability or performance of networks, network services, network connectivity or **computer systems**. Denial of service attacks include, but are not limited to, the generation of excess traffic into network addresses, the exploitation of system or network weaknesses, the generation of excess or non-genuine traffic between and amongst networks and the procurement of such actions or instructions by other **computer systems**.

Excess

First amount of any claim or claims for which **you** are responsible.

Flood

Damage caused by

- 1 the escape of water from the normal confines of any natural or artificial water course, lake, reservoir, canal, drain or dam
- 2 inundation from the sea
- 3 inundation by rainwater or rainwater-induced run off other than where the inundation is solely caused by or solely results from ingress of rainwater through or via the roof of the building

whether resulting from storm or not.

Hacking

Unauthorised access to any **computer systems**, whether **your** property or not.

Insured person(s)

You and any of **your** principals, partners, directors or employees.

Intruder alarm system

The component parts including the means of communication used to transmit signals to the alarm-receiving centre.

Key holder

You or any person or key holding company authorised by **you**, who is available at all times to accept notification of faults to or alarm signals from the **intruder alarm system** and to attend and allow access to the **premises**.

Money

Negotiable money and **non-negotiable money** belonging to **you** or which **you** are responsible for.

Negotiable money

Bills of exchange, uncrossed promissory notes, cash, bank and currency notes, uncrossed cheques, giro cheques including pre-authenticated giro cheques, uncrossed postal orders, uncrossed money orders, uncrossed warrants, current postage stamps, unused units in franking machines, National Savings stamps and certificates, National Insurance stamps, trading stamps, gift tokens, gaming machine tokens, lottery tickets (excluding scratch cards held in stock for resale), customer redemption vouchers, authenticated travel tickets, phone cards (excluding phone cards held in stock for resale), holiday with pay stamps, luncheon vouchers, securities for money and travel warrants but excluding electronic cryptographic or virtual currency or currencies.

Non-negotiable money

Crossed warrants, credit company sales vouchers, debit card sales vouchers, crossed cheques, crossed giro drafts, crossed postal orders, crossed money orders, crossed national giro bank, crossed promissory notes, crossed bankers drafts, premium bond certificates, VAT purchase receipts, credit card counterfoils, premium bonds, savings bonds, stamped National Insurance cards and National savings certificates but excluding electronic cryptographic or virtual currency or currencies.

Phishing

Any access or attempted access to **data** made by means of misrepresentation or deception.

Premises

The premises shown in **your** schedule and any sites of contracts.

Storm

Storm excluding damage by **flood**.

Terrorism

In England, Scotland and Wales: Acts of persons acting on behalf of, or in connection with, any organisation which carries out activities directed towards the overthrowing or influencing, by force or violence, of His Majesty's Government in the United Kingdom or any other government de jure or de facto.

In Northern Ireland: An act including but not limited to the use of force or violence and/or threat thereof of any person or group(s) of persons whether acting alone or on behalf of or in connection with any organisation(s) or government(s) committed for political, religious, ideological or similar purposes including the intention to influence any government and/or put the public or any section of the public in fear.

In the Channel Islands and the Isle of Man: An act of any person(s) acting on behalf of or in connection with any organisation which carries out activities directed towards the overthrowing or influencing by force or violence of any government de jure or de facto.

Time element loss

Business interruption, contingent business interruption or any other consequential losses.

Virus or similar mechanism

Program code, programming instruction or any set of instructions constructed with the purpose and ability, or purposely used, to damage, interfere with, adversely affect, infiltrate or monitor computer programs, **computer systems**, **data** or operations, whether involving self-replication or not. The meaning of virus or similar mechanism includes, but is not limited to, trojan horses, worms and logic bombs and the exploitation of bugs or vulnerabilities in a computer program to damage, interfere with, adversely affect, infiltrate or monitor as above.

✓ **What is covered**

Part 1 – Money

We will cover **you** for

- 1 **damage to money** belonging to **you** or for which **you** are responsible in connection with the **business** as follows
 - a **negotiable money**
 - i in transit within the **policy territories**
 - ii at any of **your premises**
 - iii in a bank night safe
 - iv at the residence of any **insured person**
 - b **non-negotiable money**
 - c **damage** to safes and strong rooms belonging to **you** or for which **you** are responsible resulting from theft or any attempted theft of **money** anywhere within the **policy territories**.

Our liability for any one claim will not exceed the limits shown in **your** schedule
- 2 **damage** to clothing and personal effects belonging to the **insured person** caused by robbery or attempted robbery occurring in the course of the **business** subject to a limit of £1,500 for any one **insured person**
- 3 **damage** to
 - a any stamp franking machine
 - b money belts, waistcoats, cash-carrying cases and similar cash-carrying devices designed for the safe carriage of **money**

as a result of robbery or attempted robbery occurring in the course of the **business**
- 4 costs necessarily incurred in
 - a opening or attempting to open any safe or strong room
 - b the replacement of locks of any safe or strong room

following the theft of or **damage** to the keys to the safe or strong room belonging to **you** for which **you** are responsible
- 5 costs necessarily incurred by an **insured person** for the purpose of the **business** as a direct result of a credit card, charge card, debit card or bank card being lost or stolen and it being fraudulently used by someone other than **you** or any **insured person**.

We will not cover **you** in respect of credit cards, charge cards, debit cards or bank cards for

- a any loss, damage, cost or expense as a result of any failure to comply with the terms under which the card was issued
- b any card issued personally to an **insured person**
- c any loss, damage, cost or expense arising after 48 hours from discovery of the loss of the card
- d losses covered in whole or in part by any other insurance

Our liability for any one claim will not exceed the limit shown in **your** schedule

- 6 the **War risks exclusion** will not apply to **damage to money** and property insured under this section from or occasioned by the detonation of World War II munitions of war only or parts thereof in or within five miles of the **premises** situated in the **policy territories**.

x **What is not covered**
Part 1 – Money

Please also refer to 'What is not covered' under **Part 1** and **2**.

Clerical errors exclusion

We will not cover **you** for any loss, damage, cost or expense due to clerical or accounting errors.

Excess exclusion

We will not cover **you** for the **excess** shown in **your** schedule.

Fraud and dishonesty exclusion

We will not cover **you** for any loss, damage, cost or expense arising from the fraud or dishonesty of **your** partners, directors or employees unless the loss is discovered within 14 working days of the date of the loss.

Unattended vehicles exclusion

We will not cover **you** for any loss, damage, cost or expense from unattended motor vehicles.

Unexplained loss exclusion

We will not cover **you** for any loss, damage, cost or expense caused by or consisting of

- 1 disappearance, unexplained or inventory shortage
- 2 misfiling or misplacing of information.

✓ What is covered

Part 2 – Personal accident assault

We will pay the **insured person**, or in the case of death their personal representatives, compensation if any **insured person** suffers bodily injury sustained in the course of the **business**, as a result of

- 1 robbery or attempted robbery
- or
- 2 hold-up or attempted hold-up.

Payments will be made in accordance with the following Table of compensations.

Table of compensations

The amounts shown below represent one unit of cover, **your** schedule will show how many units apply.

Benefit		Compensation
1	Death*	£1,000
2	Total loss or permanent and total loss of use of one or more limbs*	£1,000
3	Total and irrecoverable loss of all sight in one or both eyes*	£1,000
4	Total disablement from engaging in or carrying out the insured person's usual profession or occupation	£10 per week for any one injury (while the insured person is disabled) for a period not exceeding 104 weeks calculated from the date of the injury
5	Reimbursement of incurred medical expenses*	Up to £1,000
6	Reimbursement of incurred counselling costs*	Up to £500

*occurring within 12 months of the date of the event giving rise to the bodily injury

We will not pay

- 1 compensation to the **insured person** under more than one of the benefits in the table of compensations for the same bodily injury
- 2 the weekly compensation under benefit **4** until the weekly amount payable has been agreed
- 3 under the compensation payable for benefit **4** more than the average weekly remuneration paid by **you** to the **insured person** over the period of 13 weeks immediately prior to the event which caused the bodily injury to the **insured person** who has suffered the bodily injury.

Where a compensation payment has already been made under benefit **4** and one of the benefits **1, 2** or **3** is also payable, the **insured person** may at their option request payment under the alternative benefit of compensation, in which case the compensation already paid under benefit **4** will be deducted from the alternative benefit of compensation now payable under **1, 2** or **3**.

Conditions applicable to Part 2 (please also refer to the Section conditions)

- 1 **You** must write to **us** as soon as possible when **you** need to make a claim but in any case within 3 months of the date of the event giving rise to the bodily injury.
- 2 At **your** expense, **you** must supply all certificates, information and evidence in a form that **we** may require. Where a claim for bodily injury is made, the **insured person** will undergo any medical examinations that **we** may require at **our** expense.
- 3 In the case of death of an **insured person**, **we** will be entitled to have a post-mortem examination completed at **our** expense.

x What is not covered **Part 1 and 2**

Cyber exclusion

We will not cover **you** for any loss, damage, cost or expense, directly or indirectly caused by, contributed to by, arising from, occasioned by or resulting from

- 1 any **cyber act** including but not limited to **hacking, phishing, denial of service attack** or the transmission of any **virus or similar mechanism**
- 2 any **cyber incident**

This exclusion shall not apply to claims for **damage** resulting from fire, lightning, explosion, aircraft or other aerial devices or articles dropped from them covered by this section.

Date recognition exclusion

We will not cover **you** for any loss, damage, cost or expense, directly or indirectly caused by, contributed to or by, arising from, occasioned by or resulting from the failure of equipment (including any **computer systems**) to correctly recognise any given date or to process data or to operate properly due to failure to recognise any given date.

This exclusion shall not apply to claims for **damage** resulting from a **defined peril** covered by this section.

Deliberate loss or damage exclusion

We will not cover **you** for any loss, damage, cost or expense caused, or allowed to be caused, deliberately, wilfully, maliciously, illegally or unlawfully by **you**.

Disease exclusion

- 1 Notwithstanding any provision to the contrary within this section, this section excludes any loss, damage, liability, claim, cost or expense of whatsoever nature, directly or indirectly caused by, contributed to by, resulting from, arising out of, or in connection with a **communicable disease** or the fear or threat (whether actual or perceived) of a **communicable disease** regardless of any other cause or event

contributing concurrently or in any other sequence thereto.

- 2 Subject to the other terms, conditions and exclusions contained in this section, this section will cover physical damage to property insured and any **time element loss** directly resulting therefrom where such physical damage or **time element loss** is covered by this section and is directly caused by or arising from any of the following perils: fire, lightning, explosion, aircraft or other aerial devices or articles dropped from them, or impact by any road vehicle or animal, **storm**, earthquake, **flood**, subsidence, landslip, landslide, riot, riot attending a strike, civil commotion, vandalism and malicious persons, theft, escape of water from any tank, apparatus or pipe, leakage of oil from any fixed heating installation.

Radioactive contamination exclusion

We will not cover damage, or any other loss or expense resulting or arising from damage to any property, or any consequential loss, directly or indirectly caused by or contributed to by or arising from

- 1 ionising radiations or contamination by radioactivity from any nuclear fuel, nuclear waste from the combustion of nuclear fuel, radioisotopes, or any other nuclear or radioactive material
- 2 buildings, plant or equipment for the generation of nuclear power, or production, use or storage of nuclear fuel, nuclear waste from the combustion of nuclear fuel, radioisotopes, or any other nuclear or radioactive material
- 3 transportation of nuclear fuel, nuclear waste from the combustion of nuclear fuel, radioisotopes, or any other nuclear or radioactive material
- 4 the radioactive, toxic, explosive or other hazardous properties of any explosive nuclear assembly or nuclear component of that assembly
- 5 any weapon or device employing atomic or nuclear fission and/or fusion or other like reaction or radioactive force or matter.

Terrorism and Northern Ireland exclusion

We will not cover **you** for loss, damage, cost or expense of any nature directly or indirectly caused by, resulting from or in connection with

- 1** In England, Scotland, Wales, the Channel Islands and the Isle of Man
 - a** any act of **terrorism**, regardless of any other cause or event contributing concurrently or in any other sequence to the loss
 - b** any action taken in controlling, preventing, suppressing or in any way relating to any act of **terrorism**
- 2** In Northern Ireland
 - a** any act of **terrorism**, regardless of any other cause or event contributing concurrently or in any other sequence to the loss
 - b** any action taken in controlling, preventing, suppressing or in any way relating to any act of **terrorism**
 - c** riot, civil commotion and (except for damage or interruption to the **business** caused by fire or explosion) strikers, locked-out workers or persons taking part in labour disturbances or malicious persons.

If any of the points above are found to be invalid or unenforceable, the remainder of the points shall remain in full force and effect.

In any action, lawsuit or other proceedings or where **we** state that any loss, damage, cost or expense is not covered by this section it will be **your** responsibility to prove that they are covered.

War risks exclusion

We will not cover any claims caused by or happening through war, invasion, act of foreign enemy, hostilities (whether war is declared or not), civil war, civil rebellion, warlike operations, revolution, insurrection or military or usurped power, confiscation, nationalisation, requisition, seizure or destruction or damage to property by or under the order of any government or public or local authority.

Section conditions

These conditions of cover apply only to this section. **You** must comply with the following conditions to have the full protection of **your policy**.

Some conditions specify circumstances whereby non-compliance will mean that **you** will not receive payment for a claim. However, **you** will be covered and **we** will pay **your** claim if **you** are able to prove that the non-compliance with these conditions could not have increased the risk of the loss which actually occurred in the circumstances in which it occurred.

Arbitration condition

If **we** agree to pay **your** claim and **you** disagree with the amount to be paid, the amount of the difference will be referred to an arbitrator who is jointly appointed in accordance with the statutory requirements. **You** will not be able to take legal action against **us** over this disagreement until the arbitrators have made their award.

Contribution condition applicable to

Part 1 – Money

If the cover provided by this section is covered by any other policy, **we** will only cover **you** for loss or damage up to the limit shown in **your** schedule above the amount payable under such policy.

Key security condition

You must ensure that the keys of safes or strong rooms are not left at the **premises** out of **business hours**, unless the **premises** are still occupied by **you** or any of **your** authorised employees. When the **premises** are still occupied by **you** or any of **your** authorised employees, keys at the **premises** must be deposited in a secure place not in the vicinity of safes or strong rooms.

If **you** do not comply with this condition, **you** will not be covered and **we** will not pay **your** claim.

Maintenance condition

You must maintain **your** property at the **premises** in a good state of repair.

If **you** do not comply with this condition **you** will not be covered and **we** will not pay **your** claim.

Premium adjustment condition

If the premium for this section has been calculated on an estimate provided by **you**, **you** will need to keep an accurate record of all relevant details and allow **us** to inspect the record within one month from the expiry of each **period of insurance**. **You** will need to supply **us** with an accurate account of the amount of bank and currency notes and/or coins in transit during the previous **period of insurance**. The premium for that period will be adjusted and the difference paid by or allowed to **you** subject to **us** retaining 75% of the deposit premium for the period or £75, whichever is the greater.

Reasonable precautions condition

You must take all reasonable precautions

- 1 to prevent accidents or injury or **damage** to **your** property or the property of others
- 2 for the safety of **money** covered by this section and on becoming aware of any event giving rise or likely to give rise to a claim under this section **you** must
 - a give immediate notice to the police and notify **us** as soon as possible. Take all reasonable steps for the discovery and punishment of the guilty person or persons and to trace and recover the **money**
 - b give immediate notice to the Inland Revenue of any loss of stamped National Insurance cards
 - c within 14 days of **you** being aware of the event that may give rise to a claim, provide **us** with a detailed statement of the loss in writing
 - d provide all explanations, vouchers, proof of ownership and other evidence to substantiate the claim. If deemed necessary by **us**, **we** may require further evidence to support the statements of **you** or **your** employees.

If **you** do not comply with this condition, **you** will not be covered and **we** will not pay **your** claim.

Record keeping condition

You will keep a daily record of the amount of **money** contained in safes or strong rooms. This record must be kept in a separate, secure place and will need to be produced to support a claim under this section.

Security condition

Whenever **negotiable money** in transit exceeds £2,500

- 1 it will be accompanied by at least two responsible adults
- 2 no more than the maximum amount of money carried by any one person limit shown in **your** schedule will be carried by any one person.

If **you** do not comply with this condition, **you** will not be covered and **we** will not pay **your** claim.

Specific section conditions

The following conditions only apply if shown in **your** schedule.

1 Alarm condition

For cover to operate in respect of **damage** following entry or attempted entry to or exit from the **alarmed buildings** by forcible and violent means, **you** must ensure that the following are complied with

- 1 the **alarmed buildings** must be protected by an **intruder alarm system** designed, installed and maintained to British Standard BS 4737 or European Norm EN 50131 including, where stipulated by **us** or the local police authority, British Standard BS8243 for the installation of intruder alarm systems designed to generate confirmed alarms
- 2 the intruder alarm installation and maintenance company must be both
 - a a member of an alarm inspectorate which is accredited by the United Kingdom Accreditation Service (UKAS) to BS EN ISO/IEC 17065 or BS EN 17021and
 - b recognised as an approved company by National Security Inspectorate (NSI) or Security Systems and Alarm Inspectorate

Board (SSAIB) for the design, installation and maintenance of intruder alarm systems

- 3 the **intruder alarm system** must be maintained in full and efficient working order under a contract to provide both corrective and preventative maintenance, as per the requirements of BS 4737 or EN 50131 with the installing company or such other company as agreed with **us**. Where remote alarm signalling is required, the signal transmission must be transmitted to an alarm-receiving centre fully compliant with BS5797 or BS EN 50518 and operated by a company accredited and operating to a quality management system in accordance with EN ISO 9000

- 4 no alteration to or substitution of
- a any part of the **intruder alarm system**
 - b the maintenance contract
 - c the structure of the **alarmed buildings** or changes to their layout which would affect the effectiveness of the **intruder alarm system**
 - d the procedures agreed with **us** for police or any other response to any activation of the **intruder alarm system**

be made without **our** written agreement

- 5 the **alarmed building** will not be left unattended without **our** agreement
- a unless the **intruder alarm system** is set in its entirety with the means of communication used to transmit signals (including both alarm transmission systems for dual signalling systems) in full operation
 - b if the police have withdrawn their response to alarm activations.

If the alarm system is not fully operative, **you** must make arrangements for the **premises** to be attended until the **intruder alarm system** is fully operational

- 6 **you** must keep all security codes for the **intruder alarm system** confidential and all codes and keys must be removed from the **premises** when they are left unattended

- 7 **you** will appoint at least two **key holders** and give written details (which must be kept up to date) to the alarm company and either the police or the alarm-receiving centre

- 8 in the event of notification of any activation of the **intruder alarm system** or interruption of means of communication, including one or both alarm transmission systems for dual signalling systems, during any period the **intruder alarm system** is set, a **key holder** will attend the **premises** as soon as reasonably possible.

If the alarm cannot be reset following the **key holder** attendance, **you** must make arrangements for the **premises** to be attended until the **intruder alarm system** is fully operational

- 9 in the event of **you** receiving any notification
- a that the police attendance in response to alarm signals or calls from the **intruder alarm system** may be withdrawn, or the level of response reduced or delayed
 - b from a local authority or magistrate imposing any requirement for abatement of nuisance
 - c that the **intruder alarm system** cannot be returned to or maintained in full working order.

You will tell **us** as soon as possible but in any event within 7 days and comply with any subsequent requirements stipulated by **us**.

If **you** do not comply with this condition, **you** will not be covered and **we** will not pay **your** claim.

2 Minimum security standards condition

The following minimum level of security must be installed and maintained at the **premises** and put into use whenever the **premises** are closed for business or left unattended.

Alternative security protections can only be installed with **our** written permission

- 1 All external doors of the buildings at the **premises** must be secured as follows
- a timber doors must be fitted with an appropriate mortice deadlock which has 5 or more levers and/or conforms to British Standards BS 3621 or a cylinder

- lock conforming to European Norm EN 1303 together with a matching metal box striking plate, installed in accordance with the manufacturer's recommendations
 - b** aluminium doors must be fitted with integral cylinder key operated mortice deadlocks to EN 1303
 - c** UPVC doors must be fitted with key operated multi-point locking devices incorporating swinging/claw locking bolts
 - d** the first closing leaf of double leaf doors must be fitted internally with bolts top and bottom
- 2** all internal doors in the buildings that give access to any part of the **premises** not occupied by **you** for the purpose of the **business** must be fitted with either
- a** timber doors must be fitted with an appropriate mortice deadlock which has 5 or more levers and/or conforms to BS 3621 or a cylinder lock conforming to EN 1303 together with a matching metal box striking plate, installed in accordance with the manufacturer's recommendations
 - b** aluminium framed doors must be fitted with integral cylinder key operated mortice deadlocks to EN 1303
 - c** UPVC framed doors must be fitted with key operated multi-point locking devices incorporating swinging/claw locking bolts
 - d** the first closing leaf of double leaf doors must be fitted internally with bolts top and bottom
- 3** all opening external basement, ground floor and other accessible windows (accessible includes a window that can be easily reached from an adjacent flat roof, a fire escape, balconies, canopies or down pipes), fanlights, roof lights, skylights must all be fitted with suitable and appropriate key operated window locks, installed in accordance with the manufacturer's recommendations. All louvered windows must have their louvers permanently fixed

into place to ensure they cannot be removed from their fixings.

This requirement does not apply to windows protected by solid steel bars, weld mesh or expanded metal grills securely fixed to the brickwork surrounding the window

- 4** any door or window officially designated by the local planning officer, local building control officer or as defined within the business fire risk assessment forming part of an emergency exit route, is excluded from the above requirements. The doors and windows must only be secured using suitable and appropriate internally operated quick release type of security devices, specifically designed for this purpose with mortice deadlocks conforming to BS 8621; panic bars/latches conforming to BS EN 1125 and/or emergency exit door devices conforming to BS EN 179.

If **you** do not comply with this condition, **you** will not be covered and **we** will not pay **your** claim.

Goods in transit section

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Your schedule will show if this section is covered.

Meanings of defined terms

These meanings apply within **your** Goods in transit section. If a word or phrase has a defined meaning it will be highlighted in bold blue print and will have the same meaning wherever it is used in this section. The meaning of defined terms that apply throughout **your policy**, and not just this section, can be found in the General introduction section of **your policy**.

Business interruption

Loss, cost or expense resulting from interruption or interference with **your business** as a result of any loss, destruction or damage to **property**.

Communicable disease

Any disease which can be transmitted by means of any substance or agent from any organism to another organism where

- 1 the substance or agent includes, but is not limited to, a virus, bacterium, parasite or other organism or any variation thereof, whether deemed living or not, and
- 2 the method of transmission, whether direct or indirect, includes but is not limited to, airborne transmission, bodily fluid transmission, transmission from or to any surface or object, solid, liquid or gas or between organisms, and
- 3 the disease, substance or agent can cause or threaten damage to human health or human welfare or can cause or threaten damage to, deterioration of, loss of value of, marketability of or loss of use of property.

Computer systems

Computer or other equipment or component or system or item which processes, stores, transmits or receives **data**.

Cyber act

An unauthorised, malicious or criminal act or series of related unauthorised, malicious and criminal acts, regardless of time and place, or the threat or hoax thereof involving access

to, processing of, use of or operation of any **computer systems**.

Cyber incident

- 1 any error or omission or series of related errors or omissions involving access to, processing of, use of or operation of any **computer systems**; or
- 2 any partial or total unavailability or failure or series of related partial or total unavailability or failures to access, process, use or operate any **computer systems**.

Damage/damaged

Physical loss or destruction or damage

Data

Any data of any sort whatever, including without limitation tangible or intangible data, and any programs or software, bandwidth, cryptographic keys, databases, documents, domain names or network addresses or anything similar, files, interfaces, metadata, platforms, processing capability, storage media, transaction gateways, user credentials, websites, or any information whatever.

Defined peril

Fire, lightning, explosion, aircraft or other aerial devices or articles dropped from them, riot, civil commotion, strikers, locked-out workers, persons taking part in labour disturbances, malicious persons other than thieves, earthquake, **storm**, **flood**, escape of water from any tank, apparatus or pipe or impact by any road vehicle or animal.

Denial of service attack

Any actions or instructions constructed or generated with the ability to damage, interfere with or otherwise affect the availability or performance of networks, network services, network connectivity or **computer systems**. Denial of service attacks include, but are not limited to, the generation of excess traffic into network addresses, the exploitation of system or network weaknesses, the generation of excess or non-genuine traffic between and amongst

networks and the procurement of such actions or instructions by other **computer systems**.

Excess

First amount of any claim or claims for which **you** are responsible.

Flood

Damage caused by

- 1 the escape of water from the normal confines of any natural or artificial water course, lake, reservoir, canal, drain or dam
- 2 inundation from the sea
- 3 inundation by rainwater or rainwater induced run off other than where the inundation is solely caused by or solely results from ingress of rainwater through or via the roof of the building.

Geographical limits

Anywhere (including sea crossings) in or between Great Britain, Northern Ireland, the Channel Islands, the Isle of Man and Eire.

Hacking

Unauthorised access to any **computer systems**, whether **your** property or not.

Phishing

Any access or attempted access to **data** made by means of misrepresentation or deception.

Property

Goods and trade tools belonging to **you** or for which **you** are responsible, relating to the **business** shown in **your** schedule.

Terrorism

In England, Scotland and Wales: Acts of persons acting on behalf of, or in connection with, any organisation which carries out activities directed towards the overthrowing or influencing, by force or violence, of His Majesty's Government in the United Kingdom or any other government de jure or de facto.

In Northern Ireland: An act including but not limited to the use of force or violence and or threat thereof of any person or group(s) of persons whether acting alone or on behalf of or in connection with any organisation(s) or government(s) committed for political, religious, ideological or similar purposes including the intention to influence any government and or put the public or any section of the public in fear.

In the Channel Islands, the Isle of Man and Eire: An act of any person(s) acting on behalf of or in connection with any organisation which carries out activities directed towards the overthrowing or influencing by force or violence of any government de jure or de facto.

Time element loss

Business interruption, contingent business interruption or any other consequential losses.

Vehicle

Motor vehicle, articulated vehicle, trailer or semi-trailer owned or operated by **you**.

Virus or similar mechanism

Program code, programming instruction or any set of instructions constructed with the purpose and ability or purposely used to damage, interfere with, adversely affect, infiltrate or monitor computer programs, **computer systems, data** or operations, whether involving self-replication or not. The meaning of virus or similar mechanism includes but is not limited to trojan horses worms and logic bombs and the exploitation of bugs or vulnerabilities in a computer program to damage, interfere with, adversely affect, infiltrate or monitor as above.

✓ What is covered

We will cover **you** for **damage** to **property** occurring during the **period of insurance** whilst in transit to destinations within the **geographical limits** by any means of conveyance described in **your** schedule, including

- 1 loading prior to despatch from the point of actually lifting **property** by or onto the means of conveyance

- 2 unloading and movement to the first resting place at the final destination.

Basis of claims settlement

We will pay **you** for the invoice value of **property** at the time of its **damage** or **we** may repair, replace or reinstate the **property**.

If an invoice has not been raised at the time of **damage**, the valuation will be based on the sale or re-sale value of the **property** at the time of the start of the transit.

If the **damaged property** is not new, **we** will deduct a reasonable amount for wear, tear and depreciation as part of the claims settlement.

In the event of **damage** to any machinery or equipment, which when complete for sale or use consists of several separate parts, **we** will only pay for the part or parts actually **damaged**, including any replacement charges. In all circumstances **we** will not pay more than the value of the complete machine or equipment.

Claims for the total loss or destruction of ropes and sheets cover, personal effects cover and electronic equipment cover will be settled on the basis of value at the time of **damage** with adjustment for wear and tear, but **we** will not pay more than the limit specified for the cover in respect of any one claim.

Additional expenses cover

We will pay up to £10,000 any one claim for expenses reasonably incurred by **you** in

- 1 the removal of debris and site clearance from the immediate area of the site where **damage** to **property** in transit by **vehicle** has occurred
- 2 transferring **property** to any other conveyance, following fire, collision, overturning or impact of the conveying **vehicle**, including carrying the **property** to the original destination or to a place of collection
- 3 reloading onto the **vehicle** any **property** which has fallen from the **vehicle**
- 4 re-securing the **property** where there is dangerous movement of the load in transit by **vehicle**.

Demonstration or approval cover

We will pay up to the consignment limit shown in **your** schedule for **damage** to **property** during the **period of insurance** within the **geographical limits** whilst

- 1 in transit to or from **your** customer's premises on demonstration or on approval
- 2 on the customer's premises where the **property** is being demonstrated or being approved, excluding loss or damage caused by or through its demonstration or use.

Electronic equipment cover

We will pay up to £500 any one claim for **damage** to portable electronic equipment belonging to **you** occurring during the **period of insurance** within the **geographical limits**, whilst being used by the driver of a **vehicle** in the course of transit of **property**, in connection with the **business**.

Exports (free on board/free on aircraft) cover

We will cover **you** against **damage** to **property** occurring during the **period of insurance**, consigned to an address outside the **geographical limits**, where, by agreement, **you** are responsible for all expenses and insurance prior to delivery of the **property** over ships rail or on aircraft. The cover will apply whilst in transit within the **geographical limits** and for a period of up to 30 days whilst the **property** is temporarily stored awaiting shipment on any quayside or in any dock or airport store.

Incoming goods cover

We will cover **you** up to the consignment limit for **damage** to **property** occurring during the **period of insurance**, consigned to **you** from an address within the **geographical limits**, if it is **your** responsibility to insure.

Packers premises cover

We will pay up to the consignment limit shown in **your** schedule for **damage** to **property** during the **period of insurance** within the **geographical limits** whilst

- 1 in transit to or from premises where the **property** is being packed for transit

- 2 on the premises where the **property** is being packed for transit, excluding any loss, damage, cost or expense caused by or through the process of packaging.

Personal effects cover

We will pay up to £1,500 any one claim for driver's personal effects, where **damage** arises out of an occurrence for which there is also a valid claim for **damage** to **property** in or on a **vehicle**.

Ropes and sheets cover

We will pay up to £500 any one claim for **damage** to tarpaulins, sheets, trailer curtains, ropes, chains, webbing straps and packing materials belonging to **you** or for which **you** are responsible, not insured under any other policy, occurring during the **period of insurance** within the **geographical limits**, whilst carried on a **vehicle**.

Travellers samples cover

We will pay up to the consignment limit shown in **your** schedule for **damage** to travellers stock or samples occurring during the **period of insurance** within the **geographical limits**, whilst in transit or temporarily removed from a **vehicle** during transit and kept in a locked room or a locked building, provided that the stock or samples remain under the custody or control of **you** or **your** employee.

Limit of cover

- 1 The maximum amount **we** will pay for any one claim or series of claims arising from one occurrence is the limit of any one event shown in **your** schedule.
- 2 The consignment limit shown in **your** schedule is the maximum amount **we** will pay for all **property** sent at any one time
 - a in one or more packages and in one load by **vehicle** or carrier to the same destination
 - b for any one self contained package sent by post.

x What is not covered

Business interruption exclusion

We will not cover any **business interruption** other than as specified under the **Additional expenses cover**.

Cyber exclusion

We will not cover **you** for any loss, damage, cost or expense directly or indirectly caused by, contributed to by, arising from, occasioned by or resulting from

- 1 any **cyber act** including but not limited to **hacking, phishing, denial of service attack** or the transmission of any **virus or similar mechanism**
- 2 any **cyber incident**.

This exclusion shall not apply to claims for **damage** resulting from fire, lightning, explosion, aircraft or other aerial devices or articles dropped from them covered by this section.

Date recognition exclusion

We will not cover **you** for any loss, damage, cost or expense directly or indirectly caused by, contributed to or arising from the failure of equipment (including any **computer systems**) to correctly recognise any given date or to process data or to operate properly due to failure to recognise any given date.

This exclusion shall not apply to claims for **damage** resulting from a **defined peril** covered by this section.

Delay exclusion

We will not cover any loss, damage, cost or expense to **property** directly or indirectly caused by or arising from delay.

Deliberate loss or damage exclusion

We will not cover **you** for any loss, damage, cost or expense caused, or allowed to be caused, deliberately, wilfully, maliciously, illegally or unlawfully by **you**.

Derangement exclusion

We will not cover any electrical or mechanical derangement unless caused by impact.

Disease exclusion

- 1 Notwithstanding any provision to the contrary within this section, this section excludes any loss, damage, liability, claim, cost or expense of whatsoever nature, directly or indirectly caused by, contributed to by, resulting from, arising out of, or in connection with a **communicable disease** or the fear or threat (whether actual or perceived) of a **communicable disease** regardless of any other cause or event contributing concurrently or in any other sequence thereto.
- 2 Subject to the other terms, conditions and exclusions contained in this section, this section will cover physical damage to **property** insured and any **time element loss** directly resulting therefrom where such physical damage or **time element loss** is covered by this section and is directly caused by or arising from any of the following perils: fire, lightning, explosion, aircraft or other aerial devices or articles dropped from them, or impact by any road vehicle or animal, **storm**, earthquake, **flood**, subsidence, landslip, landslide, riot, riot attending a strike, civil commotion, vandalism and malicious persons, theft, escape of water from any tank, apparatus or pipe, leakage of oil from any fixed heating installation.

Excess exclusion

The **excess** shown in **your** schedule will apply to each claim or series of claims arising from one occurrence.

Livestock exclusion

We will not cover any loss or destruction of or injury to living creatures.

Natural deterioration exclusion

We will not cover any loss, damage, cost or expense arising from natural deterioration of **property**.

Nuclear waste exclusion

We will not cover any loss or damage to nuclear waste.

Pressure waves exclusion

We will not cover any loss, damage, cost or expense directly or indirectly caused by or arising from pressure waves caused by aircraft or other aerial devices.

Radioactive contamination exclusion

We will not cover damage, or any other loss or expense resulting or arising from damage to any property, or any consequential loss, directly or indirectly caused by or contributed to by or arising from

- 1 ionising radiations or contamination by radioactivity from any nuclear fuel, nuclear waste from the combustion of nuclear fuel, radioisotopes, or any other nuclear or radioactive material
- 2 buildings, plant or equipment for the generation of nuclear power, or production, use or storage of nuclear fuel, nuclear waste from the combustion of nuclear fuel, radioisotopes, or any other nuclear or radioactive material
- 3 transportation of nuclear fuel, nuclear waste from the combustion of nuclear fuel, radioisotopes, or any other nuclear or radioactive material
- 4 the radioactive, toxic, explosive or other hazardous properties of any explosive nuclear assembly or nuclear component of that assembly
- 5 any weapon or device employing atomic or nuclear fission and/or fusion or other like reaction or radioactive force or matter.

Temperature-controlled property exclusion

We will not cover the deterioration of **property** conveyed in frozen, chilled or insulated conditions due to

- 1 faulty stowage
- 2 incorrect setting or operation of the equipment

- 3 variations in temperature unless directly caused by fire, accident (but not breakdown) to the means of conveyance, theft or attempted theft.

Terrorism and Northern Ireland exclusion

We will not cover **you** for loss, damage, cost or expense of any nature directly or indirectly caused by, resulting from or in connection with

- 1 In England, Scotland, Wales, the Channel Islands, the Isle of Man and Eire
 - a any act of **terrorism**, regardless of any other cause or event contributing concurrently or in any other sequence to the loss
 - b any action taken in controlling, preventing, suppressing or in any way relating to any act of **terrorism**.
- 2 In Northern Ireland
 - a any act of **terrorism**, regardless of any other cause or event contributing concurrently or in any other sequence to the loss
 - b any action taken in controlling, preventing, suppressing or in any way relating to any act of **terrorism**
 - c riot, civil commotion and (except for damage or interruption to the **business** caused by fire or explosion) strikers, locked-out workers or persons taking part in labour disturbances or malicious persons.

If any of the points above are found to be invalid or unenforceable, the remainder of the points shall remain in full force and effect. In any action, lawsuit or other proceedings or where **we** state that any loss, damage, cost or expense is not covered by this section it will be **your** responsibility to prove that they are covered.

Valuables exclusion

We will not cover any loss, destruction or damage to

- 1 money, securities for money (which includes certificates of bond, stock certificates, bills of exchange, promissory notes) or stamps
- 2 watches, precious stones, jewellery or bullion.

War risk exclusion

We will not cover any loss, damage or expense caused by or happening through war, invasion, act of foreign enemy, hostilities (whether war is declared or not), civil war, rebellion, revolution, insurrection or military or usurped power.

Section conditions

These conditions of cover apply only to this section. **You** must comply with these conditions to have the full protection of **your policy**.

Some conditions specify circumstances whereby non-compliance will mean that **you** will not receive payment for a claim. However **you** will be covered and **we** will pay **your** claim if **you** are able to prove that the non-compliance with these conditions could not have increased the risk of the loss which actually occurred in the circumstances in which it occurred.

Carrier notification condition

If loss or damage is caused by a carrier, **you** must notify the carrier in writing as soon as **you** are aware of the loss or damage, as well as notifying **us**. **You** may be asked to complete the carriers claim form and any compensation **you** receive from a carrier must be paid to **us** if **we** have paid the claim.

If **you** do not comply with this condition **you** will not be covered and **we** will not pay **your** claim.

Premium adjustment condition

If any part of the premium has been calculated on estimates **you** must, at **our** request, tell **us** the actual figures on the expiry of the **period of insurance** so that the final premium can be calculated using the agreed rates. If the adjusted premium is less than the estimated premium **we** will not return more than 25% of the original premium.

If the estimates shown in **your** schedule are marked as index linked, the renewal premium for each **period of insurance** will be calculated on an adjusted amount in line with suitable indices of costs.

Production indemnity section – All risks

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Your schedule will show if this section is covered.

Meanings of defined terms

These meanings apply within **your** Production indemnity – All risks section. If a word or phrase has a defined meaning it will be highlighted in bold blue print and will have the same meaning wherever it is used in this section. The meaning of defined terms that apply throughout **your policy**, and not just this section, can be found in the General introduction section of **your policy**.

Additional costs

The necessary and reasonable additional costs incurred by **you** in directly completing the **production** in the manner it was originally intended.

Communicable disease

Any disease which can be transmitted by means of any substance or agent from any organism to another organism where:

- 1 the substance or agent includes, but is not limited to, a virus, bacterium, parasite or other organism or any variation thereof, whether deemed living or not, and
- 2 the method of transmission, whether direct or indirect, includes but is not limited to, airborne transmission, bodily fluid transmission, transmission from or to any surface or object, solid, liquid or gas or between organisms, and
- 3 the disease, substance or agent can cause or threaten damage to human health or human welfare or can cause or threaten damage to, deterioration of, loss of value of, marketability of or loss of use of property.

Computer systems

Computer or other equipment or component or system or item which processes, stores, transmits or receives **data**.

Contractual liability

Legal liability assumed by **you** under the express or intended terms of any contract or agreement that restrict **your** right of recovery or increase **your** liability at law beyond that applicable in the absence of those terms.

Cyber act

An unauthorised, malicious or criminal act or series of related unauthorised, malicious and criminal acts, regardless of time and place, or the threat or hoax thereof involving access to, processing of, use of or operation of any **computer systems**.

Cyber incident

- 1 any error or omission or series of related errors or omissions involving access to, processing of, use of or operation of any **computer systems**; or
- 2 any partial or total unavailability or failure or series of related partial or total unavailability or failures to access, process, use or operate any **computer systems**.

Damage

Accidental loss of, damage to or destruction, including impairment or distortion, of an image.

Data

Any data of any sort whatever, including without limitation tangible or intangible data, and any programs or software, bandwidth, cryptographic keys, databases, documents, domain names or network addresses or anything similar, files, interfaces, metadata, platforms, processing capability, storage media, transaction gateways, user credentials, websites, or any information whatever.

Defined peril

Fire, lightning, explosion, aircraft or other aerial devices or articles dropped from them, riot, civil commotion, strikers, locked-out workers, persons taking part in labour disturbances, malicious persons other than thieves, earthquake, **storm**, **flood**, escape of water from any tank, apparatus or pipe or impact by any road vehicle or animal.

Denial of service attack

Any actions or instructions constructed or generated with the ability to damage, interfere with or otherwise affect the availability or performance of networks, network services, network connectivity or **computer systems**.

Denial of service attacks include, but are not limited to, the generation of excess traffic into network addresses, the exploitation of system or network weaknesses, the generation of excess or non-genuine traffic between and amongst networks and the procurement of such actions or instructions by other **computer systems**.

Excess

First amount of any claim or claims for which **you** are responsible.

Flood

- 1 the escape of water from the normal confines of any natural or artificial water course, lake, reservoir, canal, drain or dam
- 2 inundation from the sea
- 3 inundation by rainwater or rainwater-induced run off other than where the inundation is solely caused by or solely results from ingress of rainwater through or via the roof of the building whether resulting from storm or not.

Hacking

Unauthorised access to any **computer systems**, whether **your** property or not.

Incurred costs

The money or portion of money chargeable directly to the **production** which

- 1 has already been paid by **you**
 - 2 **you** are legally liable to pay
- and for which no refund or recovery can be received.

Key person

Any person under contract or agreement for the **production** and upon which the **production** substantially depends.

Media material

Any stock of film, tape, transparencies, artwork, drawings or computer media and soundtracks belonging to **you** or for which **you** are responsible and which has been or will be used in the **production**.

Phishing

Any access or attempted access to **data** made by means of misrepresentation or deception.

Production

Any film, video, multi-media production or conference or event undertaken by **you** with the exception of events in which income is from speculative ticket sales.

Terrorism

In England, Scotland and Wales

Acts of persons acting on behalf of, or in connection with, any organisation which carries out activities directed towards the overthrowing or influencing, by force or violence, of His Majesty's Government in the United Kingdom or any other government de jure or de facto.

In Northern Ireland

An act including but not limited to the use of force or violence and/or threat thereof of any person or group(s) of persons, whether acting alone or on behalf of or in connection with any organisation(s) or government(s) committed for political, religious, ideological or similar purposes, including the intention to influence any government and/or put the public or any section of the public in fear.

In the Channel Islands and the Isle of Man

An act of any person(s) acting on behalf of or in connection with any organisation which carries out activities directed towards the overthrowing or influencing by force or violence of any government de jure or de facto.

Virus or similar mechanism

Program code, programming instruction or any set of instructions constructed with the purpose and ability, or purposely used, to damage, interfere with, adversely affect, infiltrate or monitor computer programs, **computer systems, data** or operations, whether involving self-replication or not. The meaning of virus or similar mechanism includes but is not limited to trojan horses, worms and logic bombs and the exploitation of bugs or vulnerabilities in a computer program to damage, interfere with, adversely affect, infiltrate or monitor as above.

✓ What is covered

Multi-media cover

We will cover **you** for

- 1 **incurred costs** arising from **damage** occurring during the **period of insurance** to **media material** resulting in a **production** being cancelled, abandoned or curtailed and for which
 - a the cause is beyond **your** control, and
 - b the cause is not excluded under the Exclusions to Multi-media cover under the heading 'What is not covered' in this section, and
 - c **our** prior written agreement has been provided
- 2 **additional costs** arising from **damage** occurring during the **period of insurance** to **media material** and where
 - a the cause is beyond **your** control, and
 - b the cause is not excluded under the Exclusions to Multi-media cover under the heading 'What is not covered' in this section
 - c the **production** has not been cancelled, abandoned or curtailed.

Our liability under this cover shall not exceed the Multi-media cover limit of indemnity shown in **your** schedule.

Producers' indemnity cover

We will cover **you** for

- 1 **incurred costs** arising when a **production** is cancelled, abandoned or curtailed during the **period of insurance** and for which
 - a the cause is beyond **your** control, and
 - b the cause is not excluded under the Exclusions to the Producers' indemnity cover under the heading 'What is not covered' in this section, and
 - c **our** prior written agreement has been provided
- 2 **additional costs** arising from an interruption of or interference to a **production** during the **period of insurance** and where
 - a the cause is beyond **your** control, and
 - b the cause is not excluded under the Exclusions to the Producers' indemnity cover under the heading 'What is not covered' in this section
 - c the **production** has not been cancelled, abandoned or curtailed.

Our liability under this cover shall not exceed the producers' indemnity cover limit of indemnity shown in **your** schedule.

Limit of indemnity

Our total liability across both **Multi-media cover** and **Producers' indemnity cover** shall not exceed the total indemnity cover limit of indemnity shown in **your** schedule.

✗ What is not covered

Exclusions are listed under those applicable only to **Multi-media cover**, only to **Producers' indemnity cover** and those applicable to both **Multi-media cover** and **Producers' indemnity cover**.

Exclusions to Multi-media cover

Errors, omission and misjudgement in recording and editing exclusion

We will not cover **you** for any **additional costs** or **incurred costs** caused by or arising from any error, omission or misjudgement in exposure, lighting or recording onto or editing **media material**.

Miscellaneous exclusions

We will not cover **you** for any **additional costs** or **incurred costs** caused by or arising from

- 1 replacement of third party proprietary software
- 2 **damage** to **media material** where it has not been stored in accordance with manufacturers' recommendations
- 3 **damage** to **media material** caused by airport custom or security checks or equipment unless the **media material** is properly packaged and labelled by **you**
- 4 rectifying programming errors or design defects in software
- 5 the use of any software which has not gone through testing, been proven and obtained development sign off.

Unattended and unsecured vehicles exclusion

We will not cover **you** for theft or attempted theft from any unattended vehicle unless

- 1 the doors of the vehicle are locked and all its windows and other openings are fully closed and properly fastened
- 2 any **media material** is concealed from view in a locked glove box or locked boot or covered hatchback area
- 3 between the hours of 9pm and 6am, the vehicle is also either
 - a in a locked garage, or
 - b a walled or fenced compound that is either securely locked or has a watchman in constant attendance, or
 - c alarmed with the alarm set and fully operational.

It will be up to **you** to prove that any theft or attempted theft occurred before 9pm and after 6am.

If **you** do not comply with this condition, **you** will not be covered and **we** will not pay your claim.

This condition will not apply when such vehicle is on location or during transits to and from a location for the purposes of the **business**.

Exclusions to Producers' indemnity cover

Computer software exclusion

We will not cover **you** for any **additional costs** or **incurred costs** in

- 1 replacing any third party proprietary software
- 2 rectifying programming errors, omissions or design defects in software
- 3 relation to programming errors or design defects in respect of third party proprietary software, other than **additional costs** when such software errors or design defects cause erasure, destruction or corruption to other software
- 4 relation to any software which has not been completed, passed all testing procedures and been successfully proven.

Costs from using animals exclusion

We will not cover **you** for any **additional costs** or **incurred costs** caused by or arising from the use of animals in a **production** other than due to death, serious injury or serious disease to the animal and not known of at the time of their engagement for the **production**.

Efficacy exclusion

We will not cover **you** for any **additional costs** or **incurred costs** caused by or arising from the failure of any recording equipment, media equipment, **media material** or special effect used in the **production** to correctly fulfil its intended use or create its desired effect.

Electrical and mechanical breakdown exclusion

We will not cover **you** for any **additional costs** or **incurred costs** caused by or arising from mechanical or electrical breakdown or derangement of any aircraft, helicopter, hovercraft, waterborne vessel, motorcycle, motor vehicle, railway locomotive, robot, lifting machinery or contractors' plant which is intended to appear in a **production**.

Failure to obtain finance, finance amendments and currency variation exclusion

We will not cover **you** for any **additional costs** or **incurred costs** resulting or arising from

- 1 the insolvency of **you**
- 2 the financing of a **production** including but not limited to the failure to finance a **production** or changes in the cost of financing including variations to the rate of currency exchange.

Incapacity of production persons exclusion

We shall not cover any **additional costs** or **incurred costs** caused by or arising from

- 1 any person being incapacitated due to
 - a any illness, disease or other medical condition known at the time of engagement for the **production**
 - b alcohol or the illicit use of drugs
 - c any hazardous act, feat or performance undertaken in connection with the production unless such activity had been previously agreed with **us**
 - d menstruation, pregnancy, childbirth or conditions pertaining thereto
 - e mental anguish unless caused by death or serious injury or illness which has resulted in hospitalisation of the person's spouse, partner, child, parent or sibling
- 2 any person being incapacitated for any reason who is
 - a under 4 years old at the time of engagement
 - b over 70 years old at the time of engagement.

Material property exclusion

We will not cover **you** for any **additional costs** or **incurred costs** relating to the repair or replacement of any material property.

Multi-media cover exclusion

We will not cover **you** for any **additional costs** or **incurred costs** caused by or arising from **damage** to **media material**.

Exclusions applicable to both Multi-media and Producers' indemnity cover

Aircraft or aerial devices exclusion

We will not cover **you** for any loss, damage, cost or expense caused by or occasioned by pressure waves caused by aircraft or other aerial devices travelling at sonic or supersonic speeds.

Contractual liability exclusion

We will not cover claims

- 1 for **contractual liability** in connection with **productions**
- 2 where the terms of any contract or agreement made by **you** prevent **us** from taking over the full defence or settlement of the claim
- 3 to pay liquidated damages, or any contractual fines or amounts payable under contractual penalty clauses.

Cyber exclusion

We will not cover **you** for any **additional costs** or **incurred costs** directly or indirectly caused by, contributed to by, arising from, occasioned by or resulting from

- 1 any **cyber act** including but not limited to **hacking, phishing, denial of service attack** or the transmission of any **virus or similar mechanism**
- 2 any **cyber incident**.

This exclusion shall not apply to claims for damage resulting from fire, lightning, explosion, aircraft or other aerial devices or articles dropped from them covered by this section.

Deliberate act exclusion

We will not cover **you** for any loss, damage, cost or expense caused, or allowed to be caused, deliberately, wilfully, maliciously, illegally or unlawfully by **you**.

Directors' and partners' remuneration exclusion

We shall not cover any **additional costs** or **incurred costs** relating to any payment or money due to any director or partner unless such payment or money is for services of a **key person** and relates directly to the **production**.

Disease exclusion

Notwithstanding any provision to the contrary within this section, this section excludes any loss, damage, liability, claim, cost or expense of whatsoever nature, directly or indirectly caused by, contributed to by, resulting from, arising out of, or in connection with a **communicable disease** or the fear or threat (whether actual or perceived) of a **communicable disease** regardless of any other cause or event contributing concurrently or in any other sequence thereto.

Excess exclusion

We will not cover **you** for the **excess** shown in **your** schedule for each and every loss.

Financial instruments and rights exclusion

We will not cover **you** for any **additional costs** or **incurred costs** relating to

- 1 any artistic or media rights including but not limited to musical rights, story rights and cost of scenario unless those rights have no value other than for the **production**
- 2 any scripts, typing schedules or plans unless they have no value other than for the **production**
- 3 any insurance policy, completion guarantee or other financial service product, tax, interest or other finance charges.

Geomagnetic storm and solar flares exclusion

We will not cover **you** for any **additional costs** or **incurred costs** caused by or arising from the failure or disruption of power supplies or communications services as a consequence of geomagnetic storms or solar flares, eruptions or bursts.

Pollution or contamination exclusion

We will not cover **you** for any loss, damage, cost or expense caused by pollution or contamination unless the **damage** is caused by

- 1 pollution or contamination which itself results from a **defined peril**
- 2 any **defined peril**, which itself results from pollution or contamination.

Production set and accessories exclusion

We shall not cover **you** for any **additional costs** or **incurred costs** relating to any props, sets, scenery, costumes, models, wardrobe and similar theatrical property owned by **you** unless specifically designed and manufactured for the **production** and having no value other than for the **production**.

Radioactive contamination exclusion

We will not cover damage, or any other loss or expense resulting or arising from damage to any property, or any consequential loss, directly or indirectly caused by or contributed to by or arising from

- 1 ionising radiations or contamination by radioactivity from any nuclear fuel, nuclear waste from the combustion of nuclear fuel, radioisotopes, or any other nuclear or radioactive material
- 2 buildings, plant or equipment for the generation of nuclear power, or production, use or storage of nuclear fuel, nuclear waste from the combustion of nuclear fuel, radioisotopes, or any other nuclear or radioactive material
- 3 transportation of nuclear fuel, nuclear waste from the combustion of nuclear fuel, radioisotopes, or any other nuclear or radioactive material
- 4 the radioactive, toxic, explosive or other hazardous properties of any explosive nuclear assembly or nuclear component of that assembly
- 5 any weapon or device employing atomic or nuclear fission and/or fusion or other like reaction or radioactive force or matter.

Strikes and labour disputes exclusion

We will not cover **you** for any **additional costs** or **incurred costs** caused by or arising from the actions of strikers, locked-out workers or persons taking part in labour disturbances.

Terrorism and Northern Ireland exclusion

We will not cover **you** for loss, damage, cost or expense of any nature directly or indirectly caused by, resulting from or in connection with

- 1 In England, Scotland, Wales, the Channel Islands and the Isle of Man
 - a any act of **terrorism**, regardless of any other cause or event contributing concurrently or in any other sequence to the loss
 - b any action taken in controlling, preventing, suppressing or in any way relating to any act of **terrorism**.
- 2 In Northern Ireland
 - a any act of **terrorism**, regardless of any other cause or event contributing concurrently or in any other sequence to the loss
 - b any action taken in controlling, preventing, suppressing or in any way relating to any act of **terrorism**
 - c riot, civil commotion and (except for damage or interruption to the **business** caused by fire or explosion) strikers, locked-out workers or persons taking part in labour disturbances or malicious persons.

If any of the points above are found to be invalid or unenforceable, the remainder of the points shall remain in full force and effect. In any action, lawsuit or other proceedings or where **we** state that any loss, damage, cost or expense is not covered by this section it will be **your** responsibility to prove that they are covered.

Unsuitable weather exclusion

We will not cover **you** for any additional costs or **incurred costs** caused by or arising from cancellation, interruption, postponement or abandonment of filming or recording due to

weather conditions resulting in unsuitable photographic or recording conditions.

War risks exclusion

We will not cover any claims caused by or happening through war, invasion, act of foreign enemy, hostilities (whether war is declared or not), civil war, civil rebellion, warlike operations, revolution, insurrection or military or usurped power, confiscation, nationalisation, requisition, seizure or destruction or damage to property by or under the order of any government or public or local authority.

Section conditions

These conditions of cover apply only to this section. **You** must comply with the following conditions to have the full protection of **your policy**. Some conditions specify circumstances whereby non-compliance will mean that **you** will not receive payment for a claim. However, **you** will be covered and **we** will pay **your** claim if **you** are able to prove that the non-compliance with these conditions could not have increased the risk of the loss which actually occurred in the circumstances in which it occurred.

Average condition

If the **production** cost exceeds the maximum cost of any one production shown in **your** schedule then the value of any claim **we** pay shall be reduced proportionately.

Back up, duplication and processing condition

You must ensure that

- 1 all original work, animation artwork, drawings, prints or offshoots have either had a protection print or duplicate tape or disc made before any intentional destruction
- 2 all recorded **media material** shall be backed up or sent for processing as soon as reasonably practical and always within 48 hours of recording.

If **you** do not comply with this condition, **you** will not be covered and **we** will not pay **your** claim.

Pre-filming testing condition

You must ensure that all recording equipment and **media material** is tested and found to be suitable for the **production** needs both

- 1 prior to attending the filming location and with sufficient time to source replacements, and
- 2 immediately before filming commences.

If **you** do not comply with this condition, **you** will not be covered and **we** will not pay **your** claim.

Pre-production planning condition

You must ensure that prior to any **production**

- 1 all travel arrangements have been made including the receipt of passports and visas, any medical requirements such as immunisations completed, all travel tickets purchased, vehicles hired and currency purchased
- 2 all filming permits and consents have been obtained
- 3 all other necessary and appropriate arrangements have been fulfilled
- 4 any **key persons** are under contract to complete the **production**.

If **you** do not comply with this condition, **you** will not be covered and **we** will not pay **your** claim.

Rushes condition

You must ensure that all rushes are kept in the possession or control of **you**, a professional representative of **yours** or an employee of **yours**, except for when travelling by airline and the airline prohibits the possession of the rushes for a flight.

If **you** do not comply with this condition, **you** will not be covered and **we** will not pay **your** claim.

Professional indemnity section – Media

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Important information about the cover provided by this section

The cover provided by this section operates on a claims-made basis. This means that **we** will only provide cover for **claims** or **claim circumstances** made against **you** and notified to **us** during the **period of insurance**. **We** will not cover any **claim** or **claim circumstance** arising from an act, error or omission that occurred before the **retroactive date**.

Conditions apply regarding when **you** must tell **us** about **claims** or **claim circumstances** and these can be found below. **You** should read these carefully.

Meanings of defined terms

You can find the meanings for words in bold blue on in the General introduction section of **your policy**. There are some words that may only appear in this section or are defined differently and their meanings are shown here.

Advertising

Publicity or promotion of **your** professional business and of the products and services of others.

Asbestos

Asbestos in any form, asbestos fibres, particles or derivatives of asbestos or any material containing asbestos.

Claim(s)

Any verbal or written demand, notice or communication from a third party

- 1 making an assertion for legal remedy or any other form of compensation or remedy
- 2 containing reference to, or serving notice of, intent to start legal proceedings
- 3 invoking any pre-action protocol as set under the Civil Procedure Rules and/or
- 4 referring to arbitration, adjudication or complaint proceedings.

Claim circumstance(s)

Any incident, occurrence, fact, matter or act that **you** become aware of that might reasonably give rise to a **claim**.

Computer system

Any computer, hardware, software, communications system, electronic device (including, but not limited to, smart phone, laptop, tablet or wearable device), server, cloud or microcontroller including any similar system or any configuration of the aforementioned and including any associated input, output, data storage device, networking equipment or back up facility.

Criminal prosecution defence costs

Costs and expenses that **you** incur with **our** prior written consent to defend any criminal proceeding first made against **you** and notified to **us** during the **period of insurance** arising from the conduct of **your professional business**.

Cyber act

An unauthorised, malicious or criminal act or series of related unauthorised, malicious or criminal acts, regardless of time and place, or the threat or hoax thereof, involving access to, processing of, use of or operation of any **computer system**.

Data

Information, facts, concepts, code or any other information of any kind that is recorded or transmitted in a form to be used, accessed, processed, transmitted or stored by a **computer system**.

Data protection law

Any applicable data protection and privacy legislation or regulations in any country, province, state, territory or jurisdiction which govern the use, confidentiality, integrity, security and protection of personal data or any guidance or codes of practice relating to personal data issued by any data protection regulator or authority from time to time (all as amended, updated or re-enacted from time to time).

Defence costs

All costs and expenses incurred by **us** or by **you** with **our** prior written permission relating to the investigation, defence or settlement of any **claim** against **you**, which **your policy** covers.

This does not include profit, costs or remuneration or expenses paid or due to **you**.

Documents

Any documents or information that are **your** property or are information or data, including computer records and data or information stored magnetically or electronically, that are **your** property or are looked after by or deposited with **you** in the ordinary course of **your professional business** and for which **you** are responsible. This does not include bearer bonds, coupons, stamps, bank or currency notes or negotiable instruments.

Employee(s)

- 1 Any person working for **you** under a contract of service with **you** or
- 2 Any person working for **you** in connection with the **professional business**
 - a who is hired or lent to **you**
 - b who is self-employed
 - d who is a freelance consultantand who is under **your** control or supervision.

Excess

The amount stated in **your** schedule, being the first amount of **loss** for which **you** are responsible.

Extended liability

Legal liability assumed by **you** under the express or implied terms of any contract or agreement that restrict **your** right of recovery, or increase **your** liability at law beyond that applicable in the absence of those terms.

Injury

Any death, illness, disease or sickness or any bodily, mental, psychological or emotional injury, distress or shock.

Limit of indemnity

The amount shown in **your** schedule as the limit of indemnity.

Loss

The amount that **you** are legally liable to pay due to a **claim**, including awards of damages, awards of claimant costs and amounts that are pursuant to settlements, but not including **defence costs**.

Pollutant

Any solid, liquid or gaseous pollutant, contaminant or irritant substance or any biological agent that is a danger to human health.

Pollution

Actual, alleged or threatened discharge, seepage, treatment, removal, disposal, dispersal, emission, release or escape of any **pollutant** or any regulatory order, direction or request to test for, monitor, remove, contain, treat, detoxify or neutralise any **pollutant**.

Retroactive date

The date from when work **you** performed is covered. This date is shown on **your** schedule.

Subsidiary

A company that **you** either directly or indirectly control through

- 1 holding a majority of the voting rights
- 2 the right to appoint or remove a majority of its board of directors and/or
- 3 sole control of, pursuant to a written agreement with other shareholders, a majority of that company's voting rights.

Virus or similar mechanism

Program code, programming instruction or any set of instructions intentionally constructed with the ability to damage, interfere with or otherwise adversely affect computer programs, data files or operations, whether involving self replication or not, including but not limited to trojan horses, worms or logic bombs.

You/your/yours

- 1 The person, firm, company or organisation shown in your schedule as the insured
- 2 Any person, firm, company or organisation shown in your schedule as an additional insured
- 3 Any predecessor in business to any firm, company or organisation that has been disclosed to **us**
- 4 Any person who is or has been or who becomes a director, partner, member, principal or **employee**, but only for work undertaken for or on behalf of any person or body referred to in 1, 2 or 3 above
- 5 Any retired partner, retired director or retired member of the firm, company or organisation shown in your schedule as the insured and who remains as a consultant to any person, firm, company or organisation shown in your schedule as the insured
- 6 The estate, heirs, executors, legal or personal representatives of any person referred to in 1, 2, 3, 4 or 5 above in the event of their death or incapacity.

✓ What is covered

We will cover **you** for any **claim** and **defence costs** that arise from the conduct of **your professional business**, where the **claim** is first made against **you** and notified to **us** during the **period of insurance**, arising from

- 1 a breach of **your** professional duty
- 2 negligent misstatement or misrepresentation
- 3 unintentional libel, slander or defamation
- 4 unintentional breach of or misuse of confidentiality or any right to privacy
- 5 unintentional infringement of intellectual property rights including any act of passing-off (but not breach of patent), or
- 6 any other civil liability that **you** incur
- 7 breach of comparative advertising regulations.

The most **we** will pay for **loss** resulting from each **claim** is the **limit of indemnity**.

We will pay **defence costs** in addition to the **loss**. If the amount of **loss** exceeds the **limit of indemnity**, the most we will pay for **defence costs** will be an amount in the same proportion that the **limit of indemnity** has to the **loss**.

Commitment to media space or print time cover

We will pay you the amount that you are committed to pay for media space or print time where your client refuses to pay you for that media space or print time due to allegations that you have acted outside your authority, always provided that

- 1 you first discover and notify us of such amount within the **period of insurance**, and
- 2 you can show that such amount cannot be legally recovered from your client, and
- 3 you have taken all reasonable steps to reduce or avoid such **loss**.

The most we will pay in total during any one **period of insurance** is the **limit of indemnity**.

Court attendance costs cover

In the event that any of your directors, partners, members, principals or employees are required to attend court, mediation or arbitration in connection with a **claim** that is covered by this **policy**, provided that we have first given our written consent, we will pay compensation to you at £500 per day or part of day for each person required to attend.

The most we will pay in any one **period of insurance** under this cover is £25,000.

This is in addition to the **limit of indemnity**.

Criminal prosecutions defence costs cover

We will pay for **criminal prosecution defence costs** but only where, in our reasonable opinion, defending the criminal proceeding could protect you against a **claim** or potential **claim** that would be covered by this **policy**.

For any subsequent or concurrent civil action arising out of that criminal offence, notification of that action will be deemed to be notification of a **claim** or **claim circumstance**.

The most we will pay for all **criminal prosecutions defence costs** in any one **period of insurance** is £250,000 or the **limit of indemnity**, whichever is the lower. This is part of and not in addition to the **limit of indemnity**.

Dishonesty and fraud cover

We will cover you for any **claim** and **defence costs** arising from the conduct of your **professional business**, first made against you and notified to us during the **period of insurance**, for any civil liability including liability for claimant's costs and expenses arising from dishonest or fraudulent acts or omissions by any of your employees who are not a principal, partner, member or director.

In the case of any **claim** arising from any dishonest or fraudulent act or omission

- 1 no person committing or condoning dishonest or fraudulent acts or omissions shall be entitled to cover
- 2 we will not cover dishonest or fraudulent acts or omissions committed by any person after you discover, or have reasonable cause for suspicion of dishonesty or fraud on the part of that person
- 3 in the event of the alleged fraudulent and/or dishonest party making an admission of guilt or being found guilty of that fraud and/or dishonesty, we will seek a full refund of any amounts paid by us under this section from that fraudulent party.

Any dishonesty or fraud committed by two or more employees who were acting together will be regarded as one **claim**.

The most we will pay for **loss** resulting from each **claim** that arises out of that dishonest or fraudulent act or omission is the **limit of indemnity**.

We will pay **defence costs** in addition to **loss** that arises out of that dishonest or fraudulent act or omission. If that **loss** amount exceeds the **limit of indemnity**, the most we will pay for **defence costs** will be an amount in the same proportion that the **limit of indemnity** has to the **loss** amount.

Disputed fees cover

We will pay you amounts owed to you by your client where they refuse to pay for work you have done for them, including amounts legally owed by you to sub-contractors or suppliers, provided always that

- 1 we are satisfied that your client has reasonable grounds for being dissatisfied with your work and threatens to bring a claim for more than the amount owed
- 2 it is possible to settle the dispute by you agreeing not to pursue the outstanding amount, and
- 3 we consider that it will avoid a legitimate claim that would otherwise be covered by this policy for a greater amount than the amount owed to you.

If a claim still arises from the same dispute then the amount paid under this section will be deducted from the limit of indemnity for that subsequent claim.

If you eventually recover the debt then the amount paid by us must be repaid to us less your reasonable expenses of recovering the debt due.

The most we will pay under this cover is the limit of indemnity.

Formal investigation costs cover

We will pay costs and expenses that you incur with our prior written approval at a properly constituted hearing, tribunal or proceeding that is covered under this policy, but that are not included under the meaning of defence costs, provided that the hearing, tribunal or proceeding

- 1 is first instigated against you and notified by you to us during the period of insurance, and
- 2 arises from the conduct of your professional business.

The most we will pay in any one period of insurance under this cover is £25,000.

This is in addition to the limit of indemnity.

Indemnity to principal cover

If you request, we will indemnify any principal with whom you have entered into an agreement as far as is necessary to meet the requirements of such agreement but only in respect of liability incurred to independent third parties arising directly from professional business performed by you.

Intellectual property rights prosecution costs cover

We will cover the reasonable and necessary costs and expenses you incur, with our prior written consent, in the pursuit of any claim first made by you against a third party during the period of insurance, for infringement of intellectual property rights first discovered by you and notified to us during the period of insurance where the ownership of such rights is vested in you.

For the purposes of this cover, we will only give prior consent where you have provided, at your expense, an opinion from a solicitor, barrister or suitably qualified intellectual property agent evidencing

- 1 the existence of your intellectual property rights and
- 2 the infringement of those rights and
- 3 a measurable loss and
- 4 a reasonable prospect of success.

Our total liability to indemnify you under any combination of covers in your policy shall not exceed the limit of indemnity in respect of any one claim or series of claims arising out of one originating cause regardless of the number of cover sections that it or they might relate to.

The most we will pay in any one period of insurance under this cover is £25,000. This is part of and not in addition to the limit of indemnity.

Joint ventures cover

We will cover you for any claim and defence costs that arise from the conduct of your professional business, where the claim is first made against you and notified to us during the period of insurance, arising from a civil liability that you may become legally liable to pay and

that arises whilst **you** are a member of a joint venture or consortium.

The most **we** will pay under this cover is the **limit of indemnity**.

Loss of documents cover

We will cover **you** for any **claim** and **defence costs** that arise from the conduct of **your professional business**, where the **claim** is first made against **you** and notified to **us** during the **period of insurance**, arising from the destruction of, loss of or damage to any **documents**.

We will pay reasonable costs and expenses for replacing or restoring **your** own **documents** that have been destroyed, lost or damaged in the conduct of **your professional business** provided that the destruction, loss or damage is discovered by **you** and notified to **us** during the **period of insurance**.

The most **we** will pay under this cover is the **limit of indemnity**.

An **excess** of £500 (or the amount shown in **your** schedule if that is lower) will apply to each and every **claim** for loss, destruction or damage of **documents**.

Mitigation costs cover

We will cover **you** for reasonable costs and expenses that **you** incur for any reasonable action **you** take to mitigate a **loss** or potential **loss** that would otherwise be the subject of a **claim** under this **policy**, provided always that

- 1 **you** obtain **our** prior written consent before incurring these costs and expenses, and
- 2 **you** prove to **our** satisfaction that the amount of the costs and expenses to be incurred are less than any likely award of damages arising from the same potential **claim**, and
- 3 if a **claim** still arises from the same **loss** or potential **loss** then the amount paid under this section will be deducted from the **limit of indemnity** for that subsequent **claim**.

The most **we** will pay under this cover is the **limit of indemnity**.

Pollution cover

For any **claim** that arises directly or indirectly from **pollution**, **we** will only pay for that **claim** and any **defence costs** related to it if the cause of that **claim** was due to a specific act, error or omission committed by **you**, or by others acting on **your** behalf, in the conduct of **your professional business**.

The most **we** will pay for all **pollution claims** and **defence costs** related to those **pollution claims** during any one **period of insurance** is the **limit of indemnity**. For the purposes of this cover, **defence costs** are part of and not in addition to the **limit of indemnity**.

Reputation management costs cover

We will cover **you** for all reasonable costs incurred with **our** prior written consent for a public relations consultant or a crisis management consultant, or both, to avert or mitigate any material damage to **your professional business** reputation. The most **we** will pay under in any one **period of insurance** is £250,000. This is part of and not in addition to the **limit of indemnity**.

Subsidiary creation and acquisition cover

If, during the **period of insurance**, **you**

- 1 acquire securities or voting rights in another organisation or create another organisation which, as a result of that acquisition or creation, becomes a **subsidiary** of **yours**, or
- 2 acquire any organisation by merger or consolidation

then that acquired or created organisation will automatically be insured under this **policy** with effect from the date of the acquisition or creation, but only with respect to the performance of **your professional business** performed after the acquisition or creation was completed.

However, if the acquired or created organisation

- 1 has annual fee income or turnover, which is greater than 20% of the annual fee income **you** last declared to **us** prior to the **period of insurance**
- 2 has assets in the United States of America or Canada

- 3 provides advice or services as part of activities which are not activities described in the definition of the **professional business**
- 4 has ever been fined an amount of £10,000 or more or has ever been found guilty of an offence by its regulator, or
- 5 has ever, with regard to any given 12 month period, incurred (through judgment or settlement) total losses equalling or exceeding £100,000 or 10% of the **limit of indemnity** (whichever is less) on account of **claims** made against it in that period,

you will give **us** written notice of that acquisition or creation as soon as possible and also provide any additional information **we** may reasonably require. **We** will have the right to amend the terms of this **policy** including but not limited to charging an additional premium. If **you** fail to give **us** written notice of the acquisition or creation then **we** will have the right to refuse to pay any **claim** or **claim circumstance** that arises directly or indirectly in connection with that acquired or created organisation.

Withdrawal of consent cover

We will pay for expenses **you** necessarily incur, with **our** prior written consent, in the withdrawal or alteration of any data, text, sounds, images or similar content as a result of or in mitigation of a **claim** or **claim circumstance** which would otherwise be covered under 1 to 7 of the **What is covered** section of **your policy**, including as a result of a complaint made to the Advertising Standards Authority (ASA), the Office of Communications (Ofcom), Trading Standards Officers or any other regulatory or self-regulatory body.

We will only pay such expenses if **you** can demonstrate that

- 1 such content would, if not withdrawn or altered, lead to a **claim** under 1 to 7 of the **What is covered** section of **your policy**, equal to or in excess of the expenses necessarily incurred in the withdrawal or alteration of the content and
- 2 the expenses incurred are necessary to successfully avoid such **claim**.

Any payment made under this cover will not include

- a **your** lost profit, mark-up, or VAT or its equivalent or
- b compensation for management time or
- c any lost files or commissions from any other client or potential client.

If a **claim** still arises from the same withdrawal or alteration of content, then the amount paid under this cover will be deducted from the **limit of indemnity** for that subsequent **claim**.

The most **we** will pay in total during any one **period of insurance** is £250,000. This is part of and not in addition to the **limit of indemnity**.

Defence and settlement of claims

All **claims** that come from the same act, error or omission or series of acts, errors or omissions, as a result of, or arising directly or indirectly from the same source or original cause, will be regarded as one **claim**.

If **we** cover more than one person, firm, company or organisation, **our** liability to all, as a result of one **claim**, will not be more than the **limit of indemnity**.

We may at any time pay the **limit of indemnity** or relevant sub-limit. **We** will then have no further liability for that **claim** or **defence costs** except those already incurred at the date of payment of the **limit of indemnity** or sub-limit.

We have the right, but not the obligation, to take control of any **claim** and conduct the investigation, settlement or defence in **your** name. After taking into account the commercial considerations of the costs of defence, **we** may choose to settle a **claim** instead of defending it.

If **we** feel it is necessary, **we** will appoint **our** adjuster, solicitor or other appropriate person to deal with a **claim**. If **you** ask **us**, **we** may agree to appoint **your** solicitor, but only if **we** are satisfied that **your** solicitor has the necessary expertise to undertake this work, only on a similar fee basis as **our** solicitor and only for work done with **our** prior written approval.

If **you** disagree with **our** proposed course of action for any legal proceedings (whether defence or prosecution), then **you** may refer the

matter to a King's Counsel of the English Bar to be mutually agreed between **you** and **us**. If **you** and **we** cannot agree on the King's Counsel to be appointed, then the King's Counsel will be appointed by the current Chairman of the English Bar or their representative. The King's Counsel's decision on how the legal proceedings should be handled shall be binding on **you** and **us**. In resolving this dispute, the King's Counsel will have consideration for the interests of **you** and **us**. The costs of this exercise will be allocated by the agreed or appointed party on a fair and equitable basis.

x What is not covered

Asbestos exclusion

We will not cover any **claim** directly or indirectly involving **asbestos** or allegations or concerns relating to **asbestos**.

Associated persons or entities exclusion

We will not cover any **claim** brought by

- 1 a firm, company or organisation with a financial interest in **you**
- 2 a firm, company or organisation in which any of **your** partners, directors or principals have a controlling interest
- 3 any firm, company, organisation or individual who falls within the definition of **you**

unless the **claim** originates from a source independent of that firm, organisation or individual.

Commercial disputes exclusion

We will not cover any **claim** arising from any commercial dispute between **you** and **your** business partners or business associates, including but not limited to any joint venture partner or any other third-party service providers, distributors, contributors or collaborators, but only to the extent such a **claim** is based upon

- 1 commission or royalty, or any other term upon which such partner or associate is to be compensated in connection with doing business with **you**, or any compensation or

remuneration promised or owed by **you** in relation to those terms or

- 2 **your** decision to cease doing business with such a partner or associate.

Competition results exclusion

We will not cover any **claim** arising from the result, outcome or operation of any competition, game, contest, promotion or lottery.

Construction or installation exclusion

We will not cover any **claim** arising from the conduct of **your professional business** where **you** undertake any construction, erection, installation or maintenance works or to manufacture or supply materials or equipment (other than project models or displays) in connection with such construction, erection, installation or maintenance works.

Cyber and data protection law exclusion

- 1 **We** will not cover any **claim**, loss, damage, liability costs, expenses, fines, penalties, mitigation costs or any other amount directly caused by, directly resulting from or directly arising out of

a a **cyber act**

b any partial or total unavailability or failure of any **computer system**

where the **computer system** is owned or controlled by **you** or any party acting on **your** behalf, or

c the receipt or transmission of malware, malicious code or similar by **you** or any party acting on **your** behalf.

- 2 **We** will not cover any **claim**, loss, damage, liability costs, expenses, fines, penalties, mitigation costs or any other amount directly or indirectly caused by, directly or indirectly resulting from or directly or indirectly arising out of any failure or interruption of service provided

a to **you** or any party acting on **your** behalf by an internet service provider, telecommunications provider or cloud provider but not including the hosting of hardware and software owned by **you**

- b** by any utility provider, but only where such failure or interruption of service impacts a **computer system** owned or controlled by **you** or any party acting on **your** behalf.
- 3** **We** will not cover any **claim**, loss, damage, liability costs, expenses, fines, penalties, mitigation costs or any other amount for actual or alleged breach of **data protection law** by **you** or any party acting on **your** behalf.
- 4** Any cover provided by **your policy** in respect of the costs of reconstituting or recovering lost, inaccessible or damaged **documents** owned or controlled by **you** or any party acting on **your** behalf will not apply to **data**.

Other than as stated within this exclusion or by other restrictions in **your policy** specifically relating to the use of, or inability to use, a **computer system**, no cover otherwise provided by **your policy** will be restricted solely due to the use of, or inability to use, a **computer system**.

Deliberate acts and omissions exclusion

We will not cover any **claim** arising directly or indirectly from any act, error or omission that **you** deliberately, spitefully or recklessly commit, condone or ignore.

Directors' and officers' liabilities exclusion

We will not cover any **claim** made against **you** or **your** directors, officers or trustees for breach of their duties as director, officer or trustee.

Dishonesty and fraud exclusion

We will not cover any **claim** directly or indirectly involving dishonesty or fraud committed by **you** other than as stated in the **Dishonesty and fraud cover** of this section.

Distorted computer records exclusion

We will not cover any costs and expenses **you** incur as a result of the loss or distortion of computer records caused by

- 1** defects in computer equipment or electronic storage devices
- 2** wear, tear, vermin or gradual deterioration

- 3** climatic or atmospheric conditions or extremes of temperature
- 4** use or processing whilst mounted in or on any machine unless as a result of loss of or damage to the machine itself.

This exclusion will not apply to the **Loss of documents cover** of this section.

Employment exclusion

We will not cover any **claim** arising out of any kind of employment related dispute or any kind of defamation, discrimination, harassment or unfair treatment relating to any current, former or prospective **employees**.

Excess exclusion

We will not pay the **excess** shown in **your** schedule or as otherwise shown in the **Loss of documents cover** of this section.

The **excess** does not apply to **defence costs**, **Court attendance costs cover** or **Formal investigation costs cover**.

Extended liability exclusion

We will not cover **extended liability**.

Failure to adhere to legal advice exclusion

We will not cover any **claim** arising directly or indirectly or in any way relating to failure by **you** to adhere to legal advice **you** have obtained with regard to clearances of any data, text, sounds, images or similar content that is intended to be, or has been, disseminated.

False advertising exclusion

We will not cover any **claim** arising directly or indirectly from false **advertising** or misrepresentation in **advertising**.

This exclusion will not apply in respect of any **claim** or portion of any **claim** relating to the alleged unauthorised use by **you** of a third party's trademark.

Financial services exclusion

We will not cover any **claim** arising out of any Regulated Activities as defined in the Financial

Services and Markets Act 2000 as amended from time to time.

Fines and penalties exclusion

We will not cover any fines, penalties, punitive, multiple, aggravated or exemplary damages awarded against **you**.

Goods supplied exclusion

We will not cover any **claim** arising out of any product, goods or materials that **you** have supplied or used, or made arrangements to supply or use, or the manufacture, repair, sale, installation or maintenance of any product by **you** or on **your** behalf.

Injury exclusion

We will not cover any **claim** for **injury**

- 1 to any **employee**
- 2 to any person who is not an **employee** unless directly arising from a breach of duty through a negligent act, error or omission by **you** in the course of **your professional business**.

Insolvency exclusion

We will not cover any **claim** arising out of or in connection with **your** insolvency, bankruptcy or any **claim** made by **your** liquidator, provisional liquidator or administrator.

Insurance or finance arrangement exclusion

We will not cover any **claim** arising from **your** failure to arrange and/or maintain insurance and/or finance.

Internet activity exclusion

We will not cover any **claim** arising out of

- 1 the management of financial transactions
 - 2 obscene, blasphemous or pornographic materials
- on the internet.

Negatives, film, print or electrical media exclusion

We will not cover any **claim** arising from damage to or loss or destruction of negatives, exposed or unexposed film, prints, library stock or magnetic or electrical media unless they have been duplicated where such duplicate can be used to restore them to their original state.

North American jurisdiction exclusion

We will not cover any **claim** instituted or pursued

- 1 within the United States of America or Canada or any territories which come within the jurisdiction of the United States of America or Canada or in which it is contended that the laws of the United States of America or Canada should apply
- 2 to enforce a judgment obtained in any Court of the United States of America or Canada or any territories which come within the jurisdiction of the United States of America or Canada.

North American territorial exclusion

We will not cover any **claim** arising from the conduct of **your professional business** carried out from offices or premises located within the United States of America or Canada or any territories which come within the jurisdiction of the United States of America or Canada.

Obscenity exclusion

We will not cover any **claim** directly or indirectly arising from any obscenity, blasphemy or pornographic material.

Ownership and rights exclusion

In respect of any dispute over the ownership or exercise of rights in the material or services supplied by or to **you**, **we** will not cover any **claim** made by any former, present or prospective **employee**, partner, joint venturer, co-venturer, officer or director of **yours** or any of **your** sub-contractors or suppliers.

Patent exclusion

We will not cover any **claim** arising out of any infringement of any patent.

Pollution exclusion

We will not cover any **claim** directly or indirectly involving pollution other than as stated in the **Pollution cover** of this section.

Previous claims exclusion

We will not cover any **claim**

- 1 that has been notified under any other policy before the start of this **policy**
- 2 that **you** were aware of or should have been aware of before the start of this **policy**

other than as stated in the Fair presentation of risk condition of the General introduction section.

Products harmful to health exclusion

We will not cover any **claim** arising directly or indirectly from any product that contains tobacco, nicotine, alcohol or any pharmaceutical product or any other product which is or becomes harmful, dangerous or hazardous in any way to the health of any person, animal or plant.

Property damage exclusion

We will not cover any **claim** for loss of or damage to property unless arising directly from a breach of duty through a negligent act, error or omission by **you** in the course of **your professional business**.

Property ownership exclusion

We will not cover any **claim** arising from the ownership, possession, leasing or use of any land or building structure or any other property or goods whether mobile or immobile.

Radioactive contamination exclusion

We will not cover any **claim** arising directly or indirectly from

- 1 ionising radiation or contamination by radioactivity from any irradiated nuclear fuel, or from any nuclear waste from the combustion of nuclear fuel

- 2 the radioactive, toxic, explosive or other hazardous properties of any explosive nuclear assembly or its nuclear component.

Retroactive date exclusion

We will not cover any **claim** arising from the performance of **your professional business** carried out before the **retroactive date** shown in **your** schedule.

Stunts exclusion

We will not cover any **claim** arising directly or indirectly from any stunt or other similar activity during the making or production of any **advertising**, educational or promotional materials.

Taxation, competition or restraint of trade exclusion

We will not cover any **claim** arising directly or indirectly from the breach of any taxation, competition, restraint of trade or anti-trust legislation or regulation.

Terrorist act exclusion

We will not cover any **claim** directly or indirectly involving any **terrorist act**.

Trading losses exclusion

We will not cover any **claim** arising out of trading losses or trading liabilities incurred by **you** or any of **your** businesses.

This exclusion will not apply to the **Disputed fees cover** of this section.

Virus exclusion

We will not cover any **claim** arising out of the transmission or receipt of a **virus or similar mechanism**.

War risk exclusion

We will not cover any **claim** arising from or happening through war, invasion, act of foreign enemy, hostilities, whether war is declared or not, civil war, rebellion, revolution, insurrection or military or usurped power.

Section conditions

These conditions of cover only apply to this section. **You** must comply with the following conditions to have the full protection of **your policy**. Some conditions specify circumstances whereby non-compliance will mean that **you** will not receive payment for a **claim**. However **you** will not be covered and **we** will not pay **your claim** if **you** are unable to prove that the non-compliance with these conditions could not have increased the risk of the loss which actually occurred in the circumstances in which it occurred.

If **you** are unsure about any of these conditions or whether **you** need to notify **us** about any matter, please contact **us**.

Admission of liability condition

In the event of a **claim circumstance**, **you** must not

- 1 admit liability
- 2 incur any **defence costs**
- 3 make any offers of settlement
- 4 otherwise prejudice the conduct of defence or settlement of that **claim** or **claim circumstance**

without first obtaining **our** written approval. This applies regardless of any complaint handling procedure or if the amount in dispute is less than **your excess**.

Breach of Claim notification condition or Claim circumstance condition

If **you** do not comply with the Claim notification condition or the Claim circumstance condition and where the **claim** or **claim circumstance** would otherwise be covered by this **policy**, **we** will not refuse to pay the **claim** provided

- 1 **you** tell **us** in writing about the **claim** or **claim circumstance** during the **period of insurance** and
- 2 **you** can satisfy **us** that **you** had no intention to deceive or mislead.

If, however, this affects **our** ability to handle or settle a **claim** or **claim circumstance**, **we** will reduce the amount **we** pay to the figure **we** reasonably believe would have been

payable had **our** ability to handle or settle it not been affected. This does not affect any other condition in this **policy**.

Claim circumstance condition

You must tell **us** in writing as soon as possible within the **period of insurance** about **claim circumstances**.

When telling **us** about **claim circumstances**, **you** must give to **us** full details including but not limited to

- 1 a description of the **claim circumstance**
- 2 the nature of the alleged act, error or omission leading to the **claim circumstances** and the date it was committed
- 3 the nature of the alleged damage
- 4 the names of the actual or potential claimants and defendants, and
- 5 the manner in which **you** first became aware of the **claim circumstance**.

If **claim circumstances** that relate to work **you** performed after the **retroactive date** and within the **period of insurance** lead to a **claim** after the **period of insurance** has ended, that **claim** will be deemed to have been made against **you** during the **period of insurance** provided that **you** told **us** in accordance with the requirements of this condition.

Claim control and co-operation condition

You must give **us** all information and assistance that **we** reasonably require and that is in **your** power to provide.

You must co-operate with **us** and anyone appointed on **our** behalf by

- 1 providing any information, assistance, signed statements or depositions as **we** may require to comply with any Civil Procedure Rules, Practice Directions and Pre-Action Protocols as may be issued
- 2 assisting to present the best possible defence to a **claim**
- 3 ensuring access to any information that **we** or **our** representatives may require in the defence of a claim or the investigation of any **claim circumstance**, whether or not that information may be privileged

- 4 provide **us** with any and all information that will allow **us** to determine **our** liability under this **policy**
- 5 making payment on demand of **your excess** in order to comply with the terms of any settlement **we** have agreed
- 6 providing any information, assistance, signed statements or depositions as **we** may require to exercise **our** rights of subrogation
- 7 ensuring that all documents of any description relevant to any **claim** or **claim circumstance** are preserved and complete.

we have made payment brought about or contributed to by any dishonest, fraudulent or malicious act or omission of that present or former **employee**, or if the present or former **employee** conspired to commit or condone any such dishonest, fraudulent or malicious act or omission.

You must not enter into any contract or other agreement that restricts **your** rights of recovery in respect of any **claim** that may be covered by this **policy**.

Claims notification condition

You must tell **us** in writing as soon as possible within the **period of insurance** about any **claim** against **you** irrespective of **your** views as to the validity of that **claim**.

We will not pay **your claim** where **you** have not complied with this condition.

Dishonesty and fraud condition

You must tell **us** as soon as possible within the **period of insurance** of the discovery of any dishonest or fraudulent act or omission or of any reasonable suspicion that an **employee** has acted dishonestly or fraudulently.

We will not pay **your claim** where **you** have not complied with this condition.

Expiry of period of insurance condition

If **you** become aware of a **claim** or **claim circumstances** in the seven days immediately before the end of the **period of insurance** but, in **our** reasonable opinion, **you** are unable to tell **us** before the end of the **period of insurance**, **we** will allow **you** an additional seven days immediately after the **period of insurance** to tell **us**.

Subrogation (our rights) condition

We will be entitled to undertake in **your** name or on **your** behalf steps to enforce rights against any other party before or after any payment is made by **us**.

We will not exercise any right of subrogation against any present or former **employee** unless

Professional indemnity section – Events and installations

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Important information about the cover provided by this section

The cover provided by this section operates on a claims-made basis. This means that **we** will only provide cover for **claims** or **claim circumstances** made against **you** and notified to **us** during the **period of insurance**. **We** will not cover any **claim** or **claim circumstance** arising from an act, error or omission that occurred before the **retroactive date**.

Conditions apply regarding when **you** must tell **us** about **claims** or **claim circumstances** and these can be found below. **You** should read these carefully.

Meanings of defined terms

You can find the meanings for words in bold blue in the General introduction section of **your policy**. There are some words that may only appear in this section or are defined differently and their meanings are shown here.

Asbestos

Asbestos in any form, asbestos fibres, particles or derivatives of asbestos or any material containing asbestos.

Asbestos survey

A management survey or a refurbishment or demolition survey, as described in HSG264 published by the Health and Safety Executive in connection with Regulation 4 of the Control of Asbestos Regulations 2006, or any comparable survey or inspection, whether of commercial or residential land or property.

Claim(s)

Any verbal or written demand, notice or communication from a third party

- 1 making an assertion for legal remedy or any other form of compensation or remedy
- 2 containing reference to, or serving notice of, intent to start legal proceedings
- 3 invoking any pre-action protocol as set under the Civil Procedure Rules, and/or
- 4 referring to arbitration, adjudication or complaint proceedings.

Claim circumstance(s)

Any incident, occurrence, fact, matter or act that **you** become aware of that might reasonably give rise to a **claim**.

Collateral warranty

Any written agreement that creates a duty of care between **you** and any party that is not **your** direct client or customer.

Computer system

Any computer, hardware, software, communications system, electronic device (including, but not limited to, smart phone, laptop, tablet or wearable device), server, cloud or microcontroller including any similar system or any configuration of the aforementioned and including any associated input, output, data storage device, networking equipment or back up facility.

Criminal prosecution defence costs

Costs and expenses that **you** incur with **our** prior written consent to defend any criminal proceeding first made against **you** and notified to **us** during the **period of insurance** arising from the conduct of **your professional business**.

Cyber act

An unauthorised, malicious or criminal act or series of related unauthorised, malicious or criminal acts, regardless of time and place, or the threat or hoax thereof, involving access to, processing of, use of or operation of any **computer system**.

Data

Information, facts, concepts, code or any other information of any kind that is recorded or transmitted in a form to be used, accessed, processed, transmitted or stored by a **computer system**.

Data protection law

Any applicable data protection and privacy legislation or regulations in any country, province, state, territory or jurisdiction which govern the use, confidentiality, integrity, security

and protection of personal data or any guidance or codes of practice relating to personal data issued by any data protection regulator or authority from time to time (all as amended, updated or re-enacted from time to time).

Defence costs

All costs and expenses incurred by **us** or by **you** with **our** prior written permission relating to the investigation, defence or settlement of any **claim** against **you**, which **your policy** covers. This does not include profit costs or remuneration or expenses paid or due to **you**.

Documents

Any documents or information that are **your** property or are looked after by or deposited with **you** in the ordinary course of **your professional business** and for which **you** are responsible. This does not include bearer bonds, coupons, stamps, bank or currency notes or negotiable instruments.

Employee(s)

- 1 Any person working for **you** under a contract of service with **you** or
- 2 Any person working for **you** in connection with the **professional business**
 - a who is hired or lent to **you**
 - b who is self-employed
 - c on a voluntary basis
 - d who is a freelance consultant

and who is under **your** control or supervision.

Environmental audit

An investigation specifically intended to identify, locate or treat **pollution**.

Excess

The amount stated in **your** schedule, being the first amount of **loss** for which **you** are responsible.

Extended liability

Legal liability assumed by **you** under the terms of any contract or agreement that restrict **your** right of recovery, or increase **your** liability at law

beyond that applicable in the absence of those terms.

Injury

Any death, illness, disease or sickness or any bodily, mental, psychological or emotional injury, distress or shock.

Limit of indemnity

The amount shown in **your** schedule as the limit of indemnity.

Loss

The amount that **you** are legally liable to pay due to a **claim**, including awards of damages, awards of claimant costs and amounts that are pursuant to settlements, but not including **defence costs**.

Pollutant

Any solid, liquid or gaseous pollutant contaminant or irritant substance or any biological agent that is a danger to human health, but not including **asbestos**.

Pollution

Actual, alleged or threatened discharge, seepage, treatment, removal, disposal, dispersal, emission, release or escape of any **pollutant** or any regulatory order, direction or request to test for, monitor, remove, contain, treat, detoxify or neutralise any **pollutant**.

Qualified professional

Any person with a minimum of five years practical experience in the design, specification, supply, erection and dismantling of temporary physical structures.

Retroactive date

If this date is shown in **your** schedule this will be the earliest date from when work **you** performed is covered.

Subsidiary

A company that **you** either directly or indirectly control through

- 1 holding a majority of the voting rights

- 2 the right to appoint or remove a majority of its board of directors and/or
- 3 sole control of, pursuant to a written agreement with other shareholders, a majority of that company's voting rights.

Virus or similar mechanism

Program code, programming instruction or any set of instructions intentionally constructed with the ability to damage, interfere with or otherwise adversely affect computer programs, data files or operations, whether involving self replication or not, including but not limited to trojan horses, worms or logic bombs.

You/your/yours

- 1 The person, firm, company or organisation shown in your schedule as the insured.
- 2 Any person, firm, company or organisation shown in your schedule as an additional insured.
- 3 Any predecessor in business to any firm, company or organisation that has been disclosed to **us**.
- 4 Any person who is or has been or who becomes a director, partner, member, principal or **employee**, but only for work undertaken for or on behalf of any person or body referred to in **1, 2 or 3** above.
- 5 Any retired partner, retired director or retired member of the firm, company or organisation shown in your schedule as the insured and who remains as a consultant to any person, firm, company or organisation shown in your schedule as the insured.
- 6 The estate, heirs, executors, legal or personal representatives of any person referred to in **1, 2, 3, 4 or 5** above in the event of their death or incapacity.

✓ What is covered

We will cover **you** for any **claim** and **defence costs** that arise from the conduct of **your professional business**, where the **claim** is first made against **you** and notified to **us** during the **period of insurance**, arising from

- 1 a breach of **your** professional duty

- 2 negligent misstatement or misrepresentation
- 3 unintentional libel, slander or defamation
- 4 unintentional breach of or misuse of confidentiality or any right to privacy
- 5 unintentional infringement of intellectual property rights including any act of passing-off (but not breach of patent)
- 6 any liability **you** incur as a result of a decision by an adjudicator appointed to resolve a dispute under the Scheme for Construction Contracts as contained in the Housing Grants Construction and Regeneration Act 1996, or an adjudication clause contained in a contract, or
- 7 any other civil liability that **you** incur.

The most **we** will pay for **loss** resulting from each **claim** is the **limit of indemnity**.

We will pay **defence costs** in addition to the **loss**. If the amount of **loss** exceeds the **limit of indemnity**, the most **we** will pay for **defence costs** will be an amount in the same proportion that the **limit of indemnity** has to the **loss**.

Asbestos cover

We will cover **you** for any **claim** or **claim circumstance** arising directly or indirectly from the actual or possible dispersal or presence of asbestos, we will only pay the costs of

- 1 rectification
- 2 redemption
- 3 decrease in value

caused by that actual or possible dispersal or presence of **asbestos** and only where that **claim** or **claim circumstance** arises from **your** negligent act, negligent error or negligent omission. Where that **claim** relates to a decrease in value, **we** will only cover the decrease that arises from a survey that **you** performed and where that survey was not an **asbestos survey**.

The most **we** will pay for all **claims** and **defence costs** arising directly or indirectly from **asbestos** in any one **period of insurance** is £250,000.

This is part of and not in addition to the **limit of indemnity**.

Collateral warranties cover

We will cover **you** for any **claim** and **defence costs** arising from **your** performance of obligations agreed by **you** under a collateral warranty, provided that

- 1 the **claim** arises from the performance of **your professional business** and was first made against **you** and notified to **us** during the **period of insurance**
- 2 the benefit of such **collateral warranty** is no greater and/or longer lasting than that in the original contract to which the **collateral warranty relates**.

The most **we** will pay under this cover is the **limit of indemnity**.

Court attendance costs cover

In the event that any of **your** directors, partners, members, principals or **employees** are required to attend court, mediation or arbitration in connection with a **claim** that is covered by this **policy**, provided that **we** have first given **our** written consent, **we** will pay compensation to **you** at £500 per day or part of day for each person required to attend.

The most **we** will pay in any one **period of insurance** under this cover is £25,000.

This is in addition to the **limit of indemnity**.

Criminal prosecutions defence costs cover

We will pay for **criminal prosecution defence costs** but only where, in **our** reasonable opinion, defending the criminal proceeding could protect **you** against a **claim** or potential **claim** that would be covered by this **policy**.

For any subsequent or concurrent civil action arising out of that criminal offence, notification of that action will be deemed to be notification of a **claim** or **claim circumstance**.

The most **we** will pay for all **criminal prosecution defence costs** in any one **period of insurance** is £250,000 or the **limit of indemnity**, whichever is the lower. This is part of and not in addition to the **limit of indemnity**.

Dishonesty and fraud cover

We will cover **you** for any **claim** and **defence costs** arising from the conduct of **your professional business**, first made against **you** and notified to **us** during the **period of insurance**, for any civil liability including liability for claimant's costs and expenses arising from dishonest or fraudulent acts or omissions by any of **your employees** who are not a principal, partner, member or director.

In the case of any **claim** arising from any dishonest or fraudulent act or omission

- 1 no person committing or condoning dishonest or fraudulent acts or omissions shall be entitled to cover
- 2 we will not cover dishonest or fraudulent acts or omissions committed by any person after **you** discover, or have reasonable cause for suspicion of dishonesty or fraud on the part of that person
- 3 in the event of the alleged fraudulent and/or dishonest party making an admission of guilt or being found guilty of that fraud and/or dishonesty, we will seek a full refund of any amounts paid by **us** under this section from that fraudulent party.

Any dishonesty or fraud committed by two or more **employees** who were acting together will be regarded as one **claim**.

The most we will pay for **loss** resulting from each **claim** that arises out of that dishonest or fraudulent act or omission is the **limit of indemnity**.

We will pay **defence costs** in addition to **loss** that arises out of that dishonest or fraudulent act or omission. If that **loss** amount exceeds the **limit of indemnity**, the most we will pay for **defence costs** will be an amount in the same proportion that the **limit of indemnity** has to the **loss** amount.

Formal investigation costs cover

We will pay costs and expenses that **you** incur with **our** prior written approval at a properly constituted hearing, tribunal or proceeding that is covered under this policy, but that are not included under the meaning of **defence costs**, provided that the hearing, tribunal or proceeding

- 1 is first instigated against **you** and notified by **you** to **us** during the **period of insurance**, and
- 2 arises from the conduct of **your professional business**.

The most we will pay in any one **period of insurance** under this cover is £25,000.

This is in addition to the **limit of indemnity**.

Joint ventures cover

We will cover **you** for any **claim** and **defence costs** that arise from the conduct of **your professional business**, where the **claim** is first made against **you** and notified to **us** during the **period of insurance**, arising from a civil liability that **you** may become legally liable to pay and that arises whilst **you** are a member of a joint venture or consortium.

The most we will pay under this cover is the **limit of indemnity**.

Loss of documents cover

We will cover **you** for any **claim** and **defence costs** that arise from the conduct of **your professional business**, where the **claim** is first made against **you** and notified to **us** during the **period of insurance**, arising from the destruction of, loss of or damage to any **documents**.

We will pay reasonable costs and expenses for replacing or restoring **your own documents** that have been destroyed, lost or damaged in the conduct of **your professional business** provided that the destruction, loss or damage is discovered by **you** and notified to **us** during the **period of insurance**.

The most we will pay under this cover is the **limit of indemnity**.

An **excess** of £500 (or the amount shown in **your** schedule if that is lower) will apply to each and every **claim** for loss, destruction or damage of **documents**.

Misconduct investigation costs cover

We will pay on **your** behalf the reasonable and necessary legal fees and related professional charges **you** incur during **your** representation

at an investigative inquiry into **your** conduct of **your professional business**, provided that

- 1 the inquiry is first instituted during the **period of insurance**
- 2 the inquiry is conducted entirely outside the United States of America or Canada
- 3 the inquiry is conducted by a regulatory or professional body that have powers to investigate **you**
- 4 **you** have been notified in writing by the regulatory or professional body that it is looking into whether or not **you** are culpable of misconduct
- 5 **your** attendance is required by the regulatory or professional body that instituted the inquiry, and
- 6 **you** have first obtained **our** written permission to incur those fees or charges.

The most **we** will pay for all such legal fees and related professional charges in any one **period of insurance** is £250,000. This is part of and not in addition to the **limit of indemnity**.

Mitigation costs cover

We will cover **you** for reasonable costs and expenses that **you** incur for any reasonable action **you** take to mitigate a **loss** or potential **loss** that would otherwise be the subject of a **claim** under this **policy**, provided always that

- 1 **you** obtain **our** prior written consent before incurring these costs and expenses, and
- 2 **you** prove to **our** satisfaction that the amount of the costs and expenses to be incurred are less than any likely award of damages arising from the same potential **claim**, and
- 3 if a **claim** still arises from the same **loss** or potential **loss** then the amount paid under this section will be deducted from the **limit of indemnity** for that subsequent **claim**.

The most **we** will pay under this cover is the **limit of indemnity**.

Pollution cover

For any **claim** or **claim circumstance** that arises directly or indirectly from **pollution**, **we** will only pay the costs of re-designing, re-specifying, remedying or rectifying a structure and will only pay where that **pollution**

- 1 arises from **your** negligent design, negligent specification or failure to report a structural defect, and
- 2 does not result directly or indirectly from any **environmental audit** carried out by you.

The most **we** will pay for all **claims** and **defence costs** arising directly or indirectly from **pollution** in any one **period of insurance** is the **limit of indemnity**. For the purposes of this cover, **defence costs** are part of and not in addition to the **limit of indemnity**.

Subsidiary creation and acquisition cover

If, during the **period of insurance**, **you**

- 1 acquire securities or voting rights in another organisation or create another organisation which, as a result of that acquisition or creation, becomes a **subsidiary** of **yours**, or
- 2 acquire any organisation by merger or consolidation

then that acquired or created organisation will automatically be insured under this **policy** with effect from the date of the acquisition or creation, but only with respect to the performance of **your professional business** performed after the acquisition or creation was completed.

However, if the acquired or created organisation

- a has annual fee income or turnover, which is greater than 20% of the annual fee income **you** last declared to **us** prior to the **period of insurance**
- b has assets in the United States of America or Canada
- c provides advice or services as part of activities which are not activities described in the definition of the **professional business**
- d has ever been fined an amount of £10,000 or more or has ever been found guilty of an offence by its regulator, or

e has ever, with regard to any given 12 month period, incurred (through judgment or settlement) total losses equalling or exceeding £100,000 or 10% of the **limit of indemnity** (whichever is less) on account of **claims** made against it in that period

you will give **us** written notice of that acquisition or creation as soon as possible and also provide any additional information **we** may reasonably require. **We** will have the right to amend the terms of this **policy** including but not limited to charging an additional premium. If **you** fail to give **us** written notice of the acquisition or creation then **we** will have the right to refuse to pay any **claim** or **claim circumstance** that arises directly or indirectly in connection with that acquired or created organisation.

Defence and settlement of claims

All **claims** that come from the same act, error or omission or series of acts, errors or omissions, as a result of, or arising directly or indirectly from the same source or original cause, will be regarded as one **claim**.

If **we** cover more than one person, firm, company or organisation, **our** liability to all, as a result of one **claim**, will not be more than the **limit of indemnity**.

We may at any time pay the **limit of indemnity** or relevant sub-limit. **We** will then have no further liability for that **claim** or **defence costs** except those already incurred at the date of payment of the **limit of indemnity** or sub-limit.

If a **claim** has some elements that are covered by this **policy** as well as some elements that are not covered by this **policy**, any **defence costs** or settlements due will be allocated between **you** and **us** on a fair and reasonable basis taking into account the relative legal and financial exposures of the **claim**.

We have the right, but not the obligation, to take control of any **claim** and conduct the investigation, settlement or defence in **your** name. After taking into account the commercial considerations of the costs of defence, **we** may choose to settle a **claim** instead of defending it.

If **we** feel it is necessary, **we** will appoint **our** adjuster, solicitor or other appropriate person to deal with a **claim**. If **you** ask **us**, **we** may agree to

appoint **your** solicitor, but only if **we** are satisfied that **your** solicitor has the necessary expertise to undertake this work, only on a similar fee basis as **our** solicitor and only for work done with **our** prior written approval.

If **you** disagree with **our** proposed course of action for any legal proceedings (whether defence or prosecution), then **you** may refer the matter to a King's Counsel of the English Bar to be mutually agreed between **you** and **us**. If **you** and **we** cannot agree on the King's Counsel to be appointed, then the King's Counsel will be appointed by the current Chairman of the English Bar or their representative. The King's Counsel's decision on how the legal proceedings should be handled shall be binding on **you** and **us**. In resolving this dispute, the King's Counsel will have consideration for the interests of **you** and **us**. The costs of this exercise will be allocated by the agreed or appointed party on a fair and equitable basis.

✕ What is not covered

Adjudication exclusion

We will not cover

- 1 any decision made against **you** by an adjudicator who was not independent of the parties to the dispute
- 2 any **claim** arising out of or related to any adjudication arising from an adjudication clause in a contract that contains timetable provisions for adjudication that are more onerous to **you** than those contained in the Scheme for Construction Contracts referred to in the Housing Grants Construction and Regeneration Act 1996.

Asbestos exclusion

We will not cover any **claim** directly or indirectly involving **asbestos** or allegations or concerns relating to **asbestos** other than as stated in the **Asbestos cover** of this section.

Associated persons or entities exclusion

We will not cover any **claim** brought by

- 1 a firm, company or organisation with a financial interest in **you**

2 a firm, company or organisation in which any of **your** partners, directors or principals have a controlling interest

3 any firm, company, organisation or individual who falls within the definition of **you**

unless the **claim** originates from a source independent of that firm, organisation or individual.

Contractual liability exclusion

We will not cover **extended liability** other than as stated in the **Collateral warranties cover** of this section.

However, in respect of any liability **you** incur under a **collateral warranty**, **we** will not cover any **claim** that arises from

- 1 any guarantee or warrant of fitness for purpose, satisfaction of performance specification or period of project works
- 2 any financial penalty or liquidated damages.

We will not cover any **claim** arising from the acceptance or guarantee by **you** of any fitness for purpose obligation whether this appears as an express term or is an implied term of any contract.

Cyber and data protection law exclusion

1 **We** will not cover any **claim**, loss, damage, liability costs, expenses, fines, penalties, mitigation costs or any other amount directly caused by, directly resulting from or directly arising out of

- a a **cyber act**
- b any partial or total unavailability or failure of any **computer system**

where the **computer system** is owned or controlled by **you** or any party acting on **your** behalf, or

- c the receipt or transmission of malware, malicious code or similar by **you** or any party acting on **your** behalf.

2 **We** will not cover any **claim**, loss, damage, liability costs, expenses, fines, penalties, mitigation costs or any other amount directly or indirectly caused by, directly or indirectly resulting from or directly or indirectly arising out of any failure or interruption of service provided

a to **you** or any party acting on **your** behalf by an internet service provider, telecommunications provider or cloud provider but not including the hosting of hardware and software owned by **you**

b by any utility provider, but only where such failure or interruption of service impacts a **computer system** owned or controlled by **you** or any party acting on **your** behalf.

3 **We** will not cover any **claim**, loss, damage, liability costs, expenses, fines, penalties, mitigation costs or any other amount for actual or alleged breach of **data protection law** by **you** or any party acting on **your** behalf.

4 Any cover provided by **your policy** in respect of the costs of reconstituting or recovering lost, inaccessible or damaged **documents** owned or controlled by **you** or any party acting on **your** behalf will not apply to **data**.

Other than as stated within this exclusion or by other restrictions in **your policy** specifically relating to the use of, or inability to use, a **computer system**, no cover otherwise provided by **your policy** will be restricted solely due to the use of, or inability to use, a **computer system**.

Defective workmanship or materials exclusion

We will not cover any **claim** arising directly or indirectly from defective workmanship or defective materials or the failure by **you** to supervise or inspect any work. This exclusion will not apply if the failure to supervise or inspect was the responsibility of a **qualified professional**.

Deliberate acts and omissions exclusion

We will not cover any **claim** arising directly or indirectly from any act, error or omission that **you** deliberately, spitefully or recklessly commit, condone or ignore.

Directors' and officers' liabilities exclusion

We will not cover any **claim** made against **you** or **your** directors, officers or trustees for breach of their duties as director, officer or trustee.

Dishonesty and fraud exclusion

We will not cover any **claim** directly or indirectly involving dishonesty or fraud committed by **you** other than as stated in the **Dishonesty and fraud cover** of this section.

Distorted computer records exclusion

We will not cover any costs and expenses **you** incur as a result of the loss or distortion of computer records caused by

- 1 defects in computer equipment or electronic storage devices
- 2 wear, tear, vermin or gradual deterioration
- 3 climatic or atmospheric conditions or extremes of temperature
- 4 use or processing whilst mounted in or on any machine unless as a result of loss of or damage to the machine itself.

The exclusion will not apply to the **Loss of documents cover** of this section.

Employment exclusion

We will not cover any **claim** arising out of any kind of employment related dispute or any kind of defamation, discrimination, harassment or unfair treatment relating to any current, former or prospective **employees**.

Excess exclusion

We will not pay the **excess** shown in **your** schedule.

The **excess** does not apply to **defence costs**, **Court attendance costs cover** or **Formal investigation costs cover** of this section.

The **excess** applicable to **Loss of documents cover** is as stated under the **Loss of documents cover** of this section.

Financial services exclusion

We will not cover any **claim** arising out of any Regulated Activities as defined in the Financial Services and Markets Act 2000 as amended from time to time.

Fines and penalties exclusion

We will not cover any fines, penalties, punitive, multiple, aggravated or exemplary damages awarded against **you**.

Fitness for purpose exclusion

We will not cover any **claim** arising from any fitness for purpose obligation that **you** are subject to in respect of **your professional business**.

Injury exclusion

We will not cover any **claim** for **injury**

- 1 to any **employee**
- 2 to any person who is not an **employee** unless directly arising from a breach of duty through a negligent act, error or omission by **you** in the course of **your professional business**.

Insolvency exclusion

We will not cover any **claim** arising out of or in connection with **your** insolvency, bankruptcy or any **claim** made by **your** liquidator, provisional liquidator or administrator.

Insurance or finance arrangement exclusion

We will not cover any **claim** arising from **your** failure to arrange and/or maintain insurance and/or finance.

Insured versus insured exclusion

We will not cover any **claim** brought by or on behalf of any person who may be insured by this **policy**.

Internet activity exclusion

We will not cover any **claim** arising out of

- 1 the management of financial transactions
 - 2 obscene, blasphemous or pornographic materials
- on the internet.

Market fluctuation exclusion

We will not cover any **claim** relating to the financial return of any investment or the depreciation or loss of investments when that financial return, depreciation or loss is caused by normal or abnormal fluctuations in any financial, stock, commodity or other markets that are outside **your** influence or control.

North American jurisdiction exclusion

We will not cover any **claim** instituted or pursued

- 1 within the United States of America or Canada or any territories which come within the jurisdiction of the United States of America or Canada or in which it is contended that the laws of the United States of America or Canada should apply
- 2 to enforce a judgment obtained in any Court of the United States of America or Canada or any territories, which come within the jurisdiction of the United States of America or Canada.

North American territorial exclusion

We will not cover any **claim** arising from the conduct of **your professional business** carried out from offices or premises located within the United States of America or Canada or any territories which come within the jurisdiction of the United States of America or Canada.

Patent exclusion

We will not cover any **claim** arising out of any infringement of any patent.

Pollution exclusion

We will not cover any **claim** directly or indirectly involving **pollution** other than as stated in the **Pollution cover** of this section.

Previous claims exclusion

We will not cover any **claim**

- 1 that has been notified under any other policy before the start of this **policy**
- 2 that **you** were aware of or should have been aware of before the start of this **policy**

other than as stated in the **Fair presentation of risk condition** on page 7 of the General introduction section of **your policy**.

Products exclusion

We will not cover any **claim** arising from products or goods manufactured, constructed, altered, repaired, treated, sold, supplied or distributed by **you**. This exclusion will not apply to project models.

Property damage exclusion

We will not cover any **claim** for loss of or damage to property unless arising directly from a breach of duty through a negligent act, error or omission by **you** in the course of **your professional business**.

Property ownership or use exclusion

We will not cover any **claim** arising from the ownership, possession, leasing or use of any land or building structure or any other property or goods whether mobile or immobile.

Radioactive contamination exclusion

We will not cover any **claim** arising directly or indirectly from

- 1 ionising radiation or contamination by radioactivity from any irradiated nuclear fuel, or from any nuclear waste from the combustion of nuclear fuel
- 2 the radioactive, toxic, explosive or other hazardous properties of any explosive nuclear assembly or its nuclear component.

Retroactive date exclusion

We will not cover any **claim** arising from the conduct of **your professional business** undertaken before the **retroactive date** shown in **your** schedule.

Surveys exclusion

We will not cover any **claim** arising out of a survey, unless it was undertaken by

- 1 anyone who is
 - a a Fellow or Associate of the Royal Institute of British Architects (RIBA), or

- b** a Fellow or Associate of the Royal Incorporation of Architects in Scotland (RIAS), or
 - c** a Fellow, Professional member, Technical Member or Associate Member of the Royal Institution of Chartered Surveyors (RICS), or
 - d** a Fellow or Associate of the Architects and Surveyors Institute (ASI), or
 - e** a Fellow or Associate of the Faculty of Architects and Surveyors (FFAS), or
- 2** anyone who has not less than five years' experience of survey work, or
- 3** any other person delegated by the person, firm, company or organisation shown in **your** schedule as the insured to undertake survey work, but only if
 - a** supervision of that work is provided by a person qualified in line with **a** or **b** above, or
 - b** **we** have first provided written agreement.

Taxation, competition or restraint of trade exclusion

We will not cover any **claim** arising directly or indirectly from the breach of any taxation, competition, restraint of trade or anti-trust legislation or regulation.

Tender at less than economic terms exclusion

We will not cover any **claim** arising from a deliberate decision by **you** to tender for a contract at less than economic terms.

Terrorist act exclusion

We will not cover any **claim** directly or indirectly involving any **terrorist act**.

Trading losses exclusion

We will not cover any **claim** arising out of trading losses or trading liabilities incurred by **you** or any of **your** businesses.

Unqualified professionals exclusion

We will not cover any **claim** arising directly or indirectly from the performance of **your professional business** by any person who is not a **qualified professional**.

Valuation exclusion

We will not cover any **claim** arising from any valuation report prepared by **you** or on **your** behalf except where the purpose of the report is for certification of payments to contractors or for measuring quantities.

Virus exclusion

We will not cover any **claim** arising out of the transmission or receipt of a **virus or similar mechanism**.

War risk exclusion

We will not cover any **claim** arising from or happening through war, invasion, act of foreign enemy, hostilities (whether war is declared or not), civil war, rebellion, revolution, insurrection or military or usurped power.

Section conditions

These conditions of cover only apply to this section. **You** must comply with the following conditions to have the full protection of **your policy**. Some conditions specify circumstances whereby non-compliance will mean that **you** will not receive payment for a **claim**. However you will not be covered and **we** will not pay **your claim** if **you** are unable to prove that the non-compliance with these conditions could not have increased the risk of the loss which actually occurred in the circumstances in which it occurred.

If **you** are unsure about any of these conditions or whether **you** need to notify **us** about any matter, please contact **us**.

Adjudication condition

If **you** receive any notice of intention to adjudicate, notice of adjudication, referral notice or any adjudication notice relating to a contract, **you** must tell **us** within two working days of receipt of that notice.

We reserve the right to treat any notification received under this clause as a notification of a **claim circumstance**.

You must not serve any notice of intention to adjudicate, notice of adjudication, referral notice or any adjudication notice relating to a contract without first obtaining **our** written approval unless, in **your** reasonable opinion, service of those notices will not lead to a **claim**.

You must not

- 1 make any admission in respect of the dispute that is the subject of adjudication
- 2 agree to accept the decision of the adjudicator as finally determining the dispute with no further reference to legal proceedings, arbitration or alternative dispute resolution

without first obtaining **our** written approval to do so.

If **you** do not comply with this condition, **we** have the right to refuse to pay any costs, damages, penalties or other amounts that arise from the adjudication.

Admission of liability condition

In the event of a **claim circumstance**, **you** must not

- 1 admit liability
- 2 incur any **defence costs**
- 3 make any offers of settlement
- 4 otherwise prejudice the conduct of defence or settlement of that **claim** or **claim circumstance**

without first obtaining **our** written approval.

This applies regardless of any complaint handling procedure or if the amount in dispute is less than **your excess**.

Breach of Claim notification condition or Claim circumstance condition

If **you** do not comply with the **Claim notification condition** or the **Claim circumstance condition** and where the **claim** or **claim circumstance** would otherwise be covered by this **policy**, **we** will not refuse to pay the **claim** provided

- 1 **you** tell **us** in writing about the **claim** or **claim circumstance** during the **period of insurance**, and
- 2 **you** can satisfy **us** that **you** had no intention to deceive or mislead.

If, however, this affects **our** ability to handle or settle a **claim** or **claim circumstance**, **we** will reduce the amount **we** pay to the figure **we** reasonably believe would have been payable had **our** ability to handle or settle it not been affected. This does not affect any other condition in this **policy**.

Claim circumstance condition

You must tell **us** in writing as soon as possible within the **period of insurance** about **claim circumstances**.

When telling **us** about **claim circumstances**, you must give to **us** full details including but not limited to

- 1 a description of the **claim circumstance**
- 2 the nature of the alleged act, error or omission leading to the **claim circumstances** and the date it was committed
- 3 the nature of the alleged damage
- 4 the names of the actual or potential claimants and defendants, and
- 5 the manner in which **you** first became aware of the **claim circumstance**.

If **claim circumstances** that relate to work **you** performed after the **retroactive date** and within the **period of insurance** lead to a **claim** after the **period of insurance** has ended, that **claim** will be deemed to have been made against **you** during the **period of insurance** provided that **you** told **us** in accordance with the requirements of this condition.

Claim control and co-operation condition

You must give **us** all information and assistance that **we** reasonably require and that is in **your** power to provide.

You must co-operate with **us** and anyone appointed on **our** behalf by

- 1 providing any information, assistance, signed statements or depositions as **we** may

require to comply with any Civil Procedure Rules, Practice directions and Pre-Action Protocols as may be issued

- 2 assisting to present the best possible defence to a **claim**
- 3 ensuring access to any information that **we** or **our** representatives may require in the defence of a claim or the investigation of any **claim circumstance**, whether or not that information may be privileged
- 4 provide **us** with any and all information that will allow **us** to determine **our** liability under this policy
- 5 making payment on demand of **your excess** in order to comply with the terms of any settlement **we** have agreed
- 6 providing any information, assistance, signed statements or depositions as **we** may require to exercise **our** rights of subrogation
- 7 ensuring that all documents of any description relevant to any **claim** or **claim circumstance** are preserved and complete.

Claims notification condition

You must tell **us** in writing as soon as possible within the **period of insurance** about any **claim** against **you** irrespective of **your** views as to the validity of that **claim**.

We will not pay **your claim** where **you** have not complied with this condition.

Dishonesty and fraud condition

You must tell **us** as soon as possible within the **period of insurance** of the discovery of any dishonest or fraudulent act or omission or of any reasonable suspicion that an **employee** has acted dishonestly or fraudulently.

We will not pay **your claim** where **you** have not complied with this condition.

Expiry of period of insurance condition

If **you** become aware of a **claim** or **claim circumstances** in the seven days immediately before the end of the **period of insurance** but, in **our** reasonable opinion, **you** are unable to tell **us** before the end of the **period of insurance**, **we** will allow **you** an additional seven days

immediately after the **period of insurance** to tell **us**.

Misconduct investigation notification condition

If **you** discover that an investigative inquiry into **your** conduct of **your professional business** is to be undertaken within the **period of insurance**, **you** must inform **us** within 14 days.

If **you** do not comply with this condition, **we** have the right to refuse to pay any costs, damages, penalties or other amounts arising from the investigation.

Subrogation (our rights) condition

We will be entitled to undertake in **your** name or on **your** behalf steps to enforce rights against any other party before or after any payment is made by **us**.

We will not exercise any right of subrogation against any present or former **employee** unless **we** have made payment brought about or contributed to by any dishonest, fraudulent or malicious act or omission of that present or former **employee**, or if the present or former **employee** conspired to commit or condone any such dishonest, fraudulent or malicious act or omission.

You must not enter into any contract or other agreement that restricts **your** rights of recovery in respect of any **claim** that may be covered by this **policy**.

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